

ORDER NO. R3-2017-0025
NPDES NO. CA0047830

WASTE DISCHARGE REQUIREMENTS
FOR THE AVILA BEACH COMMUNITY SERVICES DISTRICT WASTEWATER TREATMENT FACILITY

The following Discharger is subject to waste discharge requirements (WDRs) set forth in this Order:

Table 1. Discharger Information

Discharger	Avila Beach Community Services District (owner)
Name of Facility	Avila Beach Community Services District Wastewater Treatment Plant
Facility Address	2850 Avila Beach Drive
	Avila Beach, CA 93424
	San Luis Obispo County

Table 2. Discharge Location

Discharge Point	Effluent Description	Discharge Point Latitude (North)	Discharge Point Longitude (West)	Receiving Water
001	Equivalent to Secondary Treated Wastewater	35° 10' 16" N	120° 44' 4.6" W	Pacific Ocean (via San Luis Obispo Bay)

Table 3. Administrative Information

This Order was adopted by the Central Coast Region Water Quality Control Board on:	September 21, 2017
This Order shall become effective on:	December 1, 2017
This Order shall expire on:	November 30, 2022
The Discharger shall file a Report of Waste Discharge as an application for reissuance of WDR's in accordance with title 23, California Code of Regulations, and an application for reissuance of a National Pollutant Discharge Elimination System (NPDES) permit no later than:	June 3, 2022
The U.S. Environmental Protection Agency (USEPA) and the Central Coast Region Water Quality Control Board classify this as a minor discharge.	

IT IS HEREBY ORDERED, that Order No. R3-2009-0055 is superseded upon the effective date of this Order and, in order to meet the provisions contained in division 7 of the Water Code (commencing with section 13000) and regulations adopted thereunder and the provisions of the federal Clean Water Act (CWA) and regulations and guidelines adopted thereunder, the Discharger shall comply with the requirements in this amended Order.

John M. Robertson

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Robertson
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John M. Robertson, Executive Officer

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I. FINDINGS

The California Regional Water Quality Control Board, Central Coast Region (hereinafter the Central Coast Water Board) finds:

- A. **Legal Authorities.** This Order serves as WDRs pursuant to article 4, chapter 4, division 7 of the California Water Code (commencing with section 13260). This Order is also issued pursuant to section 402 of the federal Clean Water Act (CWA) and implementing regulations adopted by the USEPA and chapter 5.5, division 7 of the Water Code (commencing with section 13370). It shall serve as an NPDES permit for point source discharges from this facility to surface waters.
- B. **Background and Rationale for Requirements.** The Central Coast Water Board developed the requirements in this Order based on information submitted as part of the application, through monitoring and reporting programs, and other available information. The Fact Sheet (Attachment F), which contains background information and rationale for the requirements in this Order, is hereby incorporated into and constitutes Findings for this Order. Attachments A through E are also incorporated into this Order.
- C. **Provisions and Requirements Implementing State Law.** The provisions/requirements in subsections IV.B, IV.C, and V.B are included to implement state law only. These provisions/requirements are not required or authorized under the federal CWA; consequently, violations of these provisions/requirements are not subject to the enforcement remedies that are available for NPDES violations.
- D. **Notification of Interested Parties.** The Central Coast Water Board has notified the Discharger and interested agencies and persons of its intent to prescribe WDR's for the discharge and has provided them with an opportunity to submit their written comments and recommendations. Details of the notification are provided in the Fact Sheet accompanying this Order.
- E. **Consideration of Public Comment.** The Central Coast Water Board, in a public meeting, heard and considered all comments pertaining to the discharge. Details of the Public Hearing are provided in the Fact Sheet of this Order.

II. DISCHARGE PROHIBITIONS

- A. Discharge of treated wastewater to the Pacific Ocean at a location other than as described by this Order from the Avila Beach Community Services District WWTP ocean outfall (35° 10' 16" N. Latitude, 120° 44' 4.6" W. Longitude) is prohibited.
- B. The overflow or bypass of wastewater from the Discharger's collection, treatment, or disposal facilities and the subsequent discharge of untreated or partially treated wastewater, except as provided for in Attachment D, Standard Provision I.G (Bypass), is prohibited.
- C. Discharge of any waste in any manner other than as described by this Order, excluding storm water regulated by General Permit No. CAS000001 (Waste Discharge Requirements for Discharges of Storm Water Associated with Industrial Activities), and excluding the reuse of treated wastewater in accordance with California Water Code sections 13500 – 13577 (Water Reclamation) and California Code of Regulations title 22, sections 60301 – 60357 (Water Recycling Criteria), is prohibited.
- D. The discharge of any radiological, chemical, or biological warfare agent or high-level radioactive waste into the Ocean is prohibited.

- E. Federal law prohibits the discharge of sludge by pipeline to the Ocean. The discharge of municipal or industrial waste sludge directly to the Ocean or into a waste stream that discharges to the Ocean is prohibited. The discharge of sludge digester supernatant, without further treatment, directly to the Ocean or to a waste stream that discharges to the Ocean, is prohibited.
- F. The discharge of materials and substances in the wastewater that result in the following are prohibited:
 1. Float or become floatable upon discharge;
 2. May form sediments which degrade benthic communities or other aquatic life;
 3. Accumulate to toxic levels in marine waters, sediments or biota;
 4. Decrease the natural light to benthic communities and other marine life; and
 5. Result in aesthetically undesirable discoloration of the ocean surface.

III. EFFLUENT LIMITATIONS AND DISCHARGE SPECIFICATIONS

A. Effluent Limitations – Discharge Point 001

1. Final Effluent Limitations – Discharge Point 001

- a. The Discharger shall maintain compliance with the following effluent limitations at Discharge Point 001, with compliance measured at Monitoring Location EFF-001 as described in the Monitoring and Reporting Program (MRP), Attachment E:

Table 4. Effluent Limitations

Parameter	Units	Effluent Limitations		
		Average Monthly	Average Weekly	Maximum Daily
Biochemical Oxygen Demand (BOD) 5-day @ 20°C	mg/L	40	60	90
Total Suspended Solids (TSS)	mg/L	40	60	90
pH ^[1]	standard units	6.0 – 9.0 at all times		
Oil and Grease	mg/L	25	40	75
Settleable Solids	ml/L	1.0	1.5	3.0
Turbidity	NTU	75	100	225
	units	7-sample median	No more than once in any 30-day period	Single Sample Maximum
Total Coliform	MPN/100 mL	23	240	2,400

^[1] Excursions from the effluent limit range are permitted subject to the following limitations (40 C.F.R. 401.17):

- a. The total time during which the pH values are outside the required range of pH values shall not exceed 7 hours and 26 minutes in any calendar month; and
- b. No individual excursion from the range of pH values shall exceed 60 minutes.

Note: 40 C.F.R. 401.17(2)(c) notes that, for the purposes of 40 C.F.R. 401.17, “excursion” is defined as “an unintentional and temporary incident in which the pH value of discharge wastewater exceeds the range set forth in the applicable effluent limitations guidelines.” The State Board may adjust the requirements set forth in paragraph 40 C.F.R. 401.17 (a) with respect to the length of individual excursions from the range of pH values, if a different period of time is appropriate based upon the treatment system, plant configuration, or other technical factors.

- b. **Toxic Pollutants.** The Discharger shall maintain compliance with the following effluent limitations for toxic pollutants at Discharge Point 001, with compliance measured at Monitoring Location EFF-001, as described in the attached MRP:

Table 5. Effluent Limitations for the Protection of Marine Aquatic Life

Parameter	Units	Effluent Limitations		
		Six-Month Median	Maximum Daily	Instantaneous Maximum
Cadmium	µg/L	150	610	1,500
Chromium VI	µg/L	300	1,200	3,000
Copper	µg/L	150	1,500	4,300
Lead	µg/L	300	1,200	3,000
Mercury	µg/L	6	24	61
Silver	µg/L	82	400	1,000
Zinc	µg/L	1,800	11,000	29,000
Cyanide ^[1]	µg/L	150	610	1,500
Total Residual Chlorine	µg/L	300	1,200	9,100
Ammonia (as N)	µg/L	91,000	360,000	910,000
Acute Toxicity	TUa	---	4.8	---
Chronic Toxicity	TUc	---	150	---
Phenolic Compounds (non-chlorinated)	µg/L	4,600	18,000	46,000
Chlorinated Phenolics	µg/L	150	610	1,500
Endosulfan	µg/L	1.4	2.7	4.1
Endrin	µg/L	0.30	0.61	0.91
HCH	µg/L	0.61	1.2	1.8
Radioactivity	--	Not to exceed limits specified in California Code of Regulations, Title 22, Division 4, Chapter 15, Article 5, Section 64443		

^[1] If a discharger can demonstrate to the satisfaction of the Regional Board (subject to EPA approval) that an analytical method is available to reliably distinguish between strongly and weakly complexed cyanide, effluent limitations for cyanide may be met by the combined measurement of free cyanide, simple alkali metal cyanides, and weakly complexed organometallic cyanide complexes. In order for the analytical method to be acceptable, the recovery of free cyanide from metal complexes must be comparable to that achieved by the approved method in 40 C.F.R. Part 136, as revised May 14, 1999.

Table 6. Effluent Limitations for the Protection of Human Health (Non-Carcinogens)

Parameter	Units	Effluent Limitations
		Average Monthly
Acrolein	µg/L	33,000
Antimony	µg/L	180,000
Bis(2-Chloroethoxy)Methane	µg/L	670
Bis(2-Chloroisopropyl)Ether	µg/L	180,000
Chlorobenzene	µg/L	87,000
Chromium (III)	µg/L	29,000,000
Di-n-Butyl Phthalate	µg/L	530,000
Dichlorobenzenes	µg/L	780,000
Diethyl Phthalate	µg/L	5,000,000

Parameter	Units	Effluent Limitations
		Average Monthly
Dimethyl Phthalate	µg/L	120,000,000
2-Methyl-4,6-Dinitrophenol	µg/L	33,000
2,4-Dinitrophenol	µg/L	610
Ethylbenzene	µg/L	620,000
Fluoranthene	µg/L	2,300
Hexachlorocyclopentadiene	µg/L	8,800
Nitrobenzene	µg/L	740
Thallium	µg/L	300
Tributyltin	µg/L	0.21
1,1,1-Trichloroethane	µg/L	82,000,000

Table 7. Effluent Limitations for the Protection of Human Health (Carcinogens)

Parameter	Units	Effluent Limitations
		Average Monthly
Acrylonitrile	µg/L	15
Aldrin	µg/L	0.0033
Benzene	µg/L	900
Benzidine	µg/L	0.010
Beryllium	µg/L	5.0
Bis(2-Chloroethyl)Ether	µg/L	6.8
Bis(2-Ethylhexyl)Phthalate	µg/L	530
Carbon Tetrachloride	µg/L	140
Chlordane ^[1]	µg/L	0.0035
Chlorodibromomethane	µg/L	1,300
DDT (total)	µg/L	0.026
1,4 Dichlorobenzene	µg/L	2,700
3,3'-Dichlorobenzidine	µg/L	1.2
1,2-Dichloroethane	µg/L	4,300
1,1-Dichloroethylene	µg/L	140
Dichlorobromomethane	µg/L	940
Dichloromethane (Methylene Chloride)	µg/L	68,000
1,3-Dichloropropene	µg/L	1,400
Dieldrin	µg/L	0.0061
2,4-Dinitrotoluene	µg/L	400
1,2-Diphenylhydrazine	µg/L	24
Halomethanes	µg/L	20,000
Heptachlor	µg/L	0.0076
Heptachlor Epoxide	µg/L	0.0030
Hexachlorobenzene	µg/L	0.032
Hexachlorobutadiene	µg/L	2,100
Hexachloroethane	µg/L	380
Isophorone	µg/L	110,000
N-Nitrosodimethylamine	µg/L	1,100

Parameter	Units	Effluent Limitations
		Average Monthly
N-Nitrosodi-n-Propylamine	µg/L	58
N-Nitrosodiphenylamine	µg/L	380
PAHs (total)	µg/L	1.3
PCBs ^[1]	µg/L	0.0029
TCDD Equivalents	µg/L	5.9E-07
1,1,2,2-Tetrachloroethane	µg/L	350
Tetrachloroethylene	µg/L	300
Toxaphene	µg/L	0.032
Trichloroethylene	µg/L	4,100
1,1,2-Trichloroethane	µg/L	1,400
2,4,6-Trichlorophenol	µg/L	44
Vinyl Chloride	µg/L	5,500

^[1] See Attachment A for applicable definitions.

- c. **Percent Removal:** The average monthly percent removal of BOD 5-day 20°C and TSS shall not be less than 75 percent.
- d. **Dry Weather Flow:** Effluent daily dry weather flow shall not exceed a monthly average of 0.2 million gallons per day (MGD).
- e. **Initial Dilution.** The minimum initial dilution of treated effluent at the point of discharge to the Pacific Ocean shall not be less than 151 to 1 (seawater to effluent) at any time.

B. Land Discharge Specifications – Not Applicable

C. Reclamation Specifications – Not Applicable

IV. RECEIVING WATER LIMITATIONS

A. Surface Water Limitation

The following receiving water limitations are based on water quality objectives (Water Contact Standards) contained in the Ocean Plan and are a required part of this Order. Compliance shall be determined from samples collected at stations representative of the area within the waste field where initial dilution is completed except where other stations are defined.

1. Within a zone bounded by the shoreline and a distance of 1,000 feet from the shoreline or the 30-foot depth contour, whichever is farther from the shoreline, and in areas outside this zone designated for water contact recreation use by the Central Coast Water Board, but including all kelp beds, the following bacteriological objectives shall be maintained throughout the water column.

30-Day Geometric Mean – The following standards are based on the geometric mean of the five most recent samples from each receiving water monitoring location.

- a. Total coliform density shall not exceed 1,000 per 100 mL;
- b. Fecal coliform density shall not exceed 200 per 100 mL; and
- c. Enterococcus density shall not exceed 35 per 100 mL.

Single Sample Maximum¹:

- a. Total coliform density shall not exceed 10,000 per 100 mL;
 - b. Fecal coliform density shall not exceed 400 per 100 mL; and
 - c. Enterococcus density shall not exceed 104 per 100 mL.
 - d. Total coliform density shall not exceed 1,000 per 100 mL when the fecal coliform to total coliform ratio exceeds 0.1
2. At all areas where shellfish may be harvested for human consumption, as determined by the Central Coast Water Board, the following bacteriological objectives shall be maintained throughout the water column:
 - a. The median total coliform density shall not exceed 70 organisms per 100 mLs, and in not more than 10 percent of samples shall coliform density exceed 230 organisms per 100 mL.
 3. Floating particulates and grease and oil shall not be visible.
 4. The discharge of waste shall not cause aesthetically undesirable discoloration of the ocean surface.
 5. Natural light shall not be significantly reduced at any point outside the initial dilution zone as the result of the discharge of waste.
 6. The rate of deposition of inert solids and the characteristics of inert solids in ocean sediments shall not be changed such that benthic communities are degraded.
 7. The dissolved oxygen concentration shall not at any time be depressed more than 10 percent from that which occurs naturally as a result of the discharge of oxygen-demanding waste.
 8. The pH shall not be changed at any time more than 0.2 units from that which occurs naturally.
 9. The dissolved sulfide concentration of waters in and near sediments shall not be significantly increased above that present under natural conditions.
 10. The concentration of substances set forth in Chapter II, Table 1 of the Ocean Plan in marine sediments shall not be increased to levels that would degrade indigenous biota.
 11. The concentration of organic materials in marine sediments shall not be increased to levels that would degrade marine life.
 12. Nutrient levels shall not cause objectionable aquatic growths or degrade indigenous biota.
 13. Discharges shall not cause exceedances of water quality objectives for ocean waters of the State established in Table 1 of the Ocean Plan.
 14. Marine communities, including vertebrate, invertebrate, and plant species, shall not be degraded.
 15. The natural taste, odor, and color of fish, shellfish, or other marine resources used for human consumption shall not be altered.

¹ See paragraph V.C.2.b. Water-Contact Monitoring (Bacterial Characteristics) and Table E-7 Bacteria Monitoring Schedule of the Monitoring and Reporting Program for accelerated monitoring when exceedances occur of single sample maximum (SSM) bacterial surface water limitations.

16. The concentration of organic materials in fish, shellfish, or other marine resources used for human consumption shall not bioaccumulate to levels that are harmful to human health.
17. Discharge of radioactive waste shall not degrade marine life.
18. Radionuclides shall not be present in concentrations that are deleterious to human, plant, animal, or aquatic life or result in the accumulation of radionuclides in the food web to an extent that presents a hazard to human, plant, animal, or aquatic life.

B. Groundwater Limitations

Activities at the facility shall not cause exceedance/deviation from the following water quality objectives for groundwater established by the Basin Plan.

1. Groundwater shall not contain taste or odor producing substances in concentrations that adversely affect beneficial uses.
2. Radionuclides shall not be present in concentrations that are deleterious to human, plant, animal, or aquatic life; or result in the accumulation of radionuclides in the food web to an extent that presents a hazard to human, plant, animal, or aquatic life.

V. PROVISIONS

A. Standard Provisions

2. **Federal Standard Provisions.** The Discharger shall comply with all Standard Provisions included in Attachment D of this Order.
3. **Central Coast Water Board Standard Provisions.** The Discharger shall comply with the Central Coast Water Board Standard Provisions included in Attachment D of this Order.

B. Monitoring and Reporting Program (MRP) Requirements

Pursuant to CWC sections 13267 and 13383, the Discharger shall comply with the MRP, and future revisions thereto, in Attachment E of this Order, and all notification and general reporting requirements throughout this Order and Attachment D. Where notification or general reporting requirements conflict with those stated in the MRP (e.g., annual report due date), the Discharger shall comply with the MRP requirements. All monitoring shall be conducted according to 40 C.F.R. 136, *Guidelines Establishing Test Procedures for Analysis of Pollutants*.

The Discharger is required to provide these technical or monitoring reports because it is the owner and operator responsible for the waste discharge and compliance with this Order. The Central Coast Water Board needs the information to determine the Discharger's compliance with this Order, assess the need for further investigation and/or enforcement action, and to protect public health and safety and the environment.

C. Special Provisions

1. Reopener Provisions

- a. This permit may be reopened and modified in accordance with NPDES regulations at 40 C.F.R. §§ 122 and 124, as necessary, to include additional conditions or limitations based on newly available information or to implement any USEPA-approved, new State water quality objective.
- b. This Order may be reopened for modification to include an effluent limitation if monitoring establishes that the discharge causes, has the reasonable potential to

cause, or contributes to an excursion above a California Ocean Plan (Ocean Plan) Table 1 water quality objective.

2. Special Studies, Technical Reports and Additional Monitoring Requirements

a. Toxicity Reduction Requirements

If the discharge consistently exceeds an effluent limitation for toxicity specified by Section III of this Order, the Discharger shall conduct a Toxicity Reduction Evaluation (TRE) defined in Attachment A in accordance with the Discharger's TRE Workplan.

A TRE is a study conducted in a step-wise process designed to identify the causes of effluent or ambient toxicity, isolate the sources of toxicity, evaluate the effectiveness of toxicity control options, and then confirm the reduction in toxicity. The first steps of the TRE consist of the collection of data relevant to the toxicity, including additional toxicity testing, and an evaluation of facility operations and maintenance practices, and best management practices. A Toxicity Identification Evaluation (TIE) may be required as part of the TRE, if appropriate. A TIE is a set of procedures to identify the specific chemical(s) responsible for toxicity. These procedures are performed in three phases - characterization, identification, and confirmation using aquatic organism toxicity tests. The TRE shall include all reasonable steps to identify the source of toxicity. The Discharger shall take all reasonable steps to reduce toxicity to the required level once the source of toxicity is identified.

The Discharger shall maintain a TRE Workplan, which describes steps that the Discharger intends to follow if a toxicity effluent limitation in this Order is exceeded. The workplan shall be prepared in accordance with current technical guidance and reference material, including EPA/600/2-88-070 (for industrial discharges) or EPA/600/2-88/062 (for municipal discharges), and shall describe, at least:

- i. Actions proposed to investigate/identify the causes/sources of toxicity,
- ii. Actions proposed to mitigate the discharge's adverse effects, to correct the noncompliance, and/or to prevent the recurrence of acute or chronic toxicity (this list of action steps may be expanded, if a TRE is undertaken), and
- iii. A schedule to implement these actions.

When monitoring detects effluent toxicity greater than a limitation in this Order, the Discharger shall resample immediately, if the discharge is continuing, and retest for whole effluent toxicity. Results of an initial failed test and results of subsequent monitoring shall be reported to the Executive Officer (EO) as soon as possible after receiving monitoring results. The EO will determine whether to initiate enforcement action, whether to require the Discharger to implement a TRE, or to implement other measures. The Discharger shall conduct a TRE considering guidance provided by the USEPA's Toxicity Reduction Evaluation Procedures, Phases 1, 2, and 3 (EPA document nos. EPA 600/3-88/034, 600/3-88/035, and 600/3-88/036, respectively). A TRE, if necessary, shall be conducted in accordance with the following schedule.

Table 8. Toxicity Reduction Evaluation - Schedule

Action Step	When Required
Take all reasonable measures necessary to immediately reduce toxicity, where the source is known.	Within 24 hours of identification of noncompliance.
Initiate the TRE in accordance to the Workplan.	Within 7 days of notification by the EO.
Conduct the TRE following the procedures in the Workplan.	Within the period specified in the Workplan (not to exceed one year, without an approved Workplan).
Submit the results of the TRE, including summary of findings, required corrective action, and all results and data.	Within 60 days of completion of the TRE.
Implement corrective actions to meet Permit limits and conditions.	To be determined by the EO.

b. Water Contact Monitoring (Bacterial Characteristics)

In accordance with Ocean Plan section III.D.1.b, if a single sample exceeds any of the bacteriological single sample maximum (SSM) standards contained within section III.A.1 of this Order, repeat sampling at that location shall be conducted to determine the extent and persistence of the exceedance. Repeat sampling shall be conducted within 24 hours of receiving analytical results and continued daily until the sample result is less than the SSM standard or until a sanitary survey is conducted to determine the source of the high bacterial densities.

When repeat sampling is required because of an exceedance of any one single sample density, values from all samples collected during that 30-day period will be used to calculate the geometric mean.

(This requirement is also footnoted in Table E-8 of section VIII.A of MRP Attachment E)

c. Brine Waste Disposal Study

Prior to discharging brine waste through the ocean outfall, the Discharger shall submit a brine waste disposal study to the Executive Officer for approval. The study shall include, at a minimum, the following elements: (1) a projection of the brine volume and characteristics, (2) standard operating procedures that will be followed to determine the characteristics and composition of brine wastes proposed to be discharged, (3) an assessment of the impact of the brine waste on permit compliance, (4) an assessment of the impact of the brine waste on the minimum probable initial dilution at the point of discharge, and (5) a detailed description of the brine waste disposal facilities and process flow diagram for the brine wastes.

3. Best Management Practices and Pollution Prevention

a. Pollutant Minimization Program

The 2012 California Ocean Plan establishes guidelines for the Pollutant Minimization Program (PMP). At the time of the proposed adoption of this Order, no known evidence was available that would require the Discharger to immediately develop and conduct a PMP. The Central Coast Water Board will notify the

Discharger in writing if such a program becomes necessary. The 2012 Ocean Plan PMP language is included herein to provide guidance in the event that a PMP must be developed and implemented by the Discharger.

PMP Goal: The PMP goal is to reduce all potential pollutant sources through pollutant minimization (control) strategies, including pollution prevention measures, to maintain pollutant effluent concentrations at or below the effluent limitation.

Pollution prevention measures may be particularly appropriate for persistent bioaccumulative priority pollutants where there is evidence of impairment of beneficial uses. The completion and implementation of a Pollution Prevention Plan, required in accordance with California Water Code §13263.3 (d), will fulfill the PMP requirements.

Determining the Need for a PMP:

- i. The Discharger must develop and conduct a PMP if all of the following conditions are true:
 - (a) The calculated effluent limitation is less than the reported Minimum Level.
 - (b) The concentration of the pollutant is reported as DNQ.
 - (c) There is evidence showing that the pollutant is present in the effluent above the calculated effluent limitation.
- ii. Alternatively, the Discharger must develop and conduct a PMP if all of the following conditions are true:
 - (d) The calculated effluent limitation is less than the Method Detection Limit (MDL).
 - (e) The concentration of the pollutant is reported as ND.
 - (f) There is evidence showing that the pollutant is present in the effluent above the calculated effluent limitation.

Special Provision for Evidence of Pollutant Presence:

The Central Coast Water Board may include special provisions in the discharge requirements to require the gathering of evidence to determine whether the pollutant is present in the effluent at levels above the calculated effluent limitation. Examples of evidence may include:

- i. Health advisories for fish consumption;
- ii. Presence of whole effluent toxicity;
- iii. Results of benthic or aquatic organism tissue sampling;

- iv. Sample results from analytical methods more sensitive than methods included in the permit (in accordance with the 2012 Ocean Plan, Chapter III, Section C.4.b, *Deviations from Minimum Levels in Appendix II*; or
- v. The concentration of the pollutant is reported as DNQ and the effluent limitation is less than the MDL.

Elements of a PMP:

The Central Coast Water Board may consider cost-effectiveness when establishing the requirements of a PMP. The program shall include actions and submittals acceptable to the Central Coast Water Board including, but not limited to, the following:

- i. An annual review and semiannual monitoring of potential sources of the reportable pollutant, which may include fish tissue monitoring and other bio-uptake sampling;
- ii. Quarterly monitoring for the reportable pollutant in the influent to the wastewater treatment system;
- iii. Submittal of a control strategy designed to proceed toward the goal of maintaining concentrations of the reportable pollutant in the effluent at or below the calculated effluent limitation;
- iv. Implementation of appropriate cost-effective control measures for the pollutant, consistent with the control strategy; and,
- v. An annual status report that shall be sent to the Central Coast Water Board including:
 - (a) All PMP monitoring results for the previous year;
 - (b) A list of potential sources of the reportable pollutant;
 - (c) A summary of all action taken in accordance with the control strategy; and,
 - (d) A description of actions to be taken in the following year.

4. Construction, Operation and Maintenance Specifications

The Facility shall be operated as specified under Standard Provision D of Attachment D.

5. Special Provisions for Municipal Facilities (POTW's Only)

a. Biosolids Management

- i. Sludge and wastewater solids must be disposed of in a municipal solid waste landfill, reused by land application, or disposed of in a sludge-only landfill in accordance with 40 C.F.R. Parts 258 and 503 and Title 23, Chapter 15 of the CCR. If the Discharger desires to dispose of solids and/or sludge in a different manner, a request for permit modification must be submitted to the USEPA and to the Central Coast Water Board at least 180 days prior to beginning the alternative means of disposal.

- ii. Sludge that is disposed of in a municipal solid waste landfill must meet the requirements of 40 C.F.R. Part 258 pertaining to providing information to the public. In the annual self-monitoring report, the Discharger shall include the amount of sludge placed in the landfill as well as the landfill to which it was sent.
- iii. All requirements of 40 C.F.R. Part 503 and 23 CCR Chapter 15 are enforceable whether or not the requirements of those regulations are stated in an NPDES permit or any other permit issued to the Discharger.
- iv. The Discharger shall take all reasonable steps to prevent and minimize any sludge use or disposal in violation of this Order that has a likelihood of adversely affecting human health or the environment.
- v. Solids and sludge treatment, storage, and disposal or reuse shall not create a nuisance, such as objectionable odors or flies, and shall not result in groundwater contamination.
- vi. The solids and sludge treatment and storage site shall have adequate facilities to divert surface water runoff from adjacent areas to protect the boundaries of the site from erosion, and to prevent drainage from the treatment and storage site. Adequate protection is defined as protection, at the minimum, from a 100-year storm and protection from the highest possible tidal stage that may occur.
- vii. The discharge of sewage sludge and solids shall not cause waste material to be in position where it is, or can be, conveyed from the treatment and storage sites and deposited in waters of the State. The Discharger shall submit an annual report to the USEPA and the Central Coast Water Board containing monitoring results and pathogen and vector attraction reduction requirements, as specified by 40 C.F.R. Part 503. The Discharger shall also report the quantity of sludge removed from the Facility and the disposal method. This self-monitoring report shall be postmarked by February 19 of each year and report for the period of the previous calendar year.

6. Other Special Provisions

- a. **Discharges of Storm Water.** For the control of storm water discharged from the site of the wastewater treatment and disposal facilities, if applicable, the Discharger shall seek authorization to discharge under and meet the requirements of the State Water Resources Control Board's Water Quality Order 97-03-DWQ, NPDES General Permit No. CAS000001, *Waste Discharge Requirements for Discharges of Storm Water Associated with Industrial Activities Excluding Construction Activities*.
- b. **Statewide General Waste Discharge Requirements for Sanitary Sewer Systems (State Water Board Order No. 2006-0003-DWQ).** This General Order, adopted on May 2, 2006, is applicable to all "federal and state agencies, municipalities, counties, districts, and other public entities that own or operate sanitary sewer systems greater than one mile in length that collect and/or convey untreated or partially treated wastewater to a publicly owned treatment facility in the State of California." The purpose of the General Order is to promote the proper and efficient management, operation, and maintenance of sanitary sewer systems and

to minimize the occurrences and adverse effects of sanitary sewer overflows. The Discharger has enrolled in the General Permit.

7. Compliance Schedules – Not Applicable

VI. COMPLIANCE DETERMINATION

Compliance with the effluent limitations contained in Section IV of this Order will be determined as specified below:

A. Standard Provisions

Compliance with effluent limitations for reportable pollutants shall be determined using sample reporting protocols defined in the MRP and Attachment A of this Order. For purposes of reporting and administrative enforcement by the Central Coast and State Water Boards, the Discharger shall be deemed out of compliance with effluent limitations if the concentration of the reportable pollutant in the monitoring sample is greater than the effluent limitation and greater than or equal to the reported Minimum Level (ML). For priority pollutants, the methods must meet the lowest MLs specified in Attachment 4 of the SIP. If no methods are specified for a given pollutant it shall be analyzed by methods approved by this Regional Water Board or the State Water Board. If more than one analytical test method is listed for a given parameter, the Discharger must select from the listed methods and corresponding MLs.

B. Multiple Sample Data

When determining compliance with a measure of central tendency (arithmetic mean, geometric mean, median, etc.) of multiple samples analyses and the data set contains one or more reported determinations of "Detected, but Not Quantified" ("DNQ", or "Not Detected" (ND), the Discharger shall compute the median in place of the arithmetic mean in accordance with the following procedure:

4. The data set shall be ranked from low to high, ranking the reported ND determinations lowest, DNQ determinations next, followed by quantified values (if any). The order of the individual ND or DNQ determinations is unimportant.
5. The median value of the data set shall be determined. If the data set has an odd number of data points, then the median is the middle value. If the data set has an even number of data points, then the median is the average of the two values around the middle unless one or both of the points are ND or DNQ, in which case the median value shall be the lower of the two data points where DNQ is lower than a value and ND is lower than DNQ.

C. Average Monthly Effluent Limitation (AMEL)

If the average of daily discharges over a calendar month exceeds the AMEL for a given parameter, an alleged violation will be flagged and the Discharger will be considered out of compliance for each day of that month for that parameter (e.g., resulting in 31 days of non-compliance in a 31-day month). The average of daily discharges over the calendar month that exceeds the AMEL for a parameter will be considered out of compliance for that month only. If only a single sample is taken during the calendar month and the analytical result for that sample exceeds the AMEL, the Discharger will be considered out of compliance for that calendar month. For any one calendar month during which no sample (daily discharge) is taken, no compliance determination can be made for that calendar month.

D. Average Weekly Effluent Limitation (AWEL)

If the average of daily discharges over a calendar week exceeds the AWEL for a given parameter, an alleged violation will be flagged and the Discharger will be considered out of compliance for each day of that week for that parameter, resulting in 7 days of non-compliance. The average of daily discharges over the calendar week that exceeds the AWEL for a parameter will be considered out of compliance for that week only. If only a single sample is taken during the calendar week and the analytical result for that sample exceeds the AWEL, the Discharger will be considered out of compliance for that calendar week. For any one calendar week during which no sample (daily discharge) is taken, no compliance determination can be made for that calendar week.

E. Maximum Daily Effluent Limitation (MDEL)

If a daily discharge exceeds the MDEL for a given parameter, an alleged violation will be flagged and the Discharger will be considered out of compliance for that parameter for that 1 day only within the reporting period. For any 1 day during which no sample is taken, no compliance determination can be made for that day.

ATTACHMENT A – DEFINITIONS

Acute Toxicity

- a. Acute Toxicity (TUa)
Expressed in Toxic Units Acute (TUa)

$$TUa = \frac{100}{96\text{-hr LC } 50\%}$$

- b. Lethal Concentration 50% (LC 50)
LC 50 (percent waste giving 50% survival of test organisms) shall be determined by static or continuous flow bioassay techniques using standard marine test species as specified in Ocean Plan Appendix III. If specific identifiable substances in wastewater can be demonstrated by the discharger as being rapidly rendered harmless upon discharge to the marine environment, but not as a result of dilution, the LC 50 may be determined after the test samples are adjusted to remove the influence of those substances.

When it is not possible to measure the 96-hour LC 50 due to greater than 50 percent survival of the test species in 100 percent waste, the toxicity concentration shall be calculated by the expression:

$$TUa = \frac{\log(100 - S)}{1.7}$$

where:

S = percentage survival in 100% waste. If S > 99, TUa shall be reported as zero.

Areas of Special Biological Significance (ASBS)

Those areas designated by the State Water Resources Control Board (State Water Board) as ocean areas requiring protection of species or biological communities to the extent that alteration of natural water quality is undesirable. All Areas of Special Biological Significance are also classified as a subset of STATE WATER QUALITY PROTECTION AREAS.

Average Monthly Effluent Limitation (AMEL)

The highest allowable average of daily discharges over a calendar month, calculated as the sum of all daily discharges measured during a calendar month divided by the number of daily discharges measured during that month.

Average Weekly Effluent Limitation (AWEL)

The highest allowable average of daily discharges over a calendar week (Sunday through Saturday), calculated as the sum of all daily discharges measured during a calendar week divided by the number of daily discharges measured during that week.

Chlordane

Shall mean the sum of chlordane-alpha, chlordane-gamma, chlordene-alpha, chlordene-gamma, nonachlor-alpha, nonachlor-gamma, and oxychlordane.

Chronic Toxicity

This parameter shall be used to measure the acceptability of waters for supporting a healthy marine biota until improved methods are developed to evaluate biological response.

a. **Chronic Toxicity (TUc)**

Expressed as Toxic Units Chronic (TUc)

$$TUc = \frac{100}{NOEL}$$

b. **No Observed Effect Level (NOEL)**

The NOEL is expressed as the maximum percent effluent or receiving water that causes no observable effect on a test organism, as determined by the result of a critical life stage toxicity test listed in Ocean Plan Appendix II.

Daily Discharge

Daily Discharge is defined as either: (1) the total mass of the constituent discharged over the calendar day (12:00 am through 11:59 pm) or any 24-hour period that reasonably represents a calendar day for purposes of sampling (as specified in the permit), for a constituent with limitations expressed in units of mass or; (2) the unweighted arithmetic mean measurement of the constituent over the day for a constituent with limitations expressed in other units of measurement (e.g., concentration).

The daily discharge may be determined by the analytical results of a composite sample taken over the course of one day (a calendar day or other 24-hour period defined as a day) or by the arithmetic mean of analytical results from one or more grab samples taken over the course of the day.

For composite sampling, if 1 day is defined as a 24-hour period other than a calendar day, the analytical result for the 24-hour period will be considered as the result for the calendar day in which the 24-hour period ends.

DDT

Shall mean the sum of 4,4'DDT, 2,4'DDT, 4,4'DDE, 2,4'DDE, 4,4'DDD, and 2,4'DDD.

Degrade

Degradation shall be determined by comparison of the waste field and reference site(s) for characteristic species diversity, population density, contamination, growth anomalies, debility, or supplanting of normal species by undesirable plant and animal species. Degradation occurs if there are significant differences in any of three major biotic groups, namely, demersal fish, benthic invertebrates, or attached algae. Other groups may be evaluated where benthic species are not affected, or are not the only ones affected.

Detected, but Not Quantified (DNQ)

Sample results that are less than the reported Minimum Level, but greater than or equal to the laboratory's MDL. Sample results reported as DNQ are estimated concentrations.

Dichlorobenzenes

Shall mean the sum of 1,2- and 1,3-dichlorobenzene.

Downstream Ocean Waters

Waters downstream with respect to ocean currents.

Dredged Material

Any material excavated or dredged from the navigable waters of the United States, including material otherwise referred to as "spoil."

Enclosed Bays

Indentations along the coast that enclose an area of oceanic water within distinct headlands or harbor works. Enclosed bays include all bays where the narrowest distance between headlands or outermost harbor works is less than 75 percent of the greatest dimension of the enclosed portion of the bay. This definition includes but is not limited to: Humboldt Bay, Bodega Harbor, Tomales Bay, Drakes Estero, San Francisco Bay, Morro Bay, Los Angeles Harbor, Upper and Lower Newport Bay, Mission Bay, and San Diego Bay.

Endosulfan

The sum of endosulfan-alpha and -beta and endosulfan sulfate.

Estuaries and Coastal Lagoons are waters at the mouths of streams that serve as mixing zones for fresh and ocean waters during a major portion of the year. Mouths of streams that are temporarily separated from the ocean by sandbars shall be considered as estuaries. Estuarine waters will generally be considered to extend from a bay or the open ocean to the upstream limit of tidal action but may be considered to extend seaward if significant mixing of fresh and salt water occurs in the open coastal waters. The waters described by this definition include but are not limited to the Sacramento-San Joaquin Delta as defined by Section 12220 of the California Water Code, Suisun Bay, Carquinez Strait downstream to Carquinez Bridge, and appropriate areas of the Smith, Klamath, Mad, Eel, Noyo, and Russian Rivers.

Halomethanes shall mean the sum of bromoform, bromomethane (methyl bromide) and chloromethane (methyl chloride).

HCH shall mean the sum of the alpha, beta, gamma (lindane) and delta isomers of hexachlorocyclohexane.

Initial Dilution

The process that results in the rapid and irreversible turbulent mixing of wastewater with ocean water around the point of discharge.

For a submerged buoyant discharge, characteristic of most municipal and industrial wastes that are released from the submarine outfalls, the momentum of the discharge and its initial buoyancy act together to produce turbulent mixing. Initial dilution in this case is completed when the diluting wastewater ceases to rise in the water column and first begins to spread horizontally.

For shallowwater submerged discharges, surface discharges, and non-buoyant discharges, characteristic of cooling water wastes and some individual discharges, turbulent mixing results primarily from the momentum of discharge. Initial dilution, in these cases, is considered to be completed when the momentum induced velocity of the discharge ceases to produce significant mixing of the waste, or the diluting plume reaches a fixed distance from the discharge to be specified by the Central Coast Water Board, whichever results in the lower estimate for initial dilution.

Instantaneous Maximum Effluent Limitation

The highest allowable value for any single grab sample or aliquot (i.e., each grab sample or aliquot is independently compared to the instantaneous maximum limitation).

Instantaneous Minimum Effluent Limitation

The lowest allowable value for any single grab sample or aliquot (i.e., each grab sample or aliquot is independently compared to the instantaneous minimum limitation).

Kelp Beds

For purposes of the bacteriological standards of the Ocean Plan, are significant aggregations of marine algae of the genera Macrocystis and Nereocystis. Kelp beds include the total foliage canopy of Macrocystis and Nereocystis plants throughout the water column.

Mariculture

The culture of plants and animals in marine waters independent of any pollution source.

Material

(a) In common usage: (1) the substance or substances of which a thing is made or composed (2) substantial; (b) For purposes of the Ocean Plan relating to waste disposal, dredging and the disposal of dredged material and fill, MATERIAL means matter of any kind or description which is subject to regulation as waste, or any material dredged from the navigable waters of the United States. See also, DREDGED MATERIAL.

Maximum Daily Effluent Limitation (MDEL)

The highest allowable daily discharge of a pollutant.

Method Detection Limit (MDL)

The minimum concentration of a substance that can be measured and reported with 99 percent confidence that the analyte concentration is greater than zero, as defined in 40 C.F.R. part 136, Attachment B.

Minimum Level (ML)

The concentration at which the entire analytical system must give a recognizable signal and acceptable calibration point. The ML is the concentration in a sample that is equivalent to the concentration of the lowest calibration standard analyzed by a specific analytical procedure, assuming that all the method specified sample weights, volumes, and processing steps have been followed.

Natural Light

Reduction of natural light may be determined by the Central Coast Water Board by measurement of light transmissivity or total irradiance, or both, according to the monitoring needs of the Central Coast Water Board.

Not Detected (ND)

Those sample results less than the laboratory's MDL.

Ocean Waters

The territorial marine waters of the state as defined by California law to the extent these waters are outside of enclosed bays, estuaries, and coastal lagoons. If a discharge outside the territorial waters of the state could affect the quality of the waters of the state, the discharge may be regulated to assure no violation of the Ocean Plan will occur in ocean waters.

PAHs (polynuclear aromatic hydrocarbons)

The sum of acenaphthylene, anthracene, 1,2-benzanthracene, 3,4-benzofluoranthene, benzo[k]fluoranthene, 1,12-benzoperylene, benzo[a]pyrene, chrysene, dibenzo[ah]anthracene, fluorene, indeno[1,2,3-cd]pyrene, phenanthrene and pyrene.

PCBs (polychlorinated biphenyls)

The sum of chlorinated biphenyls whose analytical characteristics resemble those of Aroclor-1016, Aroclor-1221, Aroclor-1232, Aroclor-1242, Aroclor-1248, Aroclor-1254 and Aroclor-1260.

Pollutant Minimization Program (PMP)

PMP means waste minimization and pollution prevention actions that include, but are not limited to, product substitution, waste stream recycling, alternative waste management methods, and education of the public and businesses. The goal of the PMP shall be to reduce all potential sources of Ocean Plan Table 1 pollutants through pollutant minimization (control) strategies, including pollution prevention measures as appropriate, to maintain the effluent concentration at or below the water quality-based effluent limitation. Pollution prevention measures may be particularly appropriate for persistent bioaccumulative priority pollutants where there is evidence that beneficial uses are being impacted. The Central Coast Water Board may consider cost effectiveness when establishing the requirements of a PMP. The completion and implementation of a Pollution Prevention Plan, if required pursuant to Water Code section 13263.3(d), shall be considered to fulfill the PMP requirements.

Reported Minimum Level

The reported ML (also known as the Reporting Level or RL) is the ML (and its associated analytical method) chosen by the Discharger for reporting and compliance determination from the ML's included in this Order, including an additional factor if applicable as discussed herein. The ML's included in this Order correspond to approved analytical methods for reporting a sample result that are selected by the Central Coast Water Board either from Appendix II of the Ocean Plan in accordance with section III.C.5.a. of the Ocean Plan or established in accordance with section III.C.5.b. of the Ocean Plan. The ML is based on the proper application of method-based analytical procedures for sample preparation and the absence of any matrix interferences. Other factors may be applied to the ML depending on the specific sample preparation steps employed. For example, the treatment typically applied in cases where there are matrix-effects is to dilute the sample or sample aliquot by a factor of ten. In such cases, this additional factor must be applied to the ML in the computation of the reported ML.

Shellfish

Organisms identified by the California Department of Health Services as shellfish for public health purposes (i.e., mussels, clams and oysters).

Significant Difference

Defined as a statistically significant difference in the means of two distributions of sampling results at the 95 percent confidence level.

Six-Month Median Effluent Limitation

The highest allowable moving median of all daily discharges for any 180-day period.

State Water Quality Protection Areas (SWQPAs)

Non-terrestrial marine or estuarine areas designated to protect marine species or biological communities from an undesirable alteration in natural water quality. All AREAS OF SPECIAL BIOLOGICAL SIGNIFICANCE (ASBS) that were previously designated by the State Water Board in Resolutions 74-28, 74-32, and 75-61 are now also classified as a subset of State Water Quality Protection Areas and require special protections afforded by the Ocean Plan.

TCDD Equivalents

The sum of the concentrations of chlorinated dibenzodioxins (2,3,7,8-CDDs) and chlorinated dibenzofurans (2,3,7,8-CDFs) multiplied by their respective toxicity factors, as shown in the table below.

Isomer Group	Toxicity Equivalence Factor
	1.0
2,3,7,8-tetra CDD	
2,3,7,8-penta CDD	0.5
2,3,7,8-hexa CDDs	0.1
2,3,7,8-hepta CDD	0.01
octa CDD	0.001
2,3,7,8 tetra CDF	0.1
1,2,3,7,8 penta CDF	0.05
2,3,4,7,8 penta CDF	0.5
2,3,7,8 hexa CDFs	0.1
2,3,7,8 hepta CDFs	0.01
octa CDF	0.001

Toxicity Reduction Evaluation (TRE)

A study conducted in a step-wise process designed to identify the causative agents of effluent or ambient toxicity, isolate the sources of toxicity, evaluate the effectiveness of toxicity control options, and then confirm the reduction in toxicity. The first steps of the TRE consist of the collection of data relevant to the toxicity, including additional toxicity testing, and an evaluation of facility operations and maintenance practices, and best management practices. A Toxicity Identification Evaluation (TIE) may be required as part of the TRE, if appropriate. (A TIE is a set of procedures to identify the specific chemical(s) responsible for toxicity. These procedures are performed in three phases (characterization, identification, and confirmation) using aquatic organism toxicity tests.)

Waste

As used in the Ocean Plan, waste includes a Discharger's total discharge, of whatever origin, i.e., gross, not net, discharge.

Water Recycling

The treatment of wastewater to render it suitable for reuse, the transportation of treated wastewater to the place of use, and the actual use of treated wastewater for a direct beneficial use or controlled use that would not otherwise occur.

ATTACHMENT B – MAP

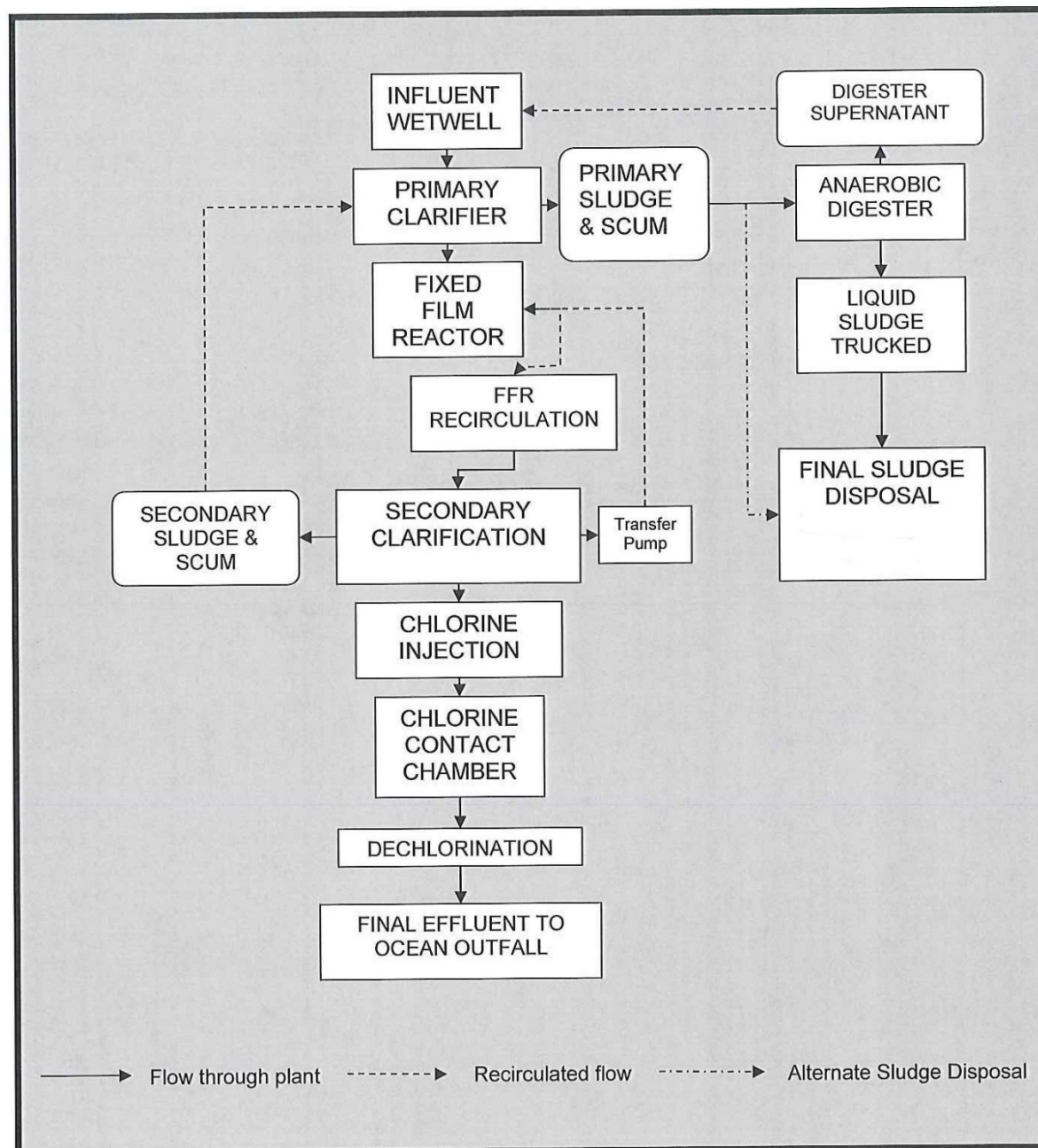


ATTACHMENT C – FLOW SCHEMATIC

ATTACHMENT A

AVILA BEACH COMMUNITY SERVICES DISTRICT

2013 ANNUAL SUMMARY
Flow Diagram for Avila Beach CSD WWTP



ATTACHMENT D – STANDARD PROVISIONS

I. STANDARD PROVISIONS – PERMIT COMPLIANCE

A. Duty to Comply

1. The Discharger must comply with all of the terms, requirements, and conditions of this Order. Any noncompliance constitutes a violation of the Clean Water Act (CWA) and the California Water Code and is grounds for enforcement action; permit termination, revocation and reissuance, or modification; denial of a permit renewal application; or a combination thereof. (40 C.F.R. § 122.41(a); Wat. Code, §§ 13261, 13263, 13265, 13268, 13000, 13001, 13304, 13350, 13385.)
2. The Discharger shall comply with effluent standards or prohibitions established under Section 307(a) of the CWA for toxic pollutants and with standards for sewage sludge use or disposal established under Section 405(d) of the CWA within the time provided in the regulations that establish these standards or prohibitions, even if this Order has not yet been modified to incorporate the requirement. (40 C.F.R. § 122.41(a)(1).)

B. Need to Halt or Reduce Activity Not a Defense

It shall not be a defense for a Discharger in an enforcement action that it would have been necessary to halt or reduce the permitted activity in order to maintain compliance with the conditions of this Order. (40 C.F.R. § 122.41(c).)

C. Duty to Mitigate

The Discharger shall take all reasonable steps to minimize or prevent any discharge or sludge use or disposal in violation of this Order that has a reasonable likelihood of adversely affecting human health or the environment. (40 C.F.R. § 122.41(d).)

D. Proper Operation and Maintenance

The Discharger shall at all times properly operate and maintain all facilities and systems of treatment and control (and related appurtenances) which are installed or used by the Discharger to achieve compliance with the conditions of this Order. Proper operation and maintenance also includes adequate laboratory controls and appropriate quality assurance procedures. This provision requires the operation of backup or auxiliary facilities or similar systems that are installed by a Discharger only when necessary to achieve compliance with the conditions of this Order. (40 C.F.R. § 122.41(e).)

E. Property Rights

1. This Order does not convey any property rights of any sort or any exclusive privileges. (40 C.F.R. § 122.41(g).)
2. The issuance of this Order does not authorize any injury to persons or property or invasion of other private rights, or any infringement of state or local law or regulations. (40 C.F.R. § 122.5(c).)

F. Inspection and Entry

The Discharger shall allow the Central Coast Water Board, State Water Board, U.S. EPA, and/or their authorized representatives (including an authorized contractor acting as their representative), upon the presentation of credentials and other documents, as may be required by law, to (33 U.S.C. § 1318(a)(4)(b); 40 C.F.R. § 122.41(i); Wat. Code, §§ 13267, 13383):

1. Enter upon the Discharger's premises where a regulated facility or activity is located or conducted, or where records are kept under the conditions of this Order (33 U.S.C. § 1318(a)(4)(b)(i); 40 C.F.R. § 122.41(i)(1); Wat. Code, §§ 13267, 13383);
2. Have access to and copy, at reasonable times, any records that must be kept under the conditions of this Order (33 U.S.C. § 1318(a)(4)(b)(ii); 40 C.F.R. § 122.41(i)(2); Wat. Code, §§ 13267, 13383);
3. Inspect and photograph, at reasonable times, any facilities, equipment (including monitoring and control equipment), practices, or operations regulated or required under this Order (33 U.S.C. § 1318(a)(4)(b)(ii); 40 C.F.R. § 122.41(i)(3); Wat. Code, §§ 13267, 13383); and
4. Sample or monitor, at reasonable times, for the purposes of assuring Order compliance or as otherwise authorized by the CWA or the Water Code, any substances or parameters at any location. (33 U.S.C. § 1318(a)(4)(b); 40 C.F.R. § 122.41(i)(4); Wat. Code, §§ 13267, 13383.)

G. Bypass

1. Definitions
 - a. "Bypass" means the intentional diversion of waste streams from any portion of a treatment facility. (40 C.F.R. § 122.41(m)(1)(i).)
 - b. "Severe property damage" means substantial physical damage to property, damage to the treatment facilities, which causes them to become inoperable, or substantial and permanent loss of natural resources that can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production. (40 C.F.R. § 122.41(m)(1)(ii).)
2. Bypass not exceeding limitations. The Discharger may allow any bypass to occur which does not cause exceedances of effluent limitations, but only if it is for essential maintenance to assure efficient operation. These bypasses are not subject to the provisions listed in Standard Provisions – Permit Compliance I.G.3, I.G.4, and I.G.5 below. (40 C.F.R. § 122.41(m)(2).)
3. Prohibition of bypass. Bypass is prohibited, and the Central Coast Water Board may take enforcement action against a Discharger for bypass, unless (40 C.F.R. § 122.41(m)(4)(i)):
 - a. Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage (40 C.F.R. § 122.41(m)(4)(i)(A));
 - b. There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass that occurred during normal periods of equipment downtime or preventive maintenance (40 C.F.R. § 122.41(m)(4)(i)(B)); and

- c. The Discharger submitted notice to the Central Coast Water Board as required under Standard Provisions – Permit Compliance I.G.5 below. (40 C.F.R. § 122.41(m)(4)(i)(C).)
4. The Central Coast Water Board may approve an anticipated bypass, after considering its adverse effects, if the Central Coast Water Board determines that it will meet the three conditions listed in Standard Provisions – Permit Compliance I.G.3 above. (40 C.F.R. § 122.41(m)(4)(ii).)
5. Notice
 - a. Anticipated bypass. If the Discharger knows in advance of the need for a bypass, it shall submit a notice, if possible at least 10 days before the date of the bypass. (40 C.F.R. § 122.41(m)(3)(i).)
 - b. Unanticipated bypass. The Discharger shall submit notice of an unanticipated bypass as required in Standard Provisions - Reporting V.E below (24-hour notice). (40 C.F.R. § 122.41(m)(3)(ii).)

H. Upset

Upset means an exceptional incident in which there is unintentional and temporary noncompliance with technology based permit effluent limitations because of factors beyond the reasonable control of the Discharger. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation. (40 C.F.R. § 122.41(n)(1).)

1. Effect of an upset. An upset constitutes an affirmative defense to an action brought for noncompliance with such technology based permit effluent limitations if the requirements of Standard Provisions – Permit Compliance I.H.2 below are met. No determination made during administrative review of claims that noncompliance was caused by upset, and before an action for noncompliance, is final administrative action subject to judicial review. (40 C.F.R. § 122.41(n)(2).)
2. Conditions necessary for a demonstration of upset. A Discharger who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed, contemporaneous operating logs or other relevant evidence that (40 C.F.R. § 122.41(n)(3)):
 - a. An upset occurred and that the Discharger can identify the cause(s) of the upset (40 C.F.R. § 122.41(n)(3)(i));
 - b. The permitted facility was, at the time, being properly operated (40 C.F.R. § 122.41(n)(3)(ii));
 - c. The Discharger submitted notice of the upset as required in Standard Provisions – Reporting V.E.2.b below (24-hour notice) (40 C.F.R. § 122.41(n)(3)(iii)); and
 - d. The Discharger complied with any remedial measures required under Standard Provisions – Permit Compliance I.C above. (40 C.F.R. § 122.41(n)(3)(iv).)
3. Burden of proof. In any enforcement proceeding, the Discharger seeking to establish the occurrence of an upset has the burden of proof. (40 C.F.R. § 122.41(n)(4).)

II. STANDARD PROVISIONS – PERMIT ACTION

A. General

This Order may be modified, revoked and reissued, or terminated for cause. The filing of a request by the Discharger for modification, revocation and reissuance, or termination, or a notification of planned changes or anticipated noncompliance does not stay any Order condition. (40 C.F.R. § 122.41(f).)

B. Duty to Reapply

If the Discharger wishes to continue an activity regulated by this Order after the expiration date of this Order, the Discharger must apply for and obtain a new permit. (40 C.F.R. § 122.41(b).)

C. Transfers

This Order is not transferable to any person except after notice to the Central Coast Water Board. The Central Coast Water Board may require modification or revocation and reissuance of the Order to change the name of the Discharger and incorporate such other requirements as may be necessary under the CWA and the Water Code. (40 C.F.R. §§ 122.41(l)(3), 122.61.)

III. STANDARD PROVISIONS – MONITORING

- A. Samples and measurements taken for the purpose of monitoring shall be representative of the monitored activity. (40 C.F.R. § 122.41(j)(1).)
- B. Monitoring results must be conducted according to test procedures approved under 40 C.F.R. part 136 for the analyses of pollutants unless another method is required under 40 C.F.R. subchapters N or O. In the case of pollutants for which there are no approved methods under 40 C.F.R. part 136 or otherwise required under 40 C.F.R. subchapters N or O, monitoring must be conducted according to a test procedure specified in this Order for such pollutants. (40 C.F.R. §§ 122.41(j)(4), 122.44(i)(1)(iv).)

IV. STANDARD PROVISIONS – RECORDS

- A. Except for records of monitoring information required by this Order related to the Discharger's sewage sludge use and disposal activities, which shall be retained for a period of at least five years (or longer as required by 40 C.F.R. part 503), the Discharger shall retain records of all monitoring information, including all calibration and maintenance records and all original strip chart recordings for continuous monitoring instrumentation, copies of all reports required by this Order, and records of all data used to complete the application for this Order, for a period of at least three (3) years from the date of the sample, measurement, report or application. This period may be extended by request of the Central Coast Water Board Executive Officer at any time. (40 C.F.R. § 122.41(j)(2).)
- B. **Records of monitoring information shall include:**
 - 1. The date, exact place, and time of sampling or measurements (40 C.F.R. § 122.41(j)(3)(i));
 - 2. The individual(s) who performed the sampling or measurements (40 C.F.R. § 122.41(j)(3)(ii));
 - 3. The date(s) analyses were performed (40 C.F.R. § 122.41(j)(3)(iii));
 - 4. The individual(s) who performed the analyses (40 C.F.R. § 122.41(j)(3)(iv));
 - 5. The analytical techniques or methods used (40 C.F.R. § 122.41(j)(3)(v)); and

6. The results of such analyses. (40 C.F.R. § 122.41(j)(3)(vi).)

C. Claims of confidentiality for the following information will be denied (40 C.F.R. § 122.7(b)):

1. The name and address of any permit applicant or Discharger (40 C.F.R. § 122.7(b)(1)); and
2. Permit applications and attachments, permits and effluent data. (40 C.F.R. § 122.7(b)(2).)

V. STANDARD PROVISIONS – REPORTING

A. Duty to Provide Information

The Discharger shall furnish to the Central Coast Water Board, State Water Board, or U.S. EPA within a reasonable time, any information which the Central Coast Water Board, State Water Board, or U.S. EPA may request to determine whether cause exists for modifying, revoking and reissuing, or terminating this Order or to determine compliance with this Order. Upon request, the Discharger shall also furnish to the Central Coast Water Board, State Water Board, or U.S. EPA copies of records required to be kept by this Order. (40 C.F.R. § 122.41(h); Wat. Code, §§ 13267, 13383.)

B. Signatory and Certification Requirements

1. All applications, reports, or information submitted to the Central Coast Water Board, State Water Board, and/or U.S. EPA shall be signed and certified in accordance with Standard Provisions – Reporting V.B.2, V.B.3, V.B.4, and V.B.5 below. (40 C.F.R. § 122.41(k).)
2. All permit applications shall be signed by either a principal executive officer or ranking elected official. For purposes of this provision, a principal executive officer of a federal agency includes: (i) the chief executive officer of the agency, or (ii) a senior executive officer having responsibility for the overall operations of a principal geographic unit of the agency (e.g., Regional Administrators of U.S. EPA). (40 C.F.R. § 122.22(a)(3).)
3. All reports required by this Order and other information requested by the Central Coast Water Board, State Water Board, or U.S. EPA shall be signed by a person described in Standard Provisions – Reporting V.B.2 above, or by a duly authorized representative of that person. A person is a duly authorized representative only if:
 - a. The authorization is made in writing by a person described in Standard Provisions – Reporting V.B.2 above (40 C.F.R. § 122.22(b)(1));
 - b. The authorization specifies either an individual or a position having responsibility for the overall operation of the regulated facility or activity such as the position of plant manager, operator of a well or a well field, superintendent, position of equivalent responsibility, or an individual or position having overall responsibility for environmental matters for the company. (A duly authorized representative may thus be either a named individual or any individual occupying a named position.) (40 C.F.R. § 122.22(b)(2)); and
 - c. The written authorization is submitted to the Central Coast Water Board and State Water Board. (40 C.F.R. § 122.22(b)(3).)
4. If an authorization under Standard Provisions – Reporting V.B.3 above is no longer accurate because a different individual or position has responsibility for the overall operation of the facility, a new authorization satisfying the requirements of Standard

Provisions – Reporting V.B.3 above must be submitted to the Central Coast Water Board and State Water Board prior to or together with any reports, information, or applications, to be signed by an authorized representative. (40 C.F.R. § 122.22(c).)

5. Any person signing a document under Standard Provisions– Reporting V.B.2 or V.B.3 above shall make the following certification:

“I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.” (40 C.F.R. § 122.22(d).)

C. Monitoring Reports

1. Monitoring results shall be reported at the intervals specified in the Monitoring and Reporting Program (Attachment E) in this Order. (40 C.F.R. § 122.41(l)(4).)
2. Monitoring results must be reported on a Discharge Monitoring Report (DMR) form or forms provided or specified by the Central Coast Water Board or State Water Board for reporting results of monitoring of sludge use or disposal practices. (40 C.F.R. § 122.41(l)(4)(i).)
3. If the Discharger monitors any pollutant more frequently than required by this Order using test procedures approved under 40 C.F.R. part 136, or another method required for an industry-specific waste stream under 40 C.F.R. subchapters N or O, the results of such monitoring shall be included in the calculation and reporting of the data submitted in the DMR or sludge reporting form specified by the Central Coast Water Board. (40 C.F.R. § 122.41(l)(4)(ii).)
4. Calculations for all limitations, which require averaging of measurements, shall utilize an arithmetic mean unless otherwise specified in this Order. (40 C.F.R. § 122.41(l)(4)(iii).)

D. Compliance Schedules

Reports of compliance or noncompliance with, or any progress reports on, interim and final requirements contained in any compliance schedule of this Order, shall be submitted no later than 14 days following each schedule date. (40 C.F.R. § 122.41(l)(5).)

E. Twenty-Four Hour Reporting

1. The Discharger shall report any noncompliance that may endanger health or the environment. Any information shall be provided orally within 24 hours from the time the Discharger becomes aware of the circumstances. A written submission shall also be provided within five (5) days of the time the Discharger becomes aware of the circumstances. The written submission shall contain a description of the noncompliance and its cause; the period of noncompliance, including exact dates and times, and if the noncompliance has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the noncompliance. (40 C.F.R. § 122.41(l)(6)(i).)
2. The following shall be included as information that must be reported within 24 hours under this paragraph (40 C.F.R. § 122.41(l)(6)(ii)):

- a. Any unanticipated bypass that exceeds any effluent limitation in this Order. (40 C.F.R. § 122.41(l)(6)(ii)(A).)
 - b. Any upset that exceeds any effluent limitation in this Order. (40 C.F.R. § 122.41(l)(6)(ii)(B).)
3. The Central Coast Water Board may waive the above-required written report under this provision on a case-by-case basis if an oral report has been received within 24 hours. (40 C.F.R. § 122.41(l)(6)(iii).)

F. Planned Changes

The Discharger shall give notice to the Central Coast Water Board as soon as possible of any planned physical alterations or additions to the permitted facility. Notice is required under this provision only when (40 C.F.R. § 122.41(l)(1)):

1. The alteration or addition to a permitted facility may meet one of the criteria for determining whether a facility is a new source in section 122.29(b) (40 C.F.R. § 122.41(l)(1)(i)); or
2. The alteration or addition could significantly change the nature or increase the quantity of pollutants discharged. This notification applies to pollutants that are not subject to effluent limitations in this Order. (40 C.F.R. § 122.41(l)(1)(ii).)
3. The alteration or addition results in a significant change in the Discharger's sludge use or disposal practices, and such alteration, addition, or change may justify the application of permit conditions that are different from or absent in the existing permit, including notification of additional use or disposal sites not reported during the permit application process or not reported pursuant to an approved land application plan. (40 C.F.R. § 122.41(l)(1)(iii).)

G. Anticipated Noncompliance

The Discharger shall give advance notice to the Central Coast Water Board or State Water Board of any planned changes in the permitted facility or activity that may result in noncompliance with this Order's requirements. (40 C.F.R. § 122.41(l)(2).)

H. Other Noncompliance

The Discharger shall report all instances of noncompliance not reported under Standard Provisions – Reporting V.C, V.D, and V.E above at the time monitoring reports are submitted. The reports shall contain the information listed in Standard Provision – Reporting V.E above. (40 C.F.R. § 122.41(l)(7).)

I. Other Information

When the Discharger becomes aware that it failed to submit any relevant facts in a permit application, or submitted incorrect information in a permit application or in any report to the Central Coast Water Board, State Water Board, or U.S. EPA, the Discharger shall promptly submit such facts or information. (40 C.F.R. § 122.41(l)(8).)

VI. STANDARD PROVISIONS – ENFORCEMENT

The Central Coast Water Board is authorized to enforce the terms of this permit under several provisions of the Water Code, including, but not limited to, sections 13268, 13385, 13386, and 13387.

VII. ADDITIONAL PROVISIONS – NOTIFICATION LEVELS

A. Publicly Owned Treatment Works (POTW's)

All POTW's shall provide adequate notice to the Central Coast Water Board of the following (40 C.F.R. § 122.42(b)):

1. Any new introduction of pollutants into the POTW from an indirect discharger that would be subject to sections 301 or 306 of the CWA if it were directly discharging those pollutants (40 C.F.R. § 122.42(b)(1)); and
2. Any substantial change in the volume or character of pollutants being introduced into that POTW by a source introducing pollutants into the POTW at the time of adoption of the Order. (40 C.F.R. § 122.42(b)(2).)
3. Adequate notice shall include information on the quality and quantity of effluent introduced into the POTW as well as any anticipated impact of the change on the quantity or quality of effluent to be discharged from the POTW. (40 C.F.R. § 122.42(b)(3).)

VIII. CENTRAL COAST WATER BOARD STANDARD PROVISIONS

A. Central Coast Standard Provision – Prohibitions

1. Introduction of “incompatible wastes” to the treatment system is prohibited.
2. Discharge of high-level radiological waste and of radiological, chemical, and biological warfare agents is prohibited.
3. Discharge of “toxic pollutants” in violation of effluent standards and prohibitions established under section 307(a) of the Clean Water Act (CWA) is prohibited.
4. Discharge of sludge, sludge digester or thickener supernatant, and sludge drying bed leachate to drainageways, surface waters, or the ocean is prohibited.
5. Introduction of pollutants into the collection, treatment, or disposal system by and “indirect discharger” that:
 - a. Inhibit or disrupt the treatment process, system operation, or the eventual use or disposal of sludge; or,
 - b. Flow through the system to the receiving water untreated; and,
 - c. Cause or “significantly contribute” to a violation of any requirement of this Order, is prohibited.
6. Introduction of “pollutant free” wastewater to the collection, treatment, and disposal system in amounts that threaten compliance with this order is prohibited.

B. Central Coast Standard Provision – Provisions

1. Collection, treatment, and discharge of waste shall not create a nuisance or pollution, as defined by California Water Code (CWC) 13050.
2. All facilities used for transport or treatment of wastes shall be adequately protected from inundation and washout as the result of a 100-year frequency flood.
3. Operation of collection, treatment, and disposal systems shall be in a manner that precludes public contact with wastewater.
4. Collected screenings, sludges, and other solids removed from liquid wastes shall be disposed in a manner approved by the Executive Officer.
5. Publicly owned wastewater treatment plans shall be supervised and operated by persons possessing certificates of appropriate grade pursuant to Title 23 of the California Administrative Code.

6. After notice and opportunity for a hearing, this order may be terminated for cause, including, but not limited to:
 - a. Violation of any term or condition contained in this order;
 - b. Obtaining this order by misrepresentation, or by failure to disclose fully all relevant facts;
 - c. A change in any condition or endangerment to human health or environment that requires a temporary or permanent reduction or elimination of the authorized discharge; and,
 - d. A substantial change in character, location, or volume of the discharge.
7. Provisions of this permit are severable. If any provision of the permit is found invalid, the remainder of the permit shall not be affected.
8. After notice and opportunity for hearing, this order may be modified or revoked and reissued for cause, including:
 - a. Promulgation of a new or revised effluent standard or limitation;
 - b. A material change in character, location, or volume of the discharge;
 - c. Access to new information that affects the terms of the permit, including applicable schedules;
 - d. Correction of technical mistakes or mistaken interpretations of law; and,
 - e. Other causes set forth under Sub-part D of 40 CFR Part 122.
9. Safeguards shall be provided to ensure maximal compliance with all terms and conditions of this permit. Safeguards shall include preventative and contingency plans and may also include alternative power sources, stand-by generators, retention capacity, operative procedures, or other precautions. Preventative and contingency plans for controlling and minimizing the effect of accidental discharges shall:
 - a. Identify possible situations that could cause "upset," "overflow," or "bypass," or other noncompliance. (Loading and storage areas, power outage, waste treatment unit outage, and failure of process equipment, tanks and pipes should be considered).
 - b. Evaluate the effectiveness of present facilities and procedures and describe procedures and steps to minimize or correct any adverse environmental impact resulting from noncompliance with the permit.
10. Physical Facilities shall be designed and constructed according to accepted engineering practice and shall be capable of full compliance with this order when properly operated and maintained. Proper operation and maintenance shall be described in an Operation and Maintenance Manual. Facilities shall be accessible during the wet-weather season.
11. The discharger shall at all times properly operate and maintain all facilities and systems of treatment and control (and related appurtenances) that are installed or used by the discharger to achieve compliance with the conditions of this order. Electrical and mechanical equipment shall be maintained in accordance with appropriate practices and standards, such as NFPA 70B, *Recommended Practice for Electrical Equipment Maintenance*; NFPA 70E, *Standard for Electrical Safety in the Workplace*; ANSI/NETA MTS *Standard for Maintenance: Testing Specifications for Electrical Power Equipment and Systems*, or procedures established by insurance companies or industry resources.

12. If the discharger's facilities are equipped with SCADA or other systems that implement wireless, remote operation, the discharger should implement appropriate safeguards against unauthorized access to the wireless systems. Standards such as NIST SP 800-53, *Recommended Security Controls for Federal Information Systems*, can provide guidance.
13. Production and use of reclaimed water is subject to the approval of the Central Coast Board. Production and use of reclaimed water shall be in conformance with reclamation criteria established in Chapter 3, Title 22, of the California Administrative Code and Chapter 7, Division 7, of the CWC. An engineering report pursuant to section 60323, Title 22, of the California Administrative Code is required and a waiver or water reclamation requirements from the Central Coast Board is required before reclaimed water is supplied for any use, or to any user, not specifically identified and approved either in this Order or another order issued by this Board.
14. Order or another order issued by this Board.

C. Central Coast Standard Provisions – General Monitoring Requirements

1. If results of monitoring a pollutant appear to violate effluent limitations based on a weekly, monthly, 30-day, or six-month period, but compliance or non-compliance cannot be validated because sampling is too infrequent, the frequency of sampling shall be increased to validate the test within the next monitoring period. The increased frequency shall be maintained until the Executive Officer agrees the original monitoring frequency may be resumed.

For example, if copper is monitored annually and results exceed the six-month median numerical effluent limitation in the permit, monitoring of copper must be increased to a frequency of at least once every two months (Central Coast Standard Provisions – Definitions I.G.13.). If suspended solids are monitored weekly and results exceed the weekly average numerical limit in the permit, monitoring of suspended solids must be increased to at least four (4) samples every week (Central Coast Standard Provisions – Definitions I.G.14.).

2. Water quality analyses performed in order to monitor compliance with this permit shall be by a laboratory certified by the State Department of Health Services (DHS) for the constituent(s) being analyzed. Bioassay(s) performed in order to monitor compliance with this permit shall be in accord with guidelines approved by the State Water Resources Control Board (State Water Board) and the State Department of Fish and Game. If the laboratory used or proposed for use by the discharger is not certified by the DHS or, where appropriate, the Department of Fish and Game due to restrictions in the State's laboratory certification program, the discharger shall be considered in compliance with this provision provided:
 - a. Data results remain consistent with results of samples analyzed by the Central Coast Water Board;
 - b. A quality assurance program is used at the laboratory, including a manual containing steps followed in this program that is available for inspections by the staff of the Central Coast Water Board; and,
 - c. Certification is pursued in good faith and obtained as soon as possible after the program is reinstated.

3. Samples and measurements taken for the purpose of monitoring shall be representative of the monitored activity. Samples shall be taken during periods of peak loading conditions. Influent samples shall be samples collected from the combined flows of all incoming wastes, excluding recycled wastes. Effluent samples shall be samples collected downstream of the last treatment unit and tributary flow and upstream of any mixing with receiving waters.
4. All monitoring instruments and devices used by the discharger to fulfill the prescribed monitoring program shall be properly maintained and calibrated as necessary to ensure their continued accuracy.

D. Central Coast Standard Provisions – General Reporting Requirements

1. Reports of marine monitoring surveys conducted to meet receiving water monitoring requirements of the Monitoring and Reporting Program shall include at least the following information:
 - a. A description of climatic and receiving water characteristics at the time of sampling (weather observations, floating debris, discoloration, wind speed and direction, swell or wave action, time of sampling, tide height, etc.).
 - b. A description of sampling stations, including differences unique to each station (e.g., station location, grain size, rocks, shell litter, calcareous worm tubes, evident life, etc.).
 - c. A description of the sampling procedures and preservation sequence used in the survey.
 - d. A description of the exact method used for laboratory analysis. In general, analysis shall be conducted according to Central Coast Standard Provisions – C.1 above, and Federal Standard Provision – Monitoring III.B. However, variations in procedure are acceptable to accommodate the special requirements of sediment analysis. All such variations must be reported with the test results.
 - e. A brief discussion of the results of the survey. The discussion shall compare data from the control station with data from the outfall stations. All tabulations and computations shall be explained.
2. Reports of compliance or noncompliance with, or any progress reports on, interim and final requirements contained in any compliance schedule shall be submitted within 14 days following each scheduled date unless otherwise specified within the permit. If reporting noncompliance, the report shall include a description of the reason, a description and schedule of tasks necessary to achieve compliance, and an estimated date for achieving full compliance. A second report shall be submitted within 14 days of full compliance.
3. The “Discharger” shall file a report of waste discharge or secure a waiver from the Executive Officer at least 180 days before making any material change or proposed change in the character, location, or plume of the discharge.
4. Within 120 days after the discharger discovers, or is notified by the Central Coast Water Board, that monthly average daily flow will or may reach design capacity of waste treatment and/or disposal facilities within four (4) years, the discharger shall file a written report with the Central Coast Water Board. The report shall include:
 - a. the best estimate of when the monthly average daily dry weather flow rate will equal or exceed design capacity; and,

- b. a schedule for studies, design, and other steps needed to provide additional capacity for waste treatment and/or disposal facilities before the waste flow rate equals the capacity of present units.
 - c. In addition to complying with Federal Standard Provision – Reporting V.B., the required technical report shall be prepared with public participation and reviewed, approved and jointly submitted by all planning and building departments having jurisdiction in the area served by the waste collection, treatment, or disposal facilities.
- 5. All “Dischargers” shall submit reports electronically to the:

California Regional Water Quality Control Board
Central Coast Region
centralcoast@waterboards.ca.gov
895 Aerovista Place, Suite 101
San Luis Obispo, CA 93401-7906

In addition, "Dischargers" with designated major discharges shall submit a copy of each document to:

Regional Administrator
U.S. EPA, Region 9
Attention: CWA Standards and Permits Office (WTR-5)
75 Hawthorne Street
San Francisco, California 94105
- 6. Transfer of control or ownership of a waste discharge facility must be preceded by a notice to the Central Coast Water Board at least 30 days in advance of the proposed transfer date. The notice must include a written agreement between the existing “Discharger” and proposed “Discharger” containing specific date for transfer of responsibility, coverage, and liability between them. Whether a permit may be transferred without modification or revocation and reissuance is at the discretion of the Board. If permit modification or revocation and reissuance is necessary, transfer may be delayed 180 days after the Central Coast Water Board's receipt of a complete permit application. Please also see Federal Standard Provision – Permit Action II.C.
- 7. Except for data determined to be confidential under CWA §308 (excludes effluent data and permit applications), all reports prepared in accordance with this permit shall be available for public inspection at the office of the Central Coast Water Board or Regional Administrator of U.S. EPA. Please also see Federal Standard Provision – Records IV.C.
- 8. By January 30 of each year, the discharger shall submit an annual report to the Central Coast Water Board. The report shall contain the following:
 - a. Both tabular and graphical summaries of the monitoring data obtained during the previous year.
 - b. A discussion of the previous year's compliance record and corrective actions taken, or which may be needed, to bring the discharger into full compliance.
 - c. An evaluation of wastewater flows with projected flow rate increases over time and the estimated date when flows will reach facility capacity.
 - d. A discussion of operator certification and a list of current operating personnel and their grades of certification.

- e. The date of the facility's Operation and Maintenance Manual (including contingency plans as described in Provision B.9), the date the manual was last reviewed, and whether the manual is complete and valid for the current facility.
- f. A discussion of the laboratories used by the discharger to monitor compliance with effluent limits and a summary of performance relative to Section C, General Monitoring Requirements.

If the facility treats industrial or domestic wastewater and there is no provision for periodic sludge monitoring in the Monitoring and Reporting Program, the report shall include a summary of sludge quantities, analyses of its chemical and moisture content, and its ultimate destination.

If appropriate, the report shall also evaluate the effectiveness of the local source control or pretreatment program using the State Water Resources Control Board's "Guidelines for Determining the Effectiveness of Local Pretreatment Program."

E. Central Coast Standard Provisions – General Pretreatment Provisions

1. Discharge of pollutants by "indirect dischargers" in specific industrial sub-categories (appendix C, 40 CFR Part 403), where categorical pretreatment standards have been established, or are to be established, (according to 40 CFR Chapter 1, Subchapter N), shall comply with the appropriate pretreatment standards:
 - a. By the date specified therein;
 - b. Within three (3) years of the effective date specified therein, but in no case later than July 1, 1984; or,
 - c. If a new indirect discharger, upon commencement of discharge

F. Central Coast Standard Provision – Enforcement

1. Any person failing to file a report of waste discharge or other report as required by this permit shall be subject to a civil penalty not to exceed \$5,000 per day.
2. Upon reduction, loss, or failure of the treatment facility, the "Discharger" shall, to the extent necessary to maintain compliance with this permit, control production or all discharges, or both, until the facility is restored or an alternative method of treatment is provided.

G. Central Coast Standard Provisions – Definitions (Not otherwise included in Attachment A to this Order)

1. A "composite sample" is a combination of no fewer than eight (8) individual samples obtained at equal time intervals (usually hourly) over the specified sampling (composite) period. The volume of each individual sample is proportional to the flow rate at the time of sampling. The period shall be specified in the Monitoring and Reporting Program ordered by the Executive Officer.
2. "Daily Maximum" limit means the maximum acceptable concentration or mass emission rate of a pollutant measured during a calendar day or during any 24-hour period reasonably representative of the calendar day for purposes of sampling. It is normally compared with results based on "composite samples" except for ammonia, total chlorine, phenolic compounds, and toxicity concentration. For all exceptions, comparisons will be made with results from a "grab sample".

3. "Discharger", as used herein, means, as appropriate: (1) the Discharger, (2) the local sewerage entity (when the collection system is not owned and operated by the Discharger), or (3) "indirect discharger" (where "Discharger" appears in the same paragraph as "indirect discharger", it refers to the discharger.)
4. "Duly Authorized Representative" is one where:
 - a. the authorization is made in writing by a person described in the signatory paragraph of Federal Standard Provision V.B.;
 - b. the authorization specifies either an individual or the occupant of a position having either responsibility for the overall operation of the regulated facility, such as the plant manager, or overall responsibility for environmental matters of the company; and,
 - c. the written authorization was submitted to the Central Coast Water Board.
9. A "grab sample" is defined as any individual sample collected in less than 15 minutes. "Grab samples" shall be collected during peak loading conditions, which may or may not be during hydraulic peaks. It is used primarily in determining compliance with the daily maximum limits identified in Central Coast Standard Provision – Provision G.2. and instantaneous maximum limits.
10. "Hazardous substance" means any substance designated under 40 CFR Part 116 pursuant to Section 311 of the Clean Water Act.
11. "Incompatible wastes" are:
 - a. Wastes which create a fire or explosion hazard in the treatment works;
 - b. Wastes which will cause corrosive structural damage to treatment works, but in no case wastes with a pH lower than 5.0 unless the works is specifically designed to accommodate such wastes;
 - c. Solid or viscous wastes in amounts which cause obstruction to flow in sewers, or which cause other interference with proper operation of treatment works;
 - d. Any waste, including oxygen demanding pollutants (BOD₅, etc), released in such volume or strength as to cause inhibition or disruption in the treatment works and subsequent treatment process upset and loss of treatment efficiency; and,
 - e. Heat in amounts that inhibit or disrupt biological activity in the treatment works or that raise influent temperatures above 40°C (104°F) unless the treatment works is designed to accommodate such heat.
12. "Indirect Discharger" means a non-domestic discharger introducing pollutants into a publicly owned treatment and disposal system.
13. "Log Mean" is the geometric mean. Used for determining compliance of fecal or total coliform populations, it is calculated with the following equation:

$$\text{Log Mean} = (C_1 \times C_2 \times \dots \times C_n)^{1/n},$$

in which "n" is the number of days samples were analyzed during the period and any "C" is the concentration of bacteria (MPN/100 ml) found on each day of sampling. "n" should be five or more.

14. "Mass emission rate" is a daily rate defined by the following equations:

$$\text{mass emission rate (lbs/day)} = 8.34 \times Q \times C; \text{ and,}$$

$$\text{mass emission rate (kg/day)} = 3.79 \times Q \times C,$$

where "C" (in mg/L) is the measured daily constituent concentration or the average of measured daily constituent concentrations and "Q" (in MGD) is the measured daily flowrate or the average of measured daily flow rates over the period of interest.

15. The "Maximum Allowable Mass Emission Rate," whether for a month, week, day, or six-month period, is a daily rate determined with the formulas in paragraph G.10, above, using the effluent concentration limit specified in the permit for the period and the average of measured daily flows (up to the allowable flow) over the period.
16. "Maximum Allowable Six-Month Median Mass Emission Rate" is a daily rate determined with the formulas in Central Coast Standard Provision – Provision G.10, above, using the "six-month Median" effluent limit specified in the permit, and the average of measured daily flows (up to the allowable flow) over a 180-day period.
17. "Median" is the value below which half the samples (ranked progressively by increasing value) fall. It may be considered the middle value, or the average of two middle values.
18. "Monthly Average" (or "Weekly Average", as the case may be) is the arithmetic mean of daily concentrations or of daily mass emission rates over the specified 30-day (or 7-day) period.

$$\text{Average} = (X_1 + X_2 + \dots + X_n) / n$$

in which "n" is the number of days samples were analyzed during the period and "X" is either the constituent concentration (mg/l) or mass emission rate (kg/day or lbs/day) for each sampled day. "n" should be four or greater.

19. "Municipality" means a city, town, borough, county, district, association, or other public body created by or under State law and having jurisdiction over disposal of sewage, industrial waste, or other waste.
20. "Overflow" means the intentional or unintentional diversion of flow from the collection and transport systems, including pumping facilities.
21. "Pollutant-free wastewater" means inflow and infiltration, stormwaters, and cooling waters and condensates which are essentially free of pollutants.
22. "Primary Industry Category" means any industry category listed in 40 CFR Part 122, Appendix A.
23. "Removal Efficiency" is the ratio of pollutants removed by the treatment unit to pollutants entering the treatment unit. Removal efficiencies of a treatment plant shall be determined using "Monthly averages" of pollutant concentrations (C, in mg/l) of influent and effluent samples collected about the same time and the following equation (or its equivalent):
$$C_{\text{Effluent}} \text{ Removal Efficiency (\%)} = 100 \times (1 - C_{\text{Effluent}} / C_{\text{Influent}})$$
24. "Severe property damage" means substantial physical damage to property, damage to treatment facilities which causes them to become inoperable, or substantial and permanent loss to natural resources which can reasonably be expected to occur in the absence of a "bypass". It does not mean economic loss caused by delays in production.
25. "Sludge" means the solids, residues, and precipitates separated from, or created in, wastewater by the unit processes of a treatment system.
26. To "significantly contribute" to a permit violation means an "indirect discharger" must:

- a. Discharge a daily pollutant loading in excess of that allowed by contract with the "Discharger" or by Federal, State, or Local law;
 - b. Discharge wastewater which substantially differs in nature or constituents from its average discharge;
 - c. Discharge pollutants, either alone or in conjunction with discharges from other sources, which results in a permit violation or prevents sewage sludge use or disposal; or
 - d. Discharge pollutants, either alone or in conjunction with pollutants from other sources that increase the magnitude or duration of permit violations.
27. "Toxic Pollutant" means any pollutant listed as toxic under Section 307 (a) (1) of the Clean Water Act or under 40 CFR Part 122, Appendix D. Violation of maximum daily discharge limitations are subject to 24-hour reporting (Federal Standard Provisions V.E.).
28. "Zone of Initial Dilution" means the region surrounding or adjacent to the end of an outfall pipe or diffuser ports whose boundaries are defined through calculation of a plume model verified by the State Water Board.

ATTACHMENT E – MONITORING AND REPORTING PROGRAM

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ATTACHMENT E – MONITORING AND REPORTING PROGRAM (MRP)

Section 308 of the federal Clean Water Act (CWA) and sections 122.41(h), (j)-(l), 122.44(i), and 122.48 of title 40 of the Code of Federal Regulations (40 CFR) require that all NPDES permits specify monitoring and reporting requirements. Water Code sections 13267 and 13383 also authorize the Central Coast Water Board to establish monitoring, inspection, entry, reporting, and recordkeeping requirements. This MRP establishes monitoring, reporting, and recordkeeping requirements that implement the federal and California laws and/or regulations.

I. GENERAL MONITORING PROVISIONS

- A. Laboratory Certification. Laboratories analyzing monitoring samples shall be certified by the Department of Public Health (DPH), in accordance with the provision of Water Code section 13176, and must include quality assurance/quality control data with their reports.
- B. Samples and measurements taken as required herein shall be representative of the volume and nature of the monitored discharge. All samples shall be taken at the monitoring locations specified below and, unless otherwise specified, before the monitored flow joins or is diluted by any other waste stream, body of water, or substance. Monitoring locations shall not be changed without notification to and approval of the Central Coast Water Board.
- C. Appropriate flow measurement devices and methods consistent with accepted scientific practices shall be selected and used to ensure the accuracy and reliability of measurements of the volume of monitored discharges. The devices shall be installed, calibrated, and maintained to ensure that the accuracy of the measurements is consistent with the accepted capability of that type of device. Devices selected shall be capable of measuring flows with a maximum deviation of less than ± 10 percent from true discharge rates throughout the range of expected discharge volumes. Guidance in selection, installation, calibration, and operation of acceptable flow measurement devices can be obtained from the following references.
 - 1. *A Guide to Methods and Standards for the Measurement of Water Flow, U.S. Department of Commerce, National Bureau of Standards*, NBS Special Publication 421, May 1975, 96 pp. (Available from the U.S. Government Printing Office, Washington, D.C. 20402. Order by SD Catalog No. C13.10:421.)
 - 2. *Water Measurement Manual, U.S. Department of Interior, Bureau of Reclamation, Second Edition, Revised Reprint*, 1974, 327 pp. (Available from the U.S. Government Printing Office, Washington D.C. 20402. Order by Catalog No. 172.19/2:W29/2, Stock No. S/N 240030027.)
 - 3. *Flow Measurement in Open Channels and Closed Conduits, U.S. Department of Commerce, National Bureau of Standards*, NBS Special Publication 484, October 1977, 982 pp. (Available in paper copy or microfiche from National Technical Information Services (NTIS) Springfield, VA 22151. Order by NTIS No. PB-273 535/5ST.)
 - 4. *NPDES Compliance Sampling Manual, U.S. Environmental Protection Agency, Office of Water Enforcement*, Publication MCD-51, 1977, 140 pp. (Available from the General Services Administration (8FFS), Centralized Mailing Lists Services, Building 41, Denver Federal Center, CO 80225.)
- D. All monitoring instruments and devices used by the Discharger to fulfill the prescribed monitoring program shall be properly maintained and calibrated as necessary to ensure their continued accuracy. All flow measurement devices shall be calibrated at least once per year to ensure continued accuracy of the devices.

- E. Monitoring results, including noncompliance, shall be reported at intervals and in a manner specified in this MRP.
- F. Unless otherwise specified by this MRP, all monitoring shall be conducted according to test procedures established at 40 C.F.R. 136, *Guidelines Establishing Test Procedures for Analysis of Pollutants*. All analyses shall be conducted using the lowest practical quantitation limit achievable using the specified methodology. Where effluent limitations are set below the lowest achievable quantitation limits, pollutants not detected at the lowest practical quantitation limits will be considered in compliance with effluent limitations. Analysis for toxics listed by the California Toxics Rule shall also adhere to guidance and requirements contained in the *Policy for Implementation of Toxics Standards for Inland Surface Waters, Enclosed Bays, and Estuaries of California* (2005). Analyses for toxics listed in Table 1 of the California Ocean Plan (2012) shall adhere to guidance and requirements contained in that document.

II. MONITORING LOCATIONS

The Discharger shall establish the following monitoring locations to demonstrate compliance with the effluent limitations, discharge specifications, and other requirements in this Order:

Table E-1. Monitoring Station Locations

Discharge Point Name	Monitoring Location Name	Monitoring Location Description
--	INF-001	Influent wastewater prior to treatment and following all significant inputs to the collection system or to the headworks of untreated wastewater (excluding brine wastes), upstream of any in-plant return flows, where representative samples of wastewater influent can be obtained
--	INF-002	Influent brine waste via haulers to the brine waste storage facility prior to blending with secondary effluent as applicable.
001	EFF-001 ^[1]	Location where representative effluent sample discharged through the ocean outfall can be collected, after treatment and chlorination/dechlorination steps and before contact with the receiving water.
--	RSW-A	Receiving water station - In the Pacific Ocean 500 feet west of outfall surface.
--	RSW-B	Receiving water station - In the Pacific Ocean at outfall surface.
--	RSW-C	Receiving water station -In the Pacific Ocean 500 feet east of outfall surface.
--	RSW-D	Receiving water station -In the Pacific Ocean end of Avila pier; surface.
--	RSW-E	Receiving water station - San Luis Obispo Creek upstream of tidal influence; surface.
--	RSW-F	Receiving water station -In the Pacific Ocean Outfall terminus; surface.
--	RSW-G	Receiving water station - In the Pacific Ocean surfacing effluent plume when visible; surface.
--	BIO-001	The last point in the biosolids handling process where representative samples of residual solids from the treatment process can be obtained.

^[1] EFF-001 shall be located such that Brine program discharges are prior to the effluent sample collection point.

III. INFLUENT MONITORING REQUIREMENTS

A. Monitoring Location INF-001

1. The Discharger shall monitor influent to the treatment facility at INF-001 as follows:

Table E-2. Influent Monitoring at INF-001

Parameter	Units	Sample Type	Minimum Sampling Frequency
BOD ₅	mg/L	24-hr Composite	1/Week
TSS	mg/L	24-hr Composite	1/Week

B. Monitoring Location INF-002

1. The Discharger shall monitor brine waste delivered to the facility at Monitoring Location INF-002 as follows:

Table E-3. Influent Brine Monitoring at INF-002

Parameter	Units	Sample Type	Minimum Sampling Frequency
Volume Received	Gallons	Metered or Calculated	Per delivery
Other	The Discharger shall report all brine sampling data collected as part of the brine facility operation (i.e., analytical data used to characterize brine waste and determine appropriate blending ratios for discharge). This shall be submitted with monthly SMR reports. The required Brine Study will identify parameters to be monitored based on participating dischargers.		

IV. EFFLUENT MONITORING REQUIREMENTS

A. Monitoring Location EFF-001

1. The Discharger shall monitor treated wastewater at EFF-001 as follows. If more than one analytical test method is listed for a given parameter, the Discharger must select from the listed methods and corresponding Minimum Level:

Table E-4. Effluent Monitoring

Parameter	Units	Sample Type	Minimum Sampling Frequency
Daily Flow	MGD	Metered	1/Day
Maximum Daily Flow	MGD	Metered	1/Day
Mean Daily Flow	MGD	Calculated	1/Day
Total Chlorine Residual	mg/L	Grab	1/Day
Total Coliform Bacteria	MPN/100 mL	Grab	2/Week
pH	pH units	Grab	1/Week
Temperature	°F	Grab	1/Week
BOD ₅	mg/L	24-hr Composite	1/Week
TSS	mg/L	24-hr Composite	1/Week
Settleable Solids	ml/L	Grab	1/Week
Turbidity	NTU	Grab	1/Week
Total Dissolved Solids	mg/L	Grab	1/Month When Brine is Processed

Parameter	Units	Sample Type	Minimum Sampling Frequency
Oil and Grease	mg/L	Grab	1/Month
Ammonia (as N)	mg/L	Grab	2/Year ^[1]
Bis(2-Ethylhexyl) Phthalate	µg/L	24-hr Composite	2/Year ^[1]
Copper	µg/L	24-hr Composite	2/Year ^[1]
Chronic Toxicity	TU _c	24-hr Composite	2/Year ^[1]
Acute Toxicity	TU _a	24-hr Composite	1/Year
Ocean Plan Table 1 Metals ^[2]	µg/L	24-hr Composite	1/Year
Ocean Plan Table 1 Pollutants ^[3]	µg/L	24-hr Composite	1/Year
Remaining Priority Pollutants ^[4]	µg/L	24-hr Composite	1/Year

^[1] Once in 2nd quarter of year, and once in 4th quarter of year

^[2] Those twelve metals (Sb, As, Cd, Cr⁺³, Cr⁺⁶, Cu, Pb, Hg, Ni, Se, Ag, and Zn) with applicable water quality objectives established by Table 1 of the Ocean Plan. Analysis shall be for total recoverable metals.

^[3] Those pollutants in 2012 Ocean Plan Table 1. Analyses, compliance determination, and reporting shall adhere to applicable provisions of the Ocean Plan, including the Standard Monitoring Procedures presented in Appendix III. The Discharger shall ensure its analytical laboratory uses the Minimum Levels (MLs) presented in Ocean Plan Appendix II as the lowest calibration standards. The Discharger shall select the lowest ML necessary to demonstrate compliance with effluent limitations. If effluent limitations are less than the lowest ML, then the Discharger shall use the lowest ML.

^[4] The "Remaining Priority Pollutants" (see Table E-5 below) consist of the priority pollutants listed in Part D of EPA Form 3510-2A (Rev. 1-99) that currently do not have ocean criteria (water quality objectives) per Table 1 of the Ocean Plan. A complete EPA Form 3510-2A is required for all new and renewal NPDES permit applications pursuant to 40 C.F.R. 122.21.

Table E-5. Remaining Priority Pollutants

Volatile Organic Compounds
Bromoform
Chloroethane
2-Chloroethyl Vinyl Ether
1,1-Dichloroethane
trans-1,2-Dichloroethylene
1,2-Dichloropropane
1,3-Dichloropropylene
Methyl Bromide
Methyl Chloride
Methylene Chloride
Acid-Extractable Compounds
p-Chloro-m-Cresol
2-Chlorophenol
2,4-Dichlorophenol
2,4-Dimethylphenol
4,6-Dinitro-o-Cresol
2-Nitrophenol
4-Nitrophenol
Pentachlorophenol
Phenol
Base-Neutral Compounds
Acenaphthene
Acenaphthylene

Anthracene
Benzo(a)Anthracene
Benzo(a)Pyrene
3,4-Benzo-Fluoranthene
Benzo(g,h,i)Perylene
Benzo(k)Fluoranthene
4-Bromophenyl Phenyl Ether
Butyl Benzyl Phthalate
2-Chloronaphthelene
4-Chlorophenyl Phenyl Ether
Chrysene
Di-N-Octyl Phthalate
Dibenzo(a,h)Anthracene
1,4-Dichlorobenzene
2,6-Dinitrotoluene
Fluorene
Indeno(1,2,3-cd)Pyrene
Naphthalene
Phenanthrene
Pyrene
1,2,4-Trichlorobenzene

V. WHOLE EFFLUENT TOXICITY TESTING REQUIREMENTS

A. Acute Toxicity

Compliance with the acute toxicity objective shall be determined using a U.S. EPA approved protocol as provided in 40 C.F.R. 136 (*Methods for Measuring the Acute Toxicity of Effluents and Receiving Waters to Freshwater and Marine Organisms*, Fifth Edition, October 2002, U.S. EPA Office of Water, EPA-821-R-02-012 or the latest edition).

$$\text{Acute Toxicity (TU}_a\text{)} = 100/96\text{-hr LC}_{50}$$

LC₅₀ (percent waste giving 50% survival of test organisms) shall be determined by 96-hour static or continuous flow bioassay techniques using standard marine test species as specified in EPA-821-R-02-012 and as noted in the following table:

Table E-6. Approved Tests – Acute Toxicity (TU_a)

Species	Scientific Name	Effect	Test Duration
shrimp	<i>Holmesimysis costata</i>	survival	48 or 96 hours
shrimp	<i>Mysidopsis bahia</i>	survival	48 or 96 hours
silversides	<i>Menidia beryllina</i>	survival	48 or 96 hours
sheepshead minnow	<i>Cyprinodon variegatus</i>	survival	48 or 96 hours

If the effluent is to be discharged to a marine or estuarine system (e.g., salinity values in excess of 1,000 mg/L) and originates from a freshwater supply, salinity of the effluent must be increased with dry ocean salts (e.g., FORTY FATHOMS®) to match salinity of the receiving water. This modified effluent shall then be tested using marine species.

Reference toxicant test results shall be submitted with the effluent sample test results. Both tests must satisfy the test acceptability criteria specified in EPA-821-R-02-012. If the test acceptability criteria are not achieved or if toxicity is detected, the sample shall be retaken

and retested within 5 days of the failed sampling event. The retest results shall be reported in accordance with EPA-821-R-02-012 (chapter on report preparation) and the results shall be attached to the next monitoring report.

When it is not possible to measure the 96-hour LC 50 due to greater than 50 percent survival of the test species in 100 percent waste, the toxicity concentration shall be calculated by the expression:

$$TU_a = [\log(100-S)]/1.7$$

Where S = percentage survival in 100% waste. If $S > 99$, TU_a shall be reported as zero.

When toxicity monitoring finds acute toxicity in the effluent above the effluent limitation established by the Order, the Discharger shall immediately resample the effluent, if the discharge is continuing, and retest for acute toxicity. Results of the initial failed test and any toxicity monitoring results subsequent to the failed test shall be reported as soon as reasonable to the Executive Officer (EO). The EO will determine whether to initiate enforcement action, whether to require the Discharger to implement toxicity reduction evaluation (TRE) requirements (section VI.C.2.a of the Order), or to implement other measures.

B. Chronic Toxicity

The presence of chronic toxicity shall be estimated as specified in *Short Term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to West Coast Marine and Estuarine Organisms*, EPA-821/600/R-95/136; *Short Term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to Marine and Estuarine Organisms*, EPA-600-4-91003; *Procedures Manual for Conducting Toxicity Tests developed by the Marine Bioassay Project*, SWRCB 1996, 96-1WQ; and/or *Short Term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to Marine and Estuarine Organisms*, EPA/600/4-87-028 or subsequent editions.

Chronic toxicity measures a sublethal effect (e.g., reduced growth or reproduction) to experimental test organisms exposed to an effluent compared to that of the control organisms.

$$\text{Chronic Toxicity } (TU_c) = 100/\text{NOEL}$$

The no observed effect level (NOEL) is the maximum tested concentration in a medium which does not cause known adverse effects upon chronic exposure in the species in question (i.e., the highest effluent concentration to which organisms are exposed in a chronic test that causes no observable adverse effects on the test organisms; e.g., the highest concentration of a toxicant to which the values for the observed responses are not statistically significantly different from the controls). Examples of chronic toxicity include but are not limited to measurements of toxicant effects on reproduction, growth, and sublethal effects that can include behavioral, physiological, and biochemical effects.

In accordance with the 2012 Ocean Plan, Appendix III, Standard Monitoring Procedures, the Discharger shall use the critical life stage toxicity tests specified in the table below to measure TU_c . Other species or protocols will be added to the list after State Water Resources Control Board review and approval.

A minimum of three test species with approved test protocols shall be used to measure compliance with the toxicity limitation. If possible, the test species shall include a fish, an invertebrate, and an aquatic plant. After a screening period of no fewer than three sampling events, monitoring can be reduced to the most sensitive species. The sensitivity of the test

organisms to a reference toxicant shall be determined concurrently with each bioassay test and reported with the test results.

Note: If the Discharger has already performed the screening described above, then the Discharger may continue using the identified most sensitive species for chronic toxicity testing without re-screening of three species. If an alternative species is proposed to be used for chronic toxicity testing, the Discharger shall perform the screening and include the proposed test species as one of those species screened.

Table E-7. Approved Tests – Chronic Toxicity

Species	Test	Tier ^[1]	Reference ^[2]
Giant kelp, <i>Macrocystis pyrifera</i>	percent germination; germ tube length	1	a, c
Red abalone, <i>Haliotis rufescens</i>	abnormal shell development	1	a, c
Oyster, <i>Crassostrea gigas</i> ; mussels, <i>Mytilus spp.</i>	abnormal shell development; percent survival	1	a, c
Urchin, <i>Strongylocentrotus purpuratus</i> ; sand dollar, <i>Dendraster excentricus</i>	percent normal development	1	a, c
Urchin, <i>Strongylocentrotus purpuratus</i> ; sand dollar, <i>Dendraster excentricus</i>	percent fertilization	1	a, c
Shrimp, <i>Holmesimysis costata</i>	percent survival; growth	1	a, c
Shrimp, <i>Mysidopsis bahia</i>	percent survival; fecundity	2	b, d
Topsmelt, <i>Atherionops affinis</i>	larval growth rate; percent survival	1	a, c
Silverside, <i>Menidia beryllina</i>	larval growth rate; percent survival	2	b, d

^[1] First tier methods are preferred for compliance monitoring. If first tier organisms are not available, the Discharger can use a second tier test method following approval by the Central Coast Water Board.

^[2] Protocol References:

- a. Chapman, G.A., D.L. Denton, and J.M. Lazorchak. 1995. Short-term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to West Coast Marine and Estuarine Organisms. U.S. EPA Report No. EPA/600/R-95/136.
- b. Klemm, D.J., G.E. Morrison, T.J. Norberg-King, E.J. Peltier, and M.A. Heber. 1994. Short-term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Water to Marine and Estuarine Organisms. U.S. EPA Report No. EPA-600-4-91-003.
- c. SWRCB. 1996. Procedures Manual for Conducting Toxicity Tests Developed by the Marine Bioassay Project. 96-1WQ.
- d. Weber, C.I., W.B. Horning, I.I., D.J. Klemm, T.W. Nieheisel, P.A. Lewis, E.L. Robinson, J. Menkedick and F. Kessler (eds). 1998. Short-term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to Marine and Estuarine Organisms. EPA/600/4-87/028. National Information Service, Springfield, VA.

Dilution and control waters shall be obtained from an area of the receiving waters, typically upstream, which is unaffected by the discharge. Standard dilution water can be used, if the receiving water itself exhibits toxicity or if approved by the Central Coast Water Board. If the dilution water used in testing is different from the water in which the test organisms were cultured, a second control sample using culture water shall be tested.

If the effluent is to be discharged to a marine or estuarine system (e.g., salinity values in excess of 1,000 mg/L) originates from a freshwater supply, salinity of the effluent must be increased with dry ocean salts (e.g., FORTY FATHOMS®) to match salinity of the receiving water. This modified effluent shall then be tested using marine species.

If chronic toxicity is measured in the effluent above 152.0 TU_c, the Discharger shall re-sample and submit the results to the Central Coast Water Board as described in section V.C.2.a of this Order.

C. Toxicity Reporting

1. The Discharger shall include a full report of toxicity test results with the regular monthly monitoring report and include the following information:
 - a. Toxicity test results,
 - b. Dates of sample collection and initiation of each toxicity test, and
 - c. Acute and/or chronic toxicity discharge limitations (or value).
2. Toxicity test results shall be reported according to the appropriate guidance - *Methods for Measuring the Acute Toxicity of Effluents and Receiving Waters to Freshwater and Marine Organisms*, Fifth Edition, U.S. EPA Office of Water, EPA-821-R-02-012 (2002) or the latest edition, or *Short Term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to Freshwater and Marine Organisms*, EPA-821-R-02-012 (2002) or subsequent editions.
3. If the initial investigation TRE workplan is used to determine that additional (accelerated) toxicity testing is unnecessary, these results shall be submitted with the monitoring report for the month in which investigations conducted under the TRE workplan occurred.
4. Within 30 days of receipt of test results exceeding an acute or chronic toxicity discharge limitation, the Discharger shall provide written notification to the Executive Officer of:
 - a. Findings of the TRE or other investigation to identify the cause(s) of toxicity, and
 - b. Actions the Discharger has taken/will take, to mitigate the impact of the discharge and to prevent the recurrence of toxicity.

When corrective actions, including a TRE, have not been completed, a schedule under which corrective actions will be implemented, or the reason for not taking corrective action, if no action has been taken.

VI. LAND DISCHARGE MONITORING REQUIREMENTS – NOT APPLICABLE

VII. RECLAMATION MONITORING REQUIREMENTS – NOT APPLICABLE

VIII. RECEIVING WATER MONITORING REQUIREMENTS

A. Visual Monitoring – Monitoring Locations RSW-A through RSW-G

1. The Discharger shall make weekly visual observations of the receiving water at Monitoring Locations RSW-A through RSW-G and note the presence or absence of the following:
 - a. Floating or suspended matter;
 - b. Discoloration;
 - c. Foaming; and
 - d. Marine plant and animal life.

2. The Discharger shall make weekly visual observations of the receiving water and shoreline at Monitoring Locations RSW-A through RSW-G and note the presence or absence of the following:
 - a. People on the beach;
 - b. People in the water;
 - c. People swimming to end of pier or beyond;
 - d. Evidence of divers present;
 - e. Fishing activity on and off shore near outfall; and
 - f. Fishing and other uses occurring on the pier.

B. Bacteria Monitoring – Monitoring Locations RSW-A through RSW-G

Bacteria monitoring shall be conducted to assess bacteriological conditions in areas used for body contact recreation (e.g., swimming) and to assess conditions of aesthetics for general recreation use (e.g., picnicking, boating). Bacteria monitoring shall be conducted along the 30-foot contour at Monitoring Locations RSW-A through RSW-G. Latitude and longitude shall be recorded and reported for all monitoring locations for each monitoring event. Bacteria monitoring shall be conducted as indicated by the following table:

Table E-8. Receiving Water Monitoring Requirements

Parameter	Units	Sampling Station	Minimum Sampling Frequency ^[1]
Total Coliform Bacteria	MPN/100 ml	RSW-A through RSW-G	1/Month
Fecal Coliform Bacteria	MPN/100 ml	RSW-A through RSW-G	1/Month
Enterococcus Bacteria	MPN/100 ml	RSW-A through RSW-G	1/Month

^[1] Sampling shall occur immediately in the event of plant upset, operational changes, or effluent violations. Minimum monthly samples shall continue until compliance with effluent limitations has been demonstrated for a minimum of 6 months.

C. Benthic Sediment Monitoring

Benthic monitoring shall assess the temporal and spatial occurrence of pollutants in local marine sediments and evaluate the physical and chemical quality of the sediments in relation to the outfall. At all benthic monitoring stations, one grab sample shall be collected using a 0.1 m² Van Veen grab sampler.

Sediment samples shall be analyzed according to Quality Assurance and Quality Control (QA/QC) for 301(h) Monitoring Programs: Guidance on Field and Laboratory Methods (EPA 430/9-86-004, 1987) and Analytical Methods for EPA Priority Pollutants and 301(h) Pesticides in Estuarine and Marine Sediments (EPA 503-6-90-004, 1986). When processing samples for analysis, macrofauna and large remnants greater than 0.25 inches (0.64 cm) should be removed, taking care to avoid contamination.

All sediment results shall be reported in the raw form and expressed on a dry weight basis. For all non-detect results, parameter detection limits shall be reported. Dry weight concentration target detection levels are indicated for National Oceanic and Atmospheric Administration (NOAA) National Status and Trends Program analyses.

Benthic monitoring results shall be included in the Annual Report with a complete discussion of benthic sediment survey results and (possible) influence of the discharge on sediment conditions in the study area, if possible. The discussion should be based on graphical,

tabular, and/or appropriate statistical analyses of spatial and temporal patterns observed for raw sediment parameters. The Annual Report should also present an analysis of natural variation in sediment conditions, etc., which could influence the validity of study results. The Discharger's sediment results may also be compared with the results of other applicable studies, numerical protective levels, etc., as appropriate. Survey results shall be compared to pre-discharge and/or historical data using appropriate statistical methods if available.

Sampling specified in the following table shall occur at the ocean bottom directly below stations RSW-A, RSW-B, RSW-C, RSW-D, and RSW-F.

Table E-9. Benthic Sediment Monitoring Requirements

Parameter	Units	Minimum Frequency of Sampling
Particle Size	Phi (% volume)	July – October 2019
Sediment Sulfides at pH 7	mg/kg	July – October 2019
BOD ₅	mg/kg	July – October 2019
Arsenic, Total Recoverable	mg/kg	July – October 2019
Cadmium, Total Recoverable	mg/kg	July – October 2019
Total Chromium, Total Recoverable	mg/kg	July – October 2019
Chromium ⁺⁶ , Total Recoverable	mg/kg	July – October 2019
Copper, Total Recoverable	mg/kg	July – October 2019
Lead, Total Recoverable	mg/kg	July – October 2019
Mercury, Total Recoverable	mg/kg	July – October 2019
Nickel, Total Recoverable	mg/kg	July – October 2019
Silver, Total Recoverable	mg/kg	July – October 2019
Zinc, Total Recoverable	mg/kg	July – October 2019
Total Kjeldahl Nitrogen	mg/kg	July – October 2019
Ammonia	mg/kg	July – October 2019
Nitrate	mg/kg	July – October 2019
Total Organic Carbon	mg/kg	July – October 2019

D. Benthic Biota Monitoring

Benthic infaunal monitoring shall assess the temporal and spatial status of local benthic communities in relation to the outfall. Benthic biota monitoring shall occur at the same time as benthic sediment monitoring (between July and October 2012). Sampling shall be conducted as follows.

1. At least five benthic samples shall be taken at each of the five ocean monitoring stations (RSW-A, RSW-B, RSW-C, RSW-D, and RSW-F) using a 0.1 m² Van Veen grab sampler.
2. For benthic infauna analyses, each replicate sample shall be passed through a 1 mm screen, and the organisms retained and preserved as appropriate for subsequent identification. It is recommended that sample preservation, sample processing, and data analyses be conducted according to *Quality Assurance and Quality Control (QA/QC) for 301 (h) Monitoring*.
3. Benthic infauna from each replicate sample shall be counted and identified to the lowest possible taxon. For each replicate sample, number of individuals, number of species, and number of individuals per species, and within each major taxonomic group (polychaetes, mollusks, crustaceans, echinoderms, and all other macroinvertebrates) shall be recorded.

4. The Annual Report shall include a complete discussion of benthic infaunal survey results and (possible) influence of the outfall on benthic infaunal communities in the study area. The discussion should be based on graphical, tabular, and/or appropriate statistical analyses of spatial and temporal patterns. Temporal trends in the number of individuals, number of species, number of individuals per species, and community structure indices, species richness (S), Margalef index (d), ShannonWiener index (H'), Brillouin index (h), Simpson's index (SI), Swartz's dominance, and Infaunal Trophic Index (ITI) shall be reported. Statistical analyses shall include multivariate techniques consisting of classification and ordination analysis. The Annual Report should also present an analysis of natural community variation including the effects of different sediment conditions, oceanic seasons, and water temperatures, etc., that could influence the validity of study results. Survey results shall be compared to pre-discharge and/or historical data using appropriate statistical methods, if available.

IX. OTHER MONITORING REQUIREMENTS

A. Solids/Biosolids Monitoring, Notification, and Reporting

1. Biosolids Monitoring

- a. Biosolids shall be tested for the metals required in 40 C.F.R. 503.16 (for land application) or Section 503.26 (for surface disposal), using the methods in Test Methods for Evaluating Solid Waste, Physical/Chemical Methods (SW-846), as required in 503.8(b)(4), at the following minimum frequencies:

Volume (dry metric tons) ^[1]	Sampling and Analysis Frequency ^[2]
0-290	1/Year
290-1500	1/Quarter
1500-15000	1/60 days
> 15000	1/Month

^[1] For accumulated, previously untested biosolids, the Permittee shall develop a representative sampling plan, including number and location of sampling points, and collect representative samples.

^[2] Test results shall be expressed in mg pollutant per kg biosolids on a 100% dry weight basis. Biosolids to be land applied shall be tested for organic-N, ammonium-N, and nitrate-N at the frequencies required above.

- b. Prior to land application, the Permittee shall demonstrate that the biosolids meet Class A or Class B pathogen reduction levels by one of the methods listed in 40 C.F.R. 503.32. Prior to disposal in a surface disposal site, the Permittee shall demonstrate that the biosolids meet Class B levels or shall ensure that the site is covered at the end of each operating day. If pathogen reduction is demonstrated using a "Process to Significantly/Further Reduce Pathogens", the Permittee shall maintain daily records of the operating parameters used to achieve this reduction. If pathogen reduction is demonstrated by testing for fecal coliforms and/or pathogens, samples must be drawn at the frequency in 11(a) above. For fecal coliform, at least seven grab samples must be drawn during each monitoring event and a geometric mean calculated from these seven samples.
- c. For biosolids that are land applied or placed in a surface disposal site, the Permittee shall track and keep records of the operational parameters used to achieve Vector Attraction Reduction requirements in 40 C.F.R. 503.33(b).

- d. Class I facilities (facilities with pretreatment programs or others designated as Class 1 by the Regional Administrator) and Federal facilities with greater than five million gallons per day (MGD) influent flow shall sample biosolids for pollutants listed under Section 307(a) of the Clean Water Act (as required in the pretreatment section of the permit for POTW's with pretreatment programs). Class 1 facilities and Federal facilities greater than five MGD shall test dioxins/dibenzofurans using a detection limit of less than one pg/g at the time of their next priority pollutant scan if they have not done so within the past five years, and once per five years thereafter.
- e. The biosolids shall be tested annually, or more frequently if necessary, to determine hazardousness in accordance 40 C.F.R. 261.
- f. If biosolids are placed in a surface disposal site (dedicated land disposal site or monofill), a qualified groundwater scientist shall develop a groundwater monitoring program for the site, or shall certify that the placement of biosolids on the site will not contaminate an aquifer.
- g. Biosolids placed in a municipal landfill shall be tested by the Paint Filter Liquids Test (EPA Method 9095) at the frequency in 11 (a) above or more often if necessary to demonstrate that there are no free liquids.

2. Solids/Biosolids Monitoring

The Permittee, either directly or through contractual arrangements with their biosolids management contractors, shall comply with the following notification requirements:

- a. Notification of non-compliance: The Permittee shall notify USEPA Region 9, the Central Coast Water Board, and the Regional Board located in the region where the biosolids are used or disposed, of any non-compliance within 24 hours if the non-compliance may seriously endanger health or the environment. For other instances of non-compliance, the Permittee shall notify USEPA Region 9 and the affected Regional Boards of the non-compliance in writing within five working days of becoming aware of the non-compliance. The Permittee shall require their biosolids management contractors to notify USEPA Region 9 and the affected Regional Boards of any non-compliance within the same timeframes. See Attachment C for Regional Board contact information.
- b. If biosolids are shipped to another State or to Indian Lands, the Permittee must send 60 days prior notice of the shipment to the permitting authorities in the receiving State or Indian Land (the USEPA Regional Office for that area and the State/Indian authorities).
- c. For land application: Prior to reuse of any biosolids from this facility to a new or previously unreported site, the Permittee shall notify USEPA and Central Coast Water Board. The notification shall include a description and topographic map of the proposed site(s), names and addresses of the applier, and site owner and a listing of any state or local permits which must be obtained. The plan shall include a description of the crops or vegetation to be grown, proposed loading rates and determination of agronomic rates. If any biosolids within a given monitoring period do not meet 40 C.F.R. 503.13 metals concentration limits, the Permittee (or its contractor) must pre-notify USEPA, and determine the cumulative metals loading at that site to date, as required in Section 503.12.
- d. The Permittee shall notify the applier of all the applier's requirements under 40 C.F.R. 503, including the requirement that the applier certify that the management practices, site restrictions, and any applicable vector attraction reduction

requirements have been met. The Permittee shall require the applier to certify at the end of 38 months following application of Class B biosolids that the harvesting restrictions in effect for up to 38 months have been met.

- e. For surface disposal: Prior to disposal to a new or previously unreported site, the Permittee shall notify USEPA and the Central Coast Water Board. The notice shall include description and topographic map of the proposed site, depth to groundwater, whether the site is lined or unlined, site operator, site owner, and any state or local permits. The notice shall describe procedures for ensuring public access and grazing restrictions for three years following site closure. The notice shall include a groundwater monitoring plan or description of why groundwater monitoring is not required.

3. **Biosolids Reporting**

The Permittee shall submit an annual biosolids report to the USEPA Region 9 Biosolids Coordinator and Central Coast Water Board by February 19 of each year for the period covering the previous calendar year. The report shall include:

- a. The amount of biosolids generated during the reporting period, in dry metric tons, and the amount accumulated from previous years;
- b. Results of all pollutant and pathogen monitoring required in Item 1 above and the Monitoring and Reporting Program of this Order. Results must be reported on a 100% dry weight basis for comparison with 40 C.F.R. 503 limits;
- c. Descriptions of pathogen reduction methods and vector attraction reduction methods, including supporting time and temperature data, and certifications, as required in 40 C.F.R. 503.17 and 503.27;
- d. Names, mailing addresses, and street addresses of persons who received biosolids for storage, further treatment, disposal in a municipal waste landfill, or for other use or disposal methods not covered above, and volumes delivered to each.
- e. For land application sites, the following information must be submitted by the Permittee, unless the Permittee requires its biosolids management contractors to report this information directly to the USEPA Region 9 Biosolids Coordinator:
 - i. Locations of land application sites (with field names and numbers) used that calendar year, size of each field applied to, applier, and site owner;
 - ii. Volumes applied to each field (in wet tons and dry metric tons), nitrogen applied, calculated plant available nitrogen;
 - iii. Crop planted, dates of planting and harvesting;
 - iv. For any biosolids exceeding 40 C.F.R. 503.13 Table 3 metals concentrations: the locations of sites where applied and cumulative metals loading at that site to date;
 - v. Certifications of management practices in Section 503.14; and
 - vi. Certifications of site restrictions in Section 503(b)(5).
- f. For surface disposal sites:
 - i. Locations of site, site operator, site owner, size of parcel on which disposed;

- ii. Results of any required groundwater monitoring;
 - iii. Certifications of management practices in Section 503.24; and
 - iv. For closed sites, date of site closure and certifications of management practices for the three years following site closure.
- g. For all biosolids used or disposed at the Permittee's facilities, the site and management practice information and certification required in Sections 503.17 and 503.27; and
- h. For all biosolids temporarily stored, the information required in Section 503.20 required to demonstrate temporary storage.

Reports shall be submitted to:

Regional Biosolids Coordinator
USEPA (WTR-7)
75 Hawthorne Street
San Francisco, CA 94105-3901

Executive Officer
Central Coast Regional Water Quality Control Board
895 Aerovista Place, Suite 101
San Luis Obispo, CA 93455-5411

- i. All the requirements of 40 C.F.R. 503 and 23 CCR 15 are enforceable by the USEPA and this Central Coast Water Board whether or not the requirements are stated in an NPDES permit or any other permit issued to the Discharger.

B. Outfall Inspection

At least once per permit term, the Discharger shall visually inspect the entire outfall structure (using dye studies, if appropriate) to determine its structural integrity and identify leaks, potential leaks, or malfunctions. The outfall inspection shall also check for possible external blockage of ports by sand and/or silt deposition. Results of the outfall inspection shall be reported in CIWQS. Inspections shall occur during periods typically characterized by good underwater visibility.

X. REPORTING REQUIREMENTS

A. General Monitoring and Reporting Requirements

- 1. The Discharger shall comply with all Federal Standard Provisions and Central Coast Water Board Standard Provisions (Attachment D) related to monitoring, reporting, and recordkeeping.

B. Self-Monitoring Reports (SMRs)

- 1. The Discharger shall electronically submit SMRs using the State Water Board's California Integrated Water Quality System (CIWQS) Program Web site (<http://www.waterboards.ca.gov/ciwqs/index.html>). The CIWQS Web site will provide additional information for SMR submittal in the event there will be a planned service interruption for electronic submittal.

2. The Discharger shall report in the SMR the results for all monitoring specified in this MRP under sections III through IX. The Discharger shall submit SMRs including the results of all required monitoring using U.S. EPA-approved test methods or other test methods specified in this Order. SMRs are to include all new monitoring results obtained since the last SMR was submitted. If the Discharger monitors any pollutant more frequently than required by this Order, the results of this monitoring shall be included in the calculations and reporting of the data submitted in the SMR.
3. Sampling and monitoring as required by this MRP shall begin on the effective date of this Order. The Discharger shall complete all required monitoring and reporting according to the following schedule unless otherwise directed by the Executive Officer:

Table E-10. Monitoring Periods and Reporting Schedule

SMR Name	Permit Section for Monitoring & Sampling Data Included in this Report	SMR Submittal Frequencies	SMR Due Date
NPDES Monitoring Report – Monthly	MRP Sections IV (Effluent) and VIII (Receiving Water)	Monthly	First day of second calendar month following period of sampling (first report due Feb 1, 2017)
NPDES Monitoring Report – Semiannual	MRP Section IV (Effluent) Ammonia, chloroform, Chronic Toxicity, Tributyltin	Twice per year	1 st half: August 1 st (following 2 nd quarter sampling) 2 nd half: February 1 st (following 4 th quarter sampling)
NPDES Monitoring Report – Annual	MRP Section IV (Effluent) Acute Toxicity, Ocean Plan Metals, Priority Pollutants	Annually	January 30 following calendar year of sampling
NPDES Summary Report and Benthic monitoring	Attachment D, Standard Provision VIII.D.8	Annually	January 30 following calendar year of sampling
Outfall Inspection	Attachment E IX.B	Once per permit	June 3, 2022
ROWD Application	Permit Renewal Application	Once per permit	June 3, 2022

4. Reporting Protocols. The Discharger shall report with each sample result the applicable reported Minimum Level (reported ML, also known as the Reporting Level, or RL) and the current Method Detection Limit (MDL), as determined by the procedure in 40 C.F.R. part 136.

The Discharger shall report the results of analytical determinations for the presence of chemical constituents in a sample using the following reporting protocols:

- a. Sample results greater than or equal to the reported ML shall be reported as measured by the laboratory (i.e., the measured chemical concentration in the sample).
- b. Sample results less than the reported ML, but greater than or equal to the laboratory's MDL, shall be reported as "Detected, but Not Quantified," or DNQ. The estimated chemical concentration of the sample shall also be reported.

For the purposes of data collection, the laboratory shall write the estimated chemical

- concentration next to DNQ. The laboratory may, if such information is available, include numerical estimates of the data quality for the reported result. Numerical estimates of data quality may be percent accuracy ($\pm$ a percentage of the reported value), numerical ranges (low to high), or any other means considered appropriate by the laboratory.
- c. Sample results less than the laboratory's MDL shall be reported as "Not Detected," or ND.
 - d. Dischargers are to instruct laboratories to establish calibration standards so that the ML value (or its equivalent if there is differential treatment of samples relative to calibration standards) is the lowest calibration standard. At no time is the Discharger to use analytical data derived from extrapolation beyond the lowest point of the calibration curve.
5. Compliance Determination. Compliance with effluent limitations for reportable pollutants shall be determined using sample reporting protocols defined above and Attachment A. For purposes of reporting and administrative enforcement by the Central Coast Water Board and State Water Board, the Discharger shall be deemed out of compliance with effluent limitations if the concentration of the reportable pollutant in the monitoring sample is greater than the effluent limitation and greater than or equal to the reported Minimum Level (ML).
 6. Multiple Sample Data. When determining compliance with a measure of central tendency (arithmetic mean, geometric mean, median, etc.) of multiple sample analyses and the data set contains one or more reported determinations of "Detected, but Not Quantified" (DNQ) or "Not Detected" (ND), the Discharger shall compute the median in place of the arithmetic mean in accordance with the following procedure:
 - a. The data set shall be ranked from low to high, ranking the reported ND determinations lowest, DNQ determinations next, followed by quantified values (if any). The order of the individual ND or DNQ determinations is unimportant.
 - b. The median value of the data set shall be determined. If the data set has an odd number of data points, then the median is the middle value. If the data set has an even number of data points, then the median is the average of the two values around the middle unless one or both of the points are ND or DNQ, in which case the median value shall be the lower of the two data points where DNQ is lower than a value and ND is lower than DNQ.
 7. The Discharger shall submit SMR's in accordance with the following requirements:
 - a. The Discharger shall arrange all reported data in a tabular format. The data shall be summarized to clearly illustrate whether the facility is operating in compliance with interim and/or final effluent limitations. The Discharger is not required to duplicate the submittal of data that is entered in a tabular format within CIWQS. When electronic submittal of data is required and CIWQS does not provide for entry into a tabular format within the system, the Discharger shall electronically submit the data in a tabular format as an attachment.
 - b. The Discharger shall attach a cover letter to the SMR. The information contained in the cover letter shall clearly identify violations of the WDR's; discuss corrective actions taken or planned; and the proposed time schedule for corrective actions. Identified violations must include a description of the requirement that was violated and a description of the violation.

C. Discharge Monitoring Reports (DMRs)

DMRs are U.S. EPA reporting requirements. The Discharger shall electronically certify and submit DMRs together with SMRs using Electronic Self-Monitoring Reports module eSMR 2.5 or any upgraded version. Electronic DMR submittal shall be in addition to electronic SMR submittal. Information about electronic DMR submittal is available at the DMR website at: <http://www.waterboards.ca.gov/water_issues/programs/discharge_monitoring>.

D. Other Reports

The Discharger shall report the results of any special studies, acute and chronic toxicity testing, TRE/TIE, and PMP required by Special Provisions – VI.C.2, VI.C.3, VI.C.4, VI.C.5, and VI.C.6. The Discharger shall submit reports with the first monthly SMR scheduled to be submitted on or immediately following the report due date.

ATTACHMENT F – FACT SHEET

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ATTACHMENT F – FACT SHEET

As described in section II.B of this Order, the Central Coast Water Board incorporates this Fact Sheet as findings of the Central Coast Water Board supporting the issuance of this Order. This Fact Sheet includes the legal requirements and technical rationale that serve as the basis for the requirements of this Order.

This Order has been prepared under a standardized format to accommodate a broad range of discharge requirements for Dischargers in California. Only those sections or subsections of this Order that are specifically identified as “not applicable” have been determined not to apply to this Discharger. Sections or subsections of this Order not specifically identified as “not applicable” are fully applicable to this Discharger.

I. PERMIT INFORMATION

The following table summarizes administrative information related to the facility.

Table F-1. Facility Information

WDID	3 400101001
Discharger	Avila Beach Community Services District
Name of Facility	Avila Beach Community Services District Wastewater Treatment Plant
Facility Address	2850 Avila Beach Drive
	Avila Beach, CA 93424
	San Luis Obispo County
Facility Contact, Title and Phone	Brad Hagemann, General Manager, (805) 595-2664
Authorized Person to Sign and Submit Reports	Brad Hagemann, General Manager, (805) 595-2664
Mailing Address	P.O. Box 309, Avila Beach, CA 93424
Billing Address	P.O. Box 309, Avila Beach, CA 93424
Type of Facility	POTW
Major or Minor Facility	Minor
Threat to Water Quality	2
Complexity	B
Pretreatment Program	N
Recycling Requirements	NA
Facility Permitted Flow	0.20 million gallons per day (MGD)
Facility Design Flow	0.20 MGD
Watershed	San Luis Obispo Creek HAS (310.24)
Receiving Water	Pacific Ocean
Receiving Water Type	Ocean waters

- A. The Avila Beach Community Services District (ABCSD) (hereinafter, the Discharger) is the owner of an equivalent to secondary wastewater treatment plant (hereinafter, Facility) that treats domestic, commercial, and industrial wastewaters collected from the community of Avila Beach as well as the Port San Luis Harbor District, serving a population of approximately 800. The wastewater treatment facility is located at 2850 Avila Beach Boulevard, Avila Beach, San Luis Obispo County.

For the purposes of this Order, references to the “discharger” or “permittee” in applicable

federal and state laws, regulations, plans, or policy are held to be equivalent to references to the Discharger herein.

- B. The Facility discharges wastewater to San Luis Obispo Bay, a water of the United States, and is currently regulated by Order No. R3-2009-0055, which was adopted on October 23, 2009, and expires on December 12, 2014. The terms and conditions of the current Order will be automatically continued and remain in effect until new Waste Discharge Requirements and a National Pollutant Discharge Elimination System (NPDES) permit are adopted pursuant to this Order. Attachment B provides a map of the area around the Facility. Attachment C provides a flow schematic of the Facility.

Prior to making any change in the point of discharge, place of use, or purpose of use of treated wastewater that results in a decrease of flow in any portion of a watercourse, the Discharger must file a petition with the State Water Board, Division of Water Rights, and receive approval for such a change. The State Water Board retains the jurisdictional authority to enforce such requirements under Water Code section 1211.

- C. The Discharger filed a report of waste discharge and submitted an application for reissuance of its WDRs and NPDES permit on June 16, 2014.

II. FACILITY DESCRIPTION

A. Description of Wastewater and Biosolids Treatment and Controls

The Avila Beach Community Services District owns a wastewater treatment and disposal system to provide sewerage service to the community of Avila Beach and the Port San Luis Harbor District. Avila Beach is primarily residential with very little industry. Nearby Port San Luis is mostly recreational and commercial, with few full-time residents. The estimated population served is approximately 800 people. Combined flows from Avila Beach and Port San Luis averaged 0.056 million gallons per day (MGD) in 2013. Avila Beach and Port San Luis are recreational areas and vacation destinations; consequently, wastewater flow peaks during summer holidays and weekends. Peak seasonal flows reached 0.111 MGD in 2011.

Portions of the collection system are owned by Avila Beach Community Services District and Port San Luis Harbor District. Each collection system is operated and maintained by its respective agency. The collection systems had previously been covered under the current permit, with both Avila Beach Community Services District and Port of San Luis Harbor District as permittees. Avila Beach Community Services District is responsible as the owner and operator of the wastewater treatment facility and its portion of the collection system. Port San Luis Harbor District is responsible for its portion of the collection system. Coverage for collection systems has been transferred to the General Waste Discharge Requirements for Sanitary Sewer Systems (State Water Board Order No. 2006-0003-DWQ).

Raw wastewater enters the Facility by way of two grinder pumps. From the headworks, influent enters the primary clarifier in the center and is directed towards the bottoms of the tank by use of a stilling baffle. Effluent from primary clarifier is fed by gravity into a fixed film reactor sump, where it is then pumped over the fixed film reactor along with a percentage of recirculation water. Effluent from the fixed film reactor enters a sump that partially recirculates back to the fixed film reactor, while the remainder is pumped to two secondary sedimentation tanks. Effluent from the secondary sedimentation tanks is disinfected with sodium hypochlorite and then dechlorinated with sodium bisulfite.

Biosolids from the secondary sedimentation tanks are collected and pumped back to the primary clarifier and ultimately to the anaerobic digester. Biosolids that are collected and pumped to the anaerobic digester are disposed of by pumping the solids directly from the

bottom of the digester through a 3-inch cam fitting and trucking the material off-site for further processing.

Effluent leaving the Facility enters the Avila Beach Community Services District's outfall, which extends approximately 2,700 feet offshore—approximately 1,000 feet beyond Avila Pier—and terminates at an depth of approximately 35 feet in the Pacific Ocean (San Luis Obispo Bay).

B. Discharge Points and Receiving Waters

The discharge of equivalent to secondary treated effluent to the Pacific Ocean occurs through a 2,700-foot outfall/diffuser system. The outfall (35° 10' 16" N Latitude; 120° 44' 4.6" W Longitude) terminates in the Pacific Ocean (San Luis Obispo Bay) at a depth of approximately 35 feet, approximately 1,000 feet beyond Avila Pier.

The minimum probable initial dilution (seawater to effluent) at Discharge Point 001 is 151 to 1, a figure that has been used by Central Coast Water Board staff to determine the need for water quality-based effluent limitations and, if necessary, to calculate those limitations.

C. Summary of Existing Requirements and Self-Monitoring Report (SMR) Data

Effluent limitations contained in the existing Order for discharges from Discharge Point 001 (Monitoring Location EFF-001) and representative monitoring data from the term of the previous Order are as follows:

Table F-2. Historic Effluent Limitations and Monitoring Data, Conventional Pollutants, Discharge Point 001

Parameter	Units	Effluent Limitation			Monitoring Data (From 1/1/2010 – To 4/30/2014)		
		Average Monthly	Average Weekly	Maximum Daily	Highest Average Monthly Discharge	Highest Average Weekly Discharge	Highest Daily Discharge
BOD ₅	mg/L	40	60	90	59	115	115
	lbs/day	67	100	150	33	60	60
TSS	mg/L	40	60	90	38	48	92
	lbs/day	67	100	150	17	23	35
pH	Standard units	--	--	6.0 – 9.0	--	--	6.1 – 8.0
Oil and Grease	mg/L	25	40	75	13	13	13
	lbs/day	42	67	125	7	7	7
Settleable Solids	mL/L	1.0	1.5	3.0	<0.1	<0.1	<0.1
Turbidity	NTU	75	100	225	68.85	92	92
Total Coliform	MPN/100 mL	23	--	2,400	--	--	160,000

Table F-3. Historic Effluent Limitations and Monitoring Data, Toxic Pollutants, Discharge Point 001

Parameter	Units	Effluent Limitation				Monitoring Data (From 1/1/2010 – To 4/30/2014)
		6-Month Median	Daily Maximum	Instantaneous Maximum	30-Day Average	Maximum Reported Value
Arsenic, Total Recoverable	µg/L	760	4,400	12,000	--	3.4
	lbs/day	1.3	7.4	20	--	0.0017
Cadmium, Total Recoverable	µg/L	150	610	1,500	--	0.12 (DNQ)
	lbs/day	0.25	1	2.5	--	< 1
Chromium VI, Total Recoverable	µg/L	300	1,200	3,000	--	0.27
	lbs/day	0.51	2.0	5.1	--	< 1
Lead, Total Recoverable	µg/L	300	1,200	3,000	--	0.9
	lbs/day	0.51	2.0	5.1	--	0.0045
Mercury, Total Recoverable	µg/L	6.0	24	61	--	< 0.2
	lbs/day	0.01	0.04	0.1	--	< 0.1
Nickel, Total Recoverable	µg/L	760	3,000	7,600	--	23
	lbs/day	1.3	5.1	13	--	< 0.51
Selenium, Total Recoverable	µg/L	2,300	9,100	23,000	--	4
	lbs/day	3.8	15	38	--	0.002
Silver, Total Recoverable	µg/L	82	400	1,000	--	< 0.25
	lbs/day	0.14	0.67	1.7	--	< 0.17
Cyanide, Total Recoverable	µg/L	150	610	1,500	--	14
	lbs/day	0.25	1	2.5	--	< 1
Total Chlorine Residual	µg/L	300	1,200	9,100	--	11,400
	lbs/day	0.51	2.0	15	--	5.3
Ammonia (as Nitrogen)	mg/L	91	360	910	--	14
	lbs/day	150	610	1500	--	8.57
Acute Toxicity	TUa	--	4.8	--	--	< 0.59
Chronic Toxicity	TUc	--	152	--	--	56
Phenolic Compounds (non-chlorinated)	µg/L	4,600	18,000	46,000	--	< 5
	lbs/day	7.6	30	76	--	< 1
Chlorinated Phenolics	µg/L	150	610	1,500	--	< 1
	lbs/day	0.25	1	2.5	--	< 1
Endosulfan	µg/L	1.4	2.7	4.1	--	< 0.01
	lbs/day	0.0023	0.0046	0.0068	--	--
Endrin	µg/L	0.3	0.61	0.91	--	< 0.01
	lbs/day	0.00051	0.001	0.0015	--	< 0.001
Hexachlorocyclohexane	µg/L	0.61	1.2	1.8	--	< 0.005
	lbs/day	0.001	0.002	0.003	--	--
Radioactivity	Not to exceed limits specified in Title 17, Division 1, Chapter 5, Subchapter 4, Group 3, Article 3, Section 30269 of the California Code of Regulations.					

Parameter	Units	Effluent Limitation				Monitoring Data (From 1/1/2010 – To 4/30/2014)
		6-Month Median	Daily Maximum	Instantaneous Maximum	30-Day Average	Maximum Reported Value
Acrolein	mg/L	--	--	--	33	< 0.002
	lbs/day	--	--	--	56	< 1
Antimony	mg/L	--	--	--	180	0.00052
	lbs/day	--	--	--	300	0.00026
Bis(2-chloroethoxy) Methane	µg/L	--	--	--	670	< 1
	lbs/day	--	--	--	1.1	< 0.0005
Bis(2-chloroisopropyl) ether	mg/L	--	--	--	180	< 0.001
	lbs/day	--	--	--	300	< 1
Chlorobenzene	µg/L	--	--	--	87,000	< 0.5
	lbs/day	--	--	--	140	< 1
Chromium (III)	mg/L	--	--	--	29,000	0.0015
	lbs/day	--	--	--	48,000	< 1
Di-n-butyl Phthalate	mg/L	--	--	--	530	< 0.001
	lbs/day	--	--	--	890	< 1
Dichlorobenzenes	mg/L	--	--	--	780	< 0.001
	lbs/day	--	--	--	1,300	< 1
Diethyl Phthalate	mg/L	--	--	--	5,000	0.0042 (DNQ)
	lbs/day	--	--	--	8,400	< 1
Dimethyl Phthalate	mg/L	--	--	--	120,000	< 0.001
	lbs/day	--	--	--	210,000	< 1
4,6-dinitro-2-methylphenol	mg/L	--	--	--	33	< 0.001
	lbs/day	--	--	--	56	< 1
2,4-dinitrophenol	µg/L	--	--	--	610	< 1
	lbs/day	--	--	--	1	< 1
Ethylbenzene	mg/L	--	--	--	620	< 0.0005
	lbs/day	--	--	--	1,000	< 1
Fluoranthene	µg/L	--	--	--	2,300	< 0.01
	lbs/day	--	--	--	3.8	< 1
Hexachlorocyclopentadiene	µg/L	--	--	--	8,800	< 1
	lbs/day	--	--	--	15	< 1
Nitrobenzene	µg/L	--	--	--	740	< 1
	lbs/day	--	--	--	1.2	< 1
Thallium	µg/L	--	--	--	300	< 1
	lbs/day	--	--	--	0.51	< 0.51
Toluene	mg/L	--	--	--	13,000	0.003
	lbs/day	--	--	--	22,000	< 1
Tributyltin	µg/L	--	--	--	0.21	< 0.005
	lbs/day	--	--	--	0.00035	< 0.00035

Parameter	Units	Effluent Limitation				Monitoring Data (From 1/1/2010 – To 4/30/2014)
		6-Month Median	Daily Maximum	Instantaneous Maximum	30-Day Average	Maximum Reported Value
1,1,1-trichloroethane	mg/L	--	--	--	82,000	< 0.0005
	lbs/day	--	--	--	140,000	< 1
Acrylonitrile	µg/L	--	--	--	15	< 2
	lbs/day	--	--	--	0.025	< 0.1
Aldrin	µg/L	--	--	--	0.0033	< 0.005
	lbs/day	--	--	--	0.0000056	< 0.0000056
Benzene	µg/L	--	--	--	900	< 0.5
	lbs/day	--	--	--	1.5	--
Benzidine	µg/L	--	--	--	0.01	< 5
	lbs/day	--	--	--	0.000017	< 0.00017
Beryllium	µg/L	--	--	--	5.0	< 0.5
	lbs/day	--	--	--	0.0084	< 0.0084
Bis(2-chloroethyl) Ether	µg/L	--	--	--	6.8	< 1
	lbs/day	--	--	--	0.011	< 0.11
Bis(2-ethylhexyl) Phthalate	µg/L	--	--	--	530	180
	lbs/day	--	--	--	0.89	0.11
Carbon Tetrachloride	µg/L	--	--	--	140	0.37 (DNQ)
	lbs/day	--	--	--	0.23	< 1
Chlordane	µg/L	--	--	--	0.0035	< 0.1
	lbs/day	--	--	--	0.0000058	< 0.0000058
Chlorodibromomethane	µg/L	--	--	--	1,300	2.9
	lbs/day	--	--	--	2.2	< 0.1
Chloroform	mg/L	--	--	--	20	0.210
	lbs/day	--	--	--	33	0.177
DDT	µg/L	--	--	--	0.026	< 0.05
	lbs/day	--	--	--	0.000043	< 0.000043
1,4-dichlorobenzene	µg/L	--	--	--	2,700	< 1
	lbs/day	--	--	--	4.6	< 1
3,3'-dichlorobenzidine	µg/L	--	--	--	1.2	< 1
	lbs/day	--	--	--	0.0021	< 0.0021
1,2-dichloroethane	µg/L	--	--	--	4,300	0.51
	lbs/day	--	--	--	7.1	< 1
1,1-dichloroethylene	µg/L	--	--	--	140	< 0.5
	lbs/day	--	--	--	0.23	--
Dichlorobromomethane	µg/L	--	--	--	940	13
	lbs/day	--	--	--	1.6	< 1
Dichloromethane	mg/L	--	--	--	68	0.0011
	lbs/day	--	--	--	110	< 1

Parameter	Units	Effluent Limitation				Monitoring Data (From 1/1/2010 – To 4/30/2014)
		6-Month Median	Daily Maximum	Instantaneous Maximum	30-Day Average	Maximum Reported Value
1,3-dichloropropene	µg/L	--	--	--	1,400	< 0.5 µg/L
	lbs/day	--	--	--	2.3	--
Dieldrin	µg/L	--	--	--	0.0061	< 0.01
	lbs/day	--	--	--	0.00001	< 0.00001
2,4-dinitrotoluene	µg/L	--	--	--	400	< 1
	lbs/day	--	--	--	0.66	< 0.66
1,2-diphenylhydrazine	µg/L	--	--	--	24	0.57 (DNQ)
	lbs/day	--	--	--	0.041	< 0.041
Halomethanes	µg/L	--	--	--	20,000	1.71
	lbs/day	--	--	--	33	< 1
Heptachlor	µg/L	--	--	--	0.0076	< 0.01
	lbs/day	--	--	--	0.000013	< 0.000013
Heptachlor Epoxide	µg/L	--	--	--	0.003	< 0.01
	lbs/day	--	--	--	0.0000051	< 0.0000051
Hexachlorobenzene	µg/L	--	--	--	0.032	< 1
	lbs/day	--	--	--	0.000053	< 0.00053
Hexachlorobutadiene	µg/L	--	--	--	2,100	< 1
	lbs/day	--	--	--	3.5	< 1
Hexachloroethane	µg/L	--	--	--	380	< 1
	lbs/day	--	--	--	0.63	< 0.63
Isophorone	mg/L	--	--	--	110	0.00025 (DNQ)
	lbs/day	--	--	--	190	< 3
N-nitrosodimethylamine	µg/L	--	--	--	1,100	< 1
	lbs/day	--	--	--	1.9	< 1
N-nitrosodi-N-propylamine	µg/L	--	--	--	58	< 1
	lbs/day	--	--	--	0.096	< 0.096
N-nitrosodiphenylamine	µg/L	--	--	--	380	< 1
	lbs/day	--	--	--	0.63	< 0.63
Polynuclear Aromatic Hydrocarbons	µg/L	--	--	--	1.3	< 10
	lbs/day	--	--	--	0.0022	< 0.0022
Polychlorinated Biphenyls (PCBs)	µg/L	--	--	--	0.0029	< 0.5
	lbs/day	--	--	--	0.0000048	< 0.0000048
TCDD equivalents	µg/L	--	--	--	5.9×10^{-7}	$< 1 \times 10^{-5}$
	lbs/day	--	--	--	9.9×10^{-10}	$< 9.9 \times 10^{-10}$
1,1,2,2-tetrachloroethane	µg/L	--	--	--	350	< 0.5
	lbs/day	--	--	--	0.58	< 0.58
Tetrachloroethylene	µg/L	--	--	--	300	< 0.5
	lbs/day	--	--	--	0.51	< 0.51

Parameter	Units	Effluent Limitation				Monitoring Data (From 1/1/2010 – To 4/30/2014)
		6-Month Median	Daily Maximum	Instantaneous Maximum	30-Day Average	Maximum Reported Value
Toxaphene	µg/L	--	--	--	0.032	< 0.5
	lbs/day	--	--	--	0.000053	< 0.000053
Trichloroethylene	µg/L	--	--	--	4,100	< 0.5
	lbs/day	--	--	--	6.8	< 1
1,1,2-trichloroethane	µg/L	--	--	--	1,400	< 0.5
	lbs/day	--	--	--	2.4	< 1
2,4,6-trichlorophenol	µg/L	--	--	--	44	< 1
	lbs/day	--	--	--	0.074	< 0.74
Vinyl Chloride	µg/L	--	--	--	5,500	< 0.5
	lbs/day	--	--	--	9.1	< 1

Source: Avila Beach Community Services District Wastewater Treatment Facility, Order R3-2009-0055. Effluent data from December 2009 to April 2014 retrieved from CIWQS.

D. Compliance Summary

The Discharger reported 39 incidents of noncompliance during the December 2009 through April 2014 period. A description of the discharge violation is included in the table below:

Table F-4. Compliance Summary, 2009 through 2014

Date	Parameter	Permit Limit	Reported Value	Corrective Action
12/31/2009	BOD ₅	40 mg/L Monthly Average	50 mg/L	No action at this time
1/31/2010	BOD ₅	40 mg/L Monthly Average	43 mg/L	Primary clarifier should be replaced and into service late April 2010. Until then, Operations staff is manually cleaning the contact chambers to limit solids accumulation, which is causing poor effluent quality.
2/28/2010	BOD ₅	40 mg/L Monthly Average	42 mg/L	The discharger is currently fixing its primary clarifier and is awaiting special parts. The exceedances may be due to the lack of a primary clarifier. The plant is expected to be back online mid-to-late summer.
2/28/2010	TSS	40 mg/L Monthly Average	47 mg/L	

Date	Parameter	Permit Limit	Reported Value	Corrective Action
2/28/2010	TSS Percent Removal	75% Monthly Average Minimum	64.2%	Influent TSS average was 100 mg/L below plant design, although effluent TSS was above 40 mg/L, at 40 mg/L the removal rate would still calculate below 70%. The new permit has increased influent sampling to twice monthly to try to raise the monthly influent loading averages.
4/30/2010	TSS	40 mg/L Monthly Average	43 mg/L	Until the primary clarifier is back in service, operations staff is performing manual cleaning of the secondary treatment facility in attempts to limit carry-over of solids due to reduced retention times during repairs.
5/31/2010	TSS	40 mg/L Monthly Average	44 mg/L	Primary clarifier expected to be placed in service July 1, 2010. Staff continues to manually clean all areas downstream of secondary to reduce TSS in final effluent.
5/31/2010	BOD ₅ Percent Removal	75% Monthly Average Minimum	67.9%	Staff is installing new sample collection location to ensure accuracy of sample.
5/31/2010	TSS Percent Removal	75% Monthly Average Minimum	57.5%	
6/17/2010	TSS	90 mg/L Daily Maximum	92 mg/L	Primary Clarifier expected to return to service prior to July 4 th holiday. Additional samples taken to trend increase, no additional daily max violation, levels dropped through month of June.
6/30/2010	BOD ₅	40 mg/L Monthly Average	54 mg/L	Primary Clarifier expected to return to service prior to July 4 th holiday.
6/30/2010	TSS	40 mg/L Monthly Average	54 mg/L	
1/8/2011	Total Coliform	2,400.0 MPN/100 mL Daily Maximum	160,000 MPN/100 mL	Operations staff discovered a blockage in the chlorine delivery system. Staff repaired system and collected effluent sample as required. The next day, operations staff sampled again for total and fecal coliform, which resulted in concentrations of 2 and <2 MPN/100 mL, respectively.

Date	Parameter	Permit Limit	Reported Value	Corrective Action
1/13/2011	Enterococci (RSW-E)	100 MPN/100 mL Daily Maximum	109 MPN/100 mL	There is no corrective action operations staff can take as the sample station is located upstream of the facility and thus not representative of the plant's effluent quality.
4/2/2011	Chlorine, Total Residual	2.0 lbs/day Daily Maximum	5.3 lbs/day	The operator called maintenance and the pump was repaired. The operator did not submit a re-sample to the lab as it was closed (weekend hours are 9-1). The operator did run an on-site total chlorine test that came back at 0.00 mg/L. As indicated by the following results, the problem was corrected.
4/2/2011	Chlorine, Total Residual	1.2 mg/L Daily Maximum	11.4 mg/L	
6/5/2011	Settleable Solids	Report	Operator used an incorrect pre-printed chain of custody form. The oversight was caught and the settleable solids test was found outside the required holding time. Reported value was <0.1 mg/L	Discussed the need to have new chain of custody forms that reflected the change in procedures. The operator will update the chains he currently has to include settleable solids as a test on the effluent.
7/17/2011	Settleable Solids	Report	SMR did not include required settleable solids monitoring data. Negligent or inadvertent failure to comply with monitoring requirements.	Operations staff has replaced all old chain of custody forms with a new version that requests settleable solids.
7/31/2011	BOD ₅	40 mg/L Monthly Average	43 mg/L	Operations staff is continuing to take extra samples of the influent and compile data. Staff will be making recommendations to the District Manager to address this issue.
8/16/2011	BOD ₅	60 mg/L Weekly Average	64 mg/L	Staff will continue to monitor influent loading. An additional recirculation pump has been installed to re-circulate secondary effluent to the Fixed Film Reactor. An additional 240 cubic feet of plastic media will be installed to provide more surface area [for fixed film growth] to improve treatment.
8/31/2011	BOD ₅	40 mg/L Monthly Average	48 mg/L	

Date	Parameter	Permit Limit	Reported Value	Corrective Action
9/28/2011	Chlorine, Total Residual	Report	Negligent or inadvertent failure to comply with monitoring requirements	Staff is working to improve communications in regards to time off requests.
11/26/2011	Temperature	Report	Negligent or inadvertent failure to comply with monitoring requirements	The current operations staff has been trained on the required tests for the weekly monitoring.
1/23/2012	Total Coliform	23 MPN/100 mL 7-Sample Median	34 MPN/100 mL	The chamber was drained and the valve was repaired, eliminating the short-circuiting problem.
7/17/2012	BOD ₅	90 mg/L Daily Maximum	115 mg/L	Until the facility digester is back in service, the operations staff will continue to remove one truck load of sludge weekly, but has also set an action level of 40 inches of sludge, which would trigger an additional load removed regardless of the schedule.
7/17/2012	BOD ₅	60 mg/L Weekly Average	115 mg/L	
7/23/2012	BOD ₅	60 mg/L Weekly Average	61 mg/L	
7/31/2012	BOD ₅	40 mg/L Monthly Average	58 mg/L	
8/17/2012	BOD ₅	60 mg/L Weekly Average	89 mg/L	
8/31/2012	BOD ₅	40 mg/L Monthly Average	48 mg/L	
1/1/2013	BOD ₅	60 mg/L Weekly Average	63 mg/L	
1/7/2013	BOD ₅	90 mg/L Daily Maximum	102 mg/L	
1/7/2013	BOD ₅	60 mg/L Weekly Average	102 mg/L	
1/31/2013	BOD ₅	40 mg/L Monthly Average	59 mg/L	
11/30/2012	Monitoring	Monitoring Reporting Program Sections VIII.B (Benthic Sediment Monitoring), VIII.C (Benthic Biota Monitoring) and IX.C (Outfall Inspection)	The outfall inspection and benthic monitoring was due before December 2012. Negligent or inadvertent failure to comply with monitoring requirements.	Aquatic Bioassay Consultants (ABC) was contacted in August 2012 to perform the inspection and monitoring. Ocean conditions did not permit the divers to conduct the work. The inspection and monitoring took place December 5th, 2012.
12/12/2012	Chlorine, Total Residual	Monitoring Frequency = Daily	Daily monitoring not performed because of a miscommunication of who was responsible for taking the sample to the lab that day. The internal test taken by Operations Staff, with a result of 0.00 mg/L.	Operations Staff has developed a formal schedule of who is taking the daily chlorine residual to the lab for testing.
4/12/2013	Beach Observations		Not completed (Due to turnover in Operations	Current Operation Staff has been retrained and the beach
4/19/2013				

Date	Parameter	Permit Limit	Reported Value	Corrective Action
4/26/2013		Monitoring Frequency = Weekly	Staff, the beach report was not completed)	reporting has been added to the sampling schedule.

The majority of effluent violations involve peak loading periods as the Avila Beach community is a popular tourist attraction on holidays and weekends, especially. Avila CSD has been assessing opportunities onsite, as well as regional partnerships, to allow for increased peak loading capacity. Water Board staff has been tracking those tentative plans and will be assessing if additional enforcement action, such as a time schedule order, is necessary to address peak loading issues.

E. Planned Changes

The Facility is seeking to accept shipments of brine wastes by truck from business entities that would otherwise be discharging to the sanitary sewer system. Such wastewaters include softener regenerant wastes and reverse osmosis brines. Discharges are not permitted, nor anticipated, from facilities that would contribute industrial pollutants or cause pass-through violations, such as metal plating operations or high-strength BOD wastes.

This Order establishes effluent limitations, prohibitions, and monitoring requirements applicable to the discharge of brine wastes. Through the requirements of this Order, the Central Coast Water Board can ensure that discharges of brine remain consistent with applicable requirements of the Clean Water Act and NPDES implementing regulations, as well as the Basin and Ocean Plans.

III. APPLICABLE PLANS, POLICIES, AND REGULATIONS

The requirements contained in this Order are based on the requirements and authorities described in this section.

A. Legal Authorities

This Order serves as WDRs pursuant to article 4, chapter 4, division 7 of the California Water Code (commencing with section 13260). This Order is also issued pursuant to section 402 of the federal Clean Water Act (CWA) and implementing regulations adopted by the U.S. EPA and chapter 5.5, division 7 of the Water Code (commencing with section 13370). It shall serve as an NPDES permit for point source discharges from this facility to surface waters. This Order also serves as a Master Recycling Permit pursuant to article 4, chapter 7, division 7 of the Water Code (commencing with section 13500).

B. California Environmental Quality Act (CEQA)

Under Water Code section 13389, this action to adopt an NPDES permit is exempt from the provisions of Chapter 3 of CEQA, (commencing with section 21100) of Division 13 of the Public Resources Code.

C. State and Federal Laws, Regulations, Policies, and Plans

- 1. Water Quality Control Plan.** The Central Coast Water Board adopted the *Water Quality Control Plan for the Central Coastal Basin* (hereinafter Basin Plan) on June 8, 2011, which designates beneficial uses, establishes water quality objectives, and contains implementation programs and policies to achieve those objectives for receiving waters within the Region. To address ocean waters, the Basin Plan incorporates by reference the *Water Quality Control Plan for Ocean Waters of California* (the Ocean Plan), which was adopted in 1972 and amended in 1978, 1983, 1988, 1990, 1997, 2000, 2005, 2009,

and 2012. The most recent amendment to the Ocean Plan was adopted by the State Water Resources Control Board (the State Water Board) on October 16, 2012, and it was approved by the Office of Administrative Law on July 3, 2013.

The Basin Plan implements State Water Board Resolution No. 88-63, which establishes State policy that all waters, with certain exceptions, should be considered suitable or potentially suitable for municipal or domestic supply (MUN). Because of very high levels of total dissolved solids (TDS) in the Pacific Ocean, the receiving waters for discharges from the Avila Beach Wastewater Treatment Facility meet an exception to Resolution No. 88-63, which precludes waters with TDS levels greater than 3,000 mg/L from the MUN designation. Beneficial uses established by the Basin Plan for the Pacific Ocean, including San Luis Obispo Bay are as follows:

Table F-5. Basin Plan Beneficial Uses

Discharge Point	Receiving Water Name	Beneficial Use(s)
001	Pacific Ocean (San Luis Obispo Bay, from Point San Luis to Point Sal)	• Water Contact (REC-1) and Non-Contact (REC-2) Recreation • Industrial water supply (IND) • Navigation (NAV) • Marine Habitat (MAR) • Shellfish Harvesting (SHELL) • Commercial and Sport Fishing (COMM) • Rare, Threatened, or Endangered Species (RARE) • Wildlife Habitat (WILD)

- D. **Thermal Plan.** The State Water Board adopted the Water Quality Control Plan for Control of Temperature in the Coastal and Interstate Waters and Enclosed Bays and Estuaries of California (Thermal Plan) on May 18, 1972, and amended this plan on September 18, 1975. This plan contains temperature objectives for enclosed bays and coastal waters of California.

Elevated temperature waste discharges shall comply with limitations necessary to assure protection of beneficial uses.

The Ocean Plan defines elevated temperature wastes as:

Liquid, solid, or gaseous material discharged at a temperature higher than the natural temperature of receiving water.

Requirements of this Order implement the Thermal Plan.

- E. **California Ocean Plan.** The State Water Board adopted the Water Quality Control Plan for Ocean Waters of California, California Ocean Plan (Ocean Plan) in 1972 and amended it in 1978, 1983, 1988, 1990, 1997, 2000, 2005, 2009, and 2012. The State Water Board adopted the latest amendment on October 16, 2012, and it became effective on August 19, 2013. The Ocean Plan is applicable, in its entirety, to point source discharges to the ocean. The Ocean Plan identifies beneficial uses of ocean waters of the state to be protected as summarized below:

Table F-6. Ocean Plan Beneficial Uses

Discharge Point	Receiving Water	Beneficial Uses
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Outfall 001	Pacific Ocean	Industrial water supply; water contact and non-contact recreation, including aesthetic enjoyment; navigation; commercial and sport fishing; mariculture; preservation and enhancement of designated Areas of Special Biological Significance (ASBS); rare and endangered species; marine habitat; fish spawning and shellfish harvesting
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In order to protect the beneficial uses, the Ocean Plan establishes water quality objectives and a program of implementation. Requirements of this Order implement the Ocean Plan.

F. **Antidegradation Policy.** Federal regulation 40 C.F.R. section 131.12 requires that the state water quality standards include an antidegradation policy consistent with the federal policy. The State Water Board established California's antidegradation policy in State Water Board Resolution No. 68-16 ("Statement of Policy with Respect to Maintaining High Quality of Waters in California"). Resolution No. 68-16 is deemed to incorporate the federal antidegradation policy where the federal policy applies under federal law. Resolution No. 68-16 requires that existing water quality be maintained unless degradation is justified based on specific findings. The Central Coast Water Board's Basin Plan implements, and incorporates by reference, both the state and federal antidegradation policies. The permitted discharge must be consistent with the antidegradation provision of section 131.12 and State Water Board Resolution No. 68-16.

G. **Anti-Backsliding Requirements.** Sections 402(o) and 303(d)(4) of the CWA and federal regulations at 40 C.F.R. section 122.44(l) restrict backsliding in NPDES permits. These anti-backsliding provisions require that effluent limitations in a reissued permit must be as stringent as those in the previous permit, with some exceptions in which limitations may be relaxed.

H. **Endangered Species Act Requirements.** This Order does not authorize any act that results in the taking of a threatened or endangered species or any act that is now prohibited, or becomes prohibited in the future, under either the California Endangered Species Act (Fish and Game Code, §§ 2050 to 2097) or the Federal Endangered Species Act (16 U.S.C.A. §§ 1531 to 1544). This Order requires compliance with effluent limits, receiving water limits, and other requirements to protect the beneficial uses of waters of the state, including protecting rare and endangered species. The Discharger is responsible for meeting all requirements of the applicable Endangered Species Act.

D. Impaired Water Bodies on CWA 303(d) List

CWA section 303 (d) requires states to identify specific water bodies where water quality standards are not expected to be met after implementation of technology-based effluent limitations on point sources. For all 303 (d) listed water bodies and pollutants, the Central Coast Water Board must develop and implement TMDLs (Total Maximum Daily Loads) that will specify WLAs (Waste Load Allocations) for point sources and Load Allocations for non-point sources.

The Pacific Ocean at San Luis Obispo Bay is identified as impaired on the State's 2008-2010 303 (d) list of impaired water bodies, which was approved by USEPA on November 12, 2011. The receiving water near the point of discharge at Avila Beach (Avila Pier) is identified as impaired by enterococcus bacteria and PCBs; the Pacific Ocean at Avila Beach (mouth of San Luis Obispo Creek) is identified as impaired by enterococcus bacteria; and the Pacific Ocean at Olde Port Beach (131 yards west of the restrooms) is listed as impaired by enterococcus bacteria.

E. Other Plans, Policies and Regulations

1. **Discharges of Storm Water.** For the control of storm water discharged from the site of the wastewater treatment and disposal facilities, the Order requires, if applicable, the Discharger to seek authorization to discharge under and meet the requirements of the State Water Resources Control Board's Water Quality Order 97-03-DWQ, NPDES General Permit No. CAS000001, *Waste Discharge Requirements for Discharges of Storm Water Associated with Industrial Activities Excluding Construction Activities*.
2. **Statewide General Waste Discharge Requirements for Sanitary Sewer Systems (State Water Board Order No. 2006-0003-DWQ).** This General Permit, adopted on May 2, 2006, is applicable to all "federal and state agencies, municipalities, counties, districts, and other public entities that own or operate sanitary sewer systems greater than one mile in length that collect and/or convey untreated or partially treated wastewater to a publicly owned treatment facility in the State of California." The purpose of the General Permit is to promote the proper and efficient management, operation, and maintenance of sanitary sewer systems and to minimize the occurrences and impacts of sanitary sewer overflows. The Discharger, as well as the satellite sewerage agency of Port San Luis Harbor District, have all enrolled in the General Permit.

IV. RATIONALE FOR EFFLUENT LIMITATIONS AND DISCHARGE SPECIFICATIONS

The CWA requires point source dischargers to control the amount of conventional, non-conventional, and toxic pollutants that are discharged into the waters of the United States. The control of pollutants discharged is established through effluent limitations and other requirements in NPDES permits. There are two principal bases for effluent limitations in the Code of Federal Regulations: 40 C.F.R. section 122.44(a) requires that permits include applicable technology-based limitations and standards; and 40 C.F.R. section 122.44(d) requires that permits include water quality-based effluent limitations (WQBELs) to attain and maintain applicable numeric and narrative water quality criteria to protect the beneficial uses of the receiving water. When numeric water quality objectives have not been established, but a discharge has the reasonable potential to cause or contribute to an excursion above a narrative criterion, WQBELs may be established using one or more of three methods described at 40 C.F.R. 122.44 (d) - 1) WQBELs may be established using a calculated water quality criterion derived from a proposed State criterion or an explicit State policy or regulation interpreting its narrative criterion; 2) WQBELs may be established on a case-by-case basis using U.S. EPA criteria guidance published under CWA section 304 (a); or 3) WQBELs may be established using an indicator parameter for the pollutant of concern.

A. Discharge Prohibitions

1. Discharge Prohibition II. A (No discharge to Pacific Ocean [San Luis Obispo Bay] at a location other than as described by the Order). The Order authorizes a single, specific point of discharge to San Luis Obispo Bay; and this prohibition reflects CWA section 402's prohibition against discharges of pollutants except in compliance with the Act's permit requirements, effluent limitations, and other enumerated provisions. This prohibition is also retained from the previous permit.
2. Discharge Prohibition II. B (Discharges in a manner except as described by the Order are prohibited). Because limitations and conditions of the Order have been prepared based on specific information provided by the Discharger and specific wastes described by the Discharger, the limitations and conditions of the Order do not adequately address waste streams not contemplated during drafting of the Order. To prevent the discharge of such waste streams that may be inadequately regulated, the Order prohibits the discharge of any waste that was not described by to the Central Coast Water Board during the process of permit reissuance.

3. Discharge Prohibition II. C (Discharges of radiological, chemical, or biological warfare agent or high level radioactive waste to the Ocean is prohibited). This prohibition restates a discharge prohibition established in section III. H of the Ocean Plan.
4. Discharge Prohibition II. D (Federal law prohibits the discharge of sludge by pipeline the Ocean. The discharge of municipal or industrial waste sludge directly to the Ocean or into a waste stream that discharges to the Ocean is prohibited. The discharge of sludge digester supernatant, without further treatment, directly to the Ocean or to a waste stream that discharges to the Ocean, is prohibited.) This prohibition reflects the prohibition in Chapter III. H of the Ocean Plan.
5. Discharge Prohibition II. E (The overflow or bypass of wastewater from the Discharger's collection, treatment, or disposal facilities and the subsequent discharge of untreated or partially treated wastewater, except as provided for in Attachment D, Standard Provision I.G. (Bypass), is prohibited). The discharge of untreated or partially treated wastewater from the Discharger's collection, treatment, or disposal facilities represents an unauthorized bypass pursuant to 40 C.F.R. 122.41 (m) or an unauthorized discharge, which poses a threat to human health and/or aquatic life, and therefore, is explicitly prohibited by the Order.
6. Discharge Prohibition II. F (Materials and substances that are prohibited). This prohibition is based on the requirements of the Ocean Plan and is carried over from Discharge Prohibition II. G of the previous Order.

B. Technology-Based Effluent Limitations

1. Scope and Authority

Section 301(b) of the CWA and implementing USEPA permit regulations at 40 C.F.R. section 122.44 require that permits include conditions meeting applicable technology-based requirements at a minimum, and any more stringent effluent limitations necessary to meet applicable water quality standards. Where the USEPA has not yet developed technology based standards for a particular industry or a particular pollutant, CWA section 402 (a) (1) and USEPA regulations at 40 C.F.R. 125.3 authorize the use of best professional judgment (BPJ) to derive technology-based effluent limitations on a case-by-case basis. When BPJ is used, the permit writer must consider specific factors outlined at 40 C.F.R. 125.3.

- a. Secondary Treatment Standards. Regulations promulgated in 40 C.F.R. 125.3(a)(1) require technology-based effluent limitations for municipal Dischargers to be placed in NPDES permits based on Secondary Treatment Standards or Equivalent to Secondary Treatment Standards.

The Federal Water Pollution Control Act Amendments of 1972 (PL 92-500) established the minimum performance requirements for POTW's [defined in section 304(d)(1)]. Section 301(b)(1)(B) of that Act requires that such treatment works must, as a minimum, meet effluent limitations based on secondary treatment as defined by the USEPA Administrator.

Based on this statutory requirement, USEPA developed secondary treatment regulations, which are specified in 40 C.F.R. part 133. These technology-based regulations apply to all municipal wastewater treatment plants and identify the minimum level of effluent quality attainable by secondary treatment in terms of biochemical oxygen demand (BOD₅), total suspended solids (TSS), and pH.

- b. Equivalent to Secondary Treatment Standards. Following publication of the secondary treatment regulations, legislative history indicates that Congress was concerned that USEPA had not “sanctioned” the use of certain biological treatment techniques that were effective in achieving significant reductions in BOD₅ and TSS for secondary treatment. Therefore, to prevent unnecessary construction of costly new facilities, Congress included language in the 1981 amendment to the Construction Grants statutes [Section 23 of PL 97-147] that required USEPA to provide allowance for alternative biological treatment technologies such as trickling filters or waste stabilization ponds. In response to this requirement, definition of secondary treatment was modified on September 20, 1984 and June 3, 1985, and published in the revised secondary treatment regulations contained in 40 C.F.R. 133.105. These regulations allow alternative limitations for facilities using trickling filters and waste stabilization ponds that meet the requirements for “equivalent to secondary treatment.” These “equivalent to secondary treatment” limitations are up to 45 mg/L (monthly average) and up to 65 mg/L (weekly average) for BOD₅ and TSS.

The Facility uses trickling filters as the principal process for biological (secondary) treatment. Therefore, POTW's that use trickling filters or waste stabilization ponds, identified in 40 C.F.R. section 133.103, as the principal process for secondary treatment and whose operation and maintenance data indicate that the TSS values specified in the equivalent-to-secondary regulations cannot be achieved, can qualify to have their minimum levels of effluent quality for TSS adjusted upwards.

Furthermore, in order to address the variations in facility performance due to geographic, climatic, or seasonal conditions in different states, the Alternative State Requirements (ASR) provision contained in 40 C.F.R. 133.105(d) was written. ASR allows states the flexibility to set permit limitations above the maximum levels of 45 mg/L (monthly average) and 65 mg/L (weekly average) for TSS from lagoons. However, before ASR limitations for suspended solids can be set, the effluent must meet the BOD₅ limitations as prescribed by 40 C.F.R. 133.102(a). Presently, the maximum TSS value set by the State of California for lagoon effluent is 95 mg/L. This value corresponds to a 30-day consecutive average or an average over duration of less than 30 days.

In order to be eligible for equivalent-to-secondary limitations, a POTW must meet all of the following criteria:

- i. The principal treatment process must be either a trickling filter or waste stabilization pond.
- ii. The effluent quality consistently achieved, despite proper operations and maintenance, is in excess of 30 mg/L BOD₅ and TSS.
- iii. Water quality is not adversely affected by the discharge. (40 C.F.R. 133.101(g).)
- iv. The treatment works as a whole provides significant biological treatment such that a minimum 65 percent reduction of BOD₅ is consistently attained (30-day average).

Table F-7. Secondary Treatment Requirements

Parameter	Effluent Limitation			
	30-Day Average	7-Day Average	Daily Maximum	Percent Removal ^[1]
BOD ₅	40 mg/L	60 mg/L	90 mg/L	75
TSS	40 mg/L	60 mg/L	90 mg/L	75
pH	6.0 – 9.0 pH units			--

^[1] 30-day average

In addition, the State Water Board, in Table 2 of the Ocean Plan, has established technology-based requirements, applicable to all POTWs, for oil and grease, suspended and settleable solids, turbidity, and pH.

2. Applicable Technology-Based Effluent Limitations

The following table summarizes technology-based effluent limitations established by the Order.

Table F-8. Summary of Technology-Based Effluent Limitations

Parameter	Units	Effluent Limitations		
		Average Monthly	Average Weekly	Maximum Daily
BOD ₅ ^[1]	mg/L	40	60	90
TSS ^[1]	mg/L	40	60	90
Oil & Grease	mg/L	25	40	75
Settleable Solids	mL/L/hr	1.0	1.5	3.0
Turbidity	NTU	75	100	225
pH	pH units	6.0 – 9.0 at all times		

^[1] 30-day average percent removal shall not be less than 75%.

All technology-based limitations are retained from the previous permit and are required by NPDES regulations at 40 C.F.R. part 133 and/or Table 2 of the Basin Plan.

C. Water Quality-Based Effluent Limitations (WQBELs)

1. Scope and Authority

CWA Section 301(b) and 40 C.F.R. section 122.44(d) require that permits include limitations more stringent than applicable federal technology-based requirements where necessary to achieve applicable water quality standards, including numeric and narrative objectives within a standard.

The process for determining reasonable potential and calculating WQBELs when necessary is intended to protect the designated uses of the receiving water as specified in the Basin Plan, and achieve applicable water quality objectives and criteria that are contained in other state plans and policies, or any applicable water quality criteria contained in the Ocean Plan.

Where reasonable potential has been established for a pollutant, but there is no numeric criterion or objective for the pollutant, WQBELs must be established in accordance with the requirements of 40 C.F.R. 122.44 (d) (1) (vi), using: (1) USEPA criteria guidance under CWA section 304(a), supplemented where necessary by other relevant information; (2) an indicator parameter for the pollutant of concern; or (3) a calculated

numeric water quality criterion, such as a proposed state criterion or policy interpreting the state's narrative criterion, supplemented with other relevant information.

2. Applicable Beneficial Uses and Water Quality Criteria and Objectives

Beneficial uses for ocean waters of the Central Coast Region are established by the Basin Plan and Ocean Plan and are described in section III.C.1 and III.C.3, respectively, of the Fact Sheet.

Water quality criteria applicable to ocean waters of the Region are established by the Ocean Plan, which includes water quality objectives for bacterial characteristics, physical characteristics, chemical characteristics, biological characteristics, and radioactivity. The water quality objectives from the Ocean Plan are incorporated as receiving water limitations into this Order. In addition, Table 1 of the Ocean Plan contains numeric water quality objectives for 83 toxic pollutants for the protection of marine aquatic life and human health. Pursuant to NPDES regulations at 40 C.F.R. 122.44(d)(1), and in accordance with procedures established by the Ocean Plan (2012), the Central Coast Water Board has performed a reasonable potential analysis (RPA) to determine the need for effluent limitations for the Table 1 toxic pollutants.

3. Determining the Need for WQBELs

Procedures for performing an (RPA for ocean dischargers are described in Section III.C and Appendix VI of the Ocean Plan. The procedure is a statistical method that projects an effluent data set while taking into account the averaging period of WQOs, the long term variability of pollutants in the effluent, limitations associated with sparse data sets, and uncertainty associated with censored data sets. The procedure assumes a lognormal distribution of the effluent data set, and compares the 95th percentile concentration at 95 percent confidence of each Table 1 pollutant, accounting for dilution, to the applicable water quality criterion. The RPA results in one of three following endpoints.

- Endpoint 1 – There is “reasonable potential.” An effluent limitation must be developed for the pollutant. Effluent monitoring for the pollutant, consistent with the monitoring frequency in Appendix III (Ocean Plan), is required.
- Endpoint 2 - There is no “reasonable potential.” An effluent limitation is not required for the pollutant. Appendix III (Ocean Plan) effluent monitoring is not required for the pollutant; the Regional Board, however, may require occasional monitoring for the pollutant or for whole effluent toxicity as appropriate.
- Endpoint 3 - The RPA is inconclusive. Monitoring for the pollutant or whole effluent toxicity testing, consistent with the monitoring frequency in Appendix III (Ocean Plan), is required. An existing effluent limitation for the pollutant shall remain in the permit, otherwise the permit shall include a reopener clause to allow for subsequent modification of the permit to include an effluent limitation if the monitoring establishes that the discharge causes, has the reasonable potential to cause, or contribute to an excursion above a Table 1 water quality objective.

The State Water Board has developed a reasonable potential calculator (RPcalc 2.2), which is available at:

http://www.swrcb.ca.gov/water_issues/programs/ocean/docs/trirev/stakeholder050505/rp_calc22_setup.zip

RPcalc 2.2 was used in the development of this Order and considers several pathways in the determination of reasonable potential.

a. First Path

If available information about the receiving water or the discharge supports a finding of reasonable potential without analysis of effluent data, the Central Coast Water Board may decide that WQBELs are necessary after a review of such information. Such information may include: the facility or discharge type, solids loading, lack of dilution, history of compliance problems, potential toxic effects, fish tissue data, §303(d) status of the receiving water, or the presence of threatened or endangered species or their critical habitat, or other information.

b. Second Path

If any pollutant concentration, adjusted to account for dilution, is greater than the most stringent applicable water quality objective, there is reasonable potential for that pollutant.

c. Third Path

If the effluent data contains 3 or more detected and quantified values (i.e., values that are at or above the minimum level (ML)), and all values in the data set are at or above the ML, a parametric RPA is conducted to project the range of possible effluent values. The 95th percentile concentration is determined at 95 percent confidence for each pollutant, and compared to the most stringent applicable water quality objective to determine reasonable potential. A parametric analysis assumes that the range of possible effluent values is distributed lognormally. If the 95th percentile value is greater than the most stringent applicable water quality objective, there is reasonable potential for that pollutant.

d. Fourth Path

If the effluent data contains 3 or more detected and quantified values (i.e., values that are at or above the ML), but at least one value in the data set is less than the ML, a parametric RPA is conducted according to the following steps.

- (1) If the number of censored values (those expressed as a “less than” value) account for less than 80 percent of the total number of effluent values, calculate the M_L (the mean of the natural log of transformed data) and S_L (the standard deviation of the natural log of transformed data) and conduct a parametric RPA, as described above for the Third Path.
- (2) If the number of censored values account for 80 percent or more of the total number of effluent values, conduct a non-parametric RPA, as described below for the Fifth Path. (A non-parametric analysis becomes necessary when the effluent data is limited, and no assumptions can be made regarding its possible distribution.)

e. Fifth Path

A non-parametric RPA is conducted when the effluent data set contains less than 3 detected and quantified values, or when the effluent data set contains 3 or more detected and quantified values but the number of censored values accounts for 80 percent or more of the total number of effluent values. A non-parametric analysis is

conducted by ordering the data, comparing each result to the applicable water quality objective, and accounting for ties. The sample number is reduced by one for each tie, when the dilution-adjusted method detection limit (MDL) is greater than the water quality objective. If the adjusted sample number, after accounting for ties, is greater than 15, the pollutant has no reasonable potential to exceed the water quality objective. If the sample number is 15 or less, the RPA is inconclusive, monitoring is required, and any existing effluent limits in the expiring permit are retained.

An RPA was conducted using effluent data reported from monitoring events from January 2010 to April 2014. The effluent data was obtained from eSMR data posted to CIWQS as well as hard copy reports requested by the Central Coast Water Board. The following tables present results of the RPA, performed in accordance with procedures described by the Ocean Plan for the Avila Beach Community Services District Wastewater Treatment Plant. The maximum effluent concentration adjusted for complete mixing, the applicable WQO, and the RPA endpoint for each Table B pollutant is identified. As shown in the following tables, the RPA commonly lead to Endpoint 3, meaning that the RPA is inconclusive, when a majority of the effluent data is reported as ND (not detected). In these circumstances, the Regional Water Board concludes that additional monitoring will be required for those pollutants during the term of the reissued permit and existing effluent limits will be retained.

Table F-9. RPA Results for Discharges to Pacific Ocean (San Luis Obispo Bay)

Table B Pollutant	Most Stringent WQO (µg/L)	No. of Samples	No. of Non-Detects	Max Effluent Conc. (µg/L)	RPA Result, Comment
Objectives for Protection of Marine Aquatic Life					
Ammonia (as N)	600	5	0	92	Endpoint 1 – Effluent limitation is necessary.
Arsenic	8	4	1	3.0	Endpoint 2 – Effluent limitation not required.
Cadmium	1	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Chlorinated Phenolics	1	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Chromium (VI)	2	5	4	0.0018	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Copper	3	4	0	2.6	Endpoint 1 – Effluent limitation is necessary.
Cyanide	1	4	3	0.092	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Endosulfan (total)	0.009	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Endrin	0.002	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
HCH	0.004	3	3	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Lead	2	4	2	0.0059	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Mercury	0.04	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Nickel	5	4	1	0.15	Endpoint 2 – Effluent limitation not required.

Table B Pollutant	Most Stringent WQO (µg/L)	No. of Samples	No. of Non-Detects	Max Effluent Conc. (µg/L)	RPA Result, Comment
Non-chlorinated Phenolics	30	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Selenium	15	4	1	0.026	Endpoint 2 – Effluent limitation not required.
Silver	0.7	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Total Residual Chlorine	2	1549	1527	75	Endpoint 1 – Effluent limitation is necessary.
Zinc	20	4	1	12	Endpoint 1 – Effluent limitation is necessary.
Objectives for Protection of Human Health - Noncarcinogens					
1,1,1-Trichloroethane	540000	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
2,4-Dinitrophenol	4.0	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
2-Methyl-4,6-Dinitrophenol	220	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Acrolein	220	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Antimony	1200	4	3	0.0034	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Bis(2-Chloroethoxy)Methane	4.4	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Bis(2-Chloroisopropyl)Ether	1200	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Chlorobenzene	570	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Chromium (III)	190000	4	2	0.0099	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Dichlorobenzenes	5100	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Diethyl Phthalate	33000	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Dimethyl Phthalate	820000	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Di-n-Butyl Phthalate	3500	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Ethylbenzene	4100	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Fluoranthene	15	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Hexachlorocyclopentadiene	58	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Nitrobenzene	4.9	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Thallium	2	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Toluene	85000	4	0	0.020	Endpoint 2 – Effluent limitation not required.
Tributyltin	0.0014	5	5	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Objectives for Protection of Human Health - Carcinogens					

Table B Pollutant	Most Stringent WQO (µg/L)	No. of Samples	No. of Non-Detects	Max Effluent Conc. (µg/L)	RPA Result, Comment
1,1,2,2-Tetrachloroethane	2.3	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
1,1,2-Trichloroethane	9.4	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
1,1-Dichloroethylene	0.9	2	2	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
1,2-Dichloroethane	28	4	3	0.0034	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
1,2-Diphenylhydrazine	0.16	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
1,3-Dichloropropylene	8.9	2	2	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
1,4-Dichlorobenzene	18	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
TCDD Equivalents	3.9×10^{-9}	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
2,4,6-Trichlorophenol	0.29	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
2,4-Dinitrotoluene	2.6	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
3,3'-Dichlorobenzidine	0.0081	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Acrylonitrile	0.10	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Aldrin	2.2×10^{-5}	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Benzene	5.9	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Benzidine	6.9×10^{-5}	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Beryllium	0.033	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Bis(2-Chloroethyl)Ether	0.045	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Bis(2-Ethylhexyl)Phthalate	3.5	4	0	1.2	Endpoint 1 – Effluent limitation is necessary.
Carbon Tetrachloride	0.90	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Chlordane	2.3×10^{-5}	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Chlorodibromomethane	8.6	4	2	0.019	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Chloroform	130	6	1	0.99	Endpoint 2 – Effluent limitation not required.
DDT (total)	0.00017	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Dichlorobromomethane	6.2	4	2	0.086	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Dieldrin	0.00004	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Halomethanes	130	4	3	0.011	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.

Table B Pollutant	Most Stringent WQO (µg/L)	No. of Samples	No. of Non-Detects	Max Effluent Conc. (µg/L)	RPA Result, Comment
Heptachlor	0.00005	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Heptachlor Epoxide	0.00002	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Hexachlorobenzene	0.00021	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Hexachlorobutadiene	14	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Hexachloroethane	2.5	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Isophorone	730	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Methylene Chloride	450	4	2	0.0072	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
N-Nitrosodimethylamine	7.3	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
N-Nitrosodi-n-Propylamine	0.38	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
N-Nitrosodiphenylamine	2.5	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
PAHs (total)	0.0088	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
PCBs	1.9×10^{-5}	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Tetrachloroethylene	2.0	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Toxaphene	0.00021	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Trichloroethylene	27	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.
Vinyl Chloride	36	4	4	ND	Endpoint 3 – RPA is inconclusive. Less than 3 detects or greater than 80% ND.

NA indicates that effluent data is not available.

ND indicates that the pollutant was not detected.

Minimum probable initial dilution for this Discharger is 151:1.

Effluent data used for this RPA were collected from January 2010 to April 2014.

All units are µg/L.

4. WQBEL Calculations

Based on results of the RPA, performed in accordance with methods of the Ocean Plan for discharges to the Pacific Ocean, the Regional Water Board is establishing WQBELs for ammonia, copper, zinc, total residual chlorine, and bis(2-ethylhexyl)phthalate based on a conclusion of Endpoint 1. An Endpoint 2 was concluded for arsenic, nickel, selenium, toluene, and chloroform. Effluent limits are not required for pollutants resulting in an Endpoint 2. All other Ocean Plan Table B pollutants resulted in an Endpoint 3; therefore, the limits for these pollutants are retained in this Order. The Regional Water Board is also establishing WQBELs for whole effluent, acute and chronic toxicity, which are also pollutants or pollutant parameters identified by Table 1 of the Ocean Plan.

As described by Section III. C of the Ocean Plan, effluent limits for Table 1 pollutants are calculated according to the following equation:

$$C_e = C_o + D_m (C_o - C_s)$$

Where ...

C_e = the effluent limitation ($\mu\text{g/L}$)

C_o = the concentration (the water quality objective) to be met at the completion of initial dilution ($\mu\text{g/L}$).

C_s = background seawater concentration ($\mu\text{g/L}$)

D_m = minimum probable initial dilution expressed as parts seawater per part wastewater (here, $D_m = 151$)

For the Avila Beach Community Services District Wastewater Treatment Plant, the D_m of 151 is unchanged from Order No. R3-2009-0055. Initial dilution is the process that results in the rapid and irreversible turbulent mixing of wastewater with ocean water around the point of discharge. As site-specific water quality data is not available, in accordance with Table 1 implementing procedures, C_s equals zero for all pollutants, except the following:

Table F-10. Background Concentrations (C_s) – Ocean Plan (Table 3)

Pollutant	Background Seawater Concentration
Arsenic	3 $\mu\text{g/L}$
Copper	2 $\mu\text{g/L}$
Mercury	0.0005 $\mu\text{g/L}$
Silver	0.16 $\mu\text{g/L}$
Zinc	8 $\mu\text{g/L}$

For all other Table 1 parameters, $C_s = 0$

Applicable water quality objectives from table 1 of the Ocean Plan are as follows:

Table F-11. Water Quality Objectives (C_o) – Ocean Plan (Table 1) Objectives for Protection of Marine Aquatic Life

Pollutant	Units	6-Month Median	Daily Maximum	Instantaneous Maximum
Arsenic	$\mu\text{g/L}$	8	32	80
Cadmium	$\mu\text{g/L}$	1	4	10
Chromium (VI)	$\mu\text{g/L}$	2	8	20
Copper	$\mu\text{g/L}$	3	12	30
Lead	$\mu\text{g/L}$	2	8	20
Mercury	$\mu\text{g/L}$	0.04	0.16	0.4
Nickel	$\mu\text{g/L}$	5	20	50
Selenium	$\mu\text{g/L}$	15	60	150
Silver	$\mu\text{g/L}$	0.7	2.8	7
Zinc	$\mu\text{g/L}$	20	80	200
Cyanide	$\mu\text{g/L}$	1	4	10
Total Chlorine Residual	$\mu\text{g/L}$	2	8	60
Ammonia	$\mu\text{g/L}$	600	2400	6000
Acute Toxicity	TUa	-----	0.3	-----

Pollutant	Units	6-Month Median	Daily Maximum	Instantaneous Maximum
Chronic Toxicity	TUc	-----	1	-----
Non-chlorinated Phenolics	µg/L	30	120	300
Chlorinated Phenolics	µg/L	1	4	10
Endosulfan (total)	µg/L	0.009	0.018	0.027
Endrin	µg/L	0.002	0.004	0.006
HCH	µg/L	0.004	0.008	0.012
Radioactivity	µg/L	-----	-----	-----

Table F-12. Water Quality Objectives (Co) – Ocean Plan (Table 1) Objectives for Protection of Human Health – (Non-Carcinogens)

Pollutant	Units	30-day Average
Acrolein	µg/L	220
Antimony	µg/L	1,200
Bis(2-Chloroethoxy)Methane	µg/L	4.4
Bis(2-Chloroisopropyl)Ether	µg/L	1,200
Chlorobenzene	µg/L	570
Chromium (III)	µg/L	190,000
Di-n-Butyl Phthalate	µg/L	3,500
Dichlorobenzenes	µg/L	5,100
Diethyl Phthalate	µg/L	33,000
Dimethyl Phthalate	µg/L	820,000
2-Methyl-4,6-Dinitrophenol	µg/L	220
2,4-Dinitrophenol	µg/L	4
Ethylbenzene	µg/L	4,100
Fluoranthene	µg/L	15
Hexachlorocyclopentadiene	µg/L	58
Nitrobenzene	µg/L	4.9
Thallium	µg/L	2
Toluene	µg/L	85,000
Tributyltin	µg/L	0.0014
1,1,1-Trichloroethane	µg/L	540,000

Table F-13. Water Quality Objectives (Co) – Ocean Plan (Table 1) Objectives for Protection of Human Health – (Carcinogens)

Pollutant	Units	30-day Average
Acrylonitrile	µg/L	0.1
Aldrin	µg/L	0.000022
Benzene	µg/L	5.9
Benzidine	µg/L	0.000069
Beryllium	µg/L	0.033

Pollutant	Units	30-day Average
Bis(2-Chloroethyl)Ether	µg/L	0.045
Bis(2-Ethylhexyl)Phthalate	µg/L	3.5
Carbon Tetrachloride	µg/L	0.9
Chlordane	µg/L	0.000023
Chlorodibromomethane	µg/L	8.6
Chloroform	µg/L	130
DDT (total)	µg/L	0.00017
1,4 Dichlorobenzene	µg/L	18
3,3'-Dichlorobenzidine	µg/L	0.0081
1,2-Dichloroethane	µg/L	28
1,1-Dichloroethylene	µg/L	0.9
Dichlorobromomethane	µg/L	6.2
Methylene Chloride	µg/L	450
1,3-Dichloropropylene	µg/L	8.9
Dieldrin	µg/L	0.00004
2,4-Dinitrotoluene	µg/L	2.6
1,2-Diphenylhydrazine	µg/L	0.16
Halomethanes	µg/L	130
Heptachlor	µg/L	0.00005
Heptachlor Epoxide	µg/L	0.00002
Hexachlorobenzene	µg/L	0.00021
Hexachlorobutadiene	µg/L	14
Hexachloroethane	µg/L	2.5
Isophorone	µg/L	730
N-Nitrosodimethylamine	µg/L	7.3
N-Nitrosodi-n-Propylamine	µg/L	0.38
N-Nitrosodiphenylamine	µg/L	2.5
PAHs (total)	µg/L	0.0088
PCBs	µg/L	0.000019
TCDD Equivalents	µg/L	0.0000000039
1,1,2,2-Tetrachloroethane	µg/L	2.3
Tetrachloroethylene	µg/L	2
Toxaphene	µg/L	0.00021
Trichloroethylene	µg/L	27
1,1,2-Trichloroethane	µg/L	9.4
2,4,6-Trichlorophenol	µg/L	0.29
Vinyl Chloride	µg/L	36

Effluent limits are calculated using the equation $C_e = C_o + D_m (C_o - C_s)$ as outlined above. For example, the effluent limitations for cyanide are calculated as follows.

Copper

$$C_e = 3 + 151 (3 - 2) = 154 \text{ } \mu\text{g/L (6-Month Median)}$$

$$C_e = 12 + 151(12 - 2) = 1,522 \mu\text{g/L (Daily Maximum)}$$

$$C_e = 30 + 151(30 - 2) = 4,258 \mu\text{g/L (Instantaneous Maximum)}$$

Chronic Toxicity

$$C_e = 1 + 151(1 - 0) = 152 \text{ TUc (Daily Maximum)}$$

Acute Toxicity

To determine an effluent limitation for acute toxicity, the Ocean Plan allows a mixing zone that is ten percent of the distance from the edge of the outfall structure to the edge of the chronic mixing zone (the zone of initial dilution); and therefore, the effluent limitation for acute toxicity is determined by the following equation:

$$C_e = C_o + (0.1) D_m (C_o)$$

Where C_o equals 0.3 and D_m equals 151, the effluent limitation for acute toxicity is 4.8 TUa.

Significant Figures

For consistency purposes, all limits calculated are expressed with two significant digits.

Table F-14. Effluent Limitations for the Protection of Marine Aquatic Life

Pollutant	Unit	6-Month Median	Daily Maximum	Instantaneous Maximum
Cadmium	$\mu\text{g/L}$	150	610	1,500
Chromium VI	$\mu\text{g/L}$	300	1,200	3,000
Copper	$\mu\text{g/L}$	150	1,500	4,300
Lead	$\mu\text{g/L}$	300	1,200	3,000
Mercury	$\mu\text{g/L}$	6	24	61
Silver	$\mu\text{g/L}$	82	400	1,000
Zinc	$\mu\text{g/L}$	1,800	11,000	29,000
Cyanide ^[1]	$\mu\text{g/L}$	150	610	1,500
Total Residual Chlorine	$\mu\text{g/L}$	300	1,200	9,100
Ammonia (as N)	$\mu\text{g/L}$	91,000	360,000	910,000
Acute Toxicity	TUa	---	4.8	---
Chronic Toxicity	TUc	---	150	---
Phenolic Compounds (non-chlorinated)	$\mu\text{g/L}$	4,600	18,000	46,000
Chlorinated Phenolics	$\mu\text{g/L}$	150	610	1,500
Endosulfan	$\mu\text{g/L}$	1.4	2.7	4.1
Endrin	$\mu\text{g/L}$	0.30	0.61	0.91
HCH	$\mu\text{g/L}$	0.61	1.2	1.8
Radioactivity	--	Not to exceed limits specified in California Code of Regulations, Title 22, Division 4, Chapter 15, Article 5, Section 64443		

Pollutant	Unit	6-Month Median	Daily Maximum	Instantaneous Maximum
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^[1] If a discharger can demonstrate to the satisfaction of the Regional Board (subject to EPA approval) that an analytical method is available to reliably distinguish between strongly and weakly complexed cyanide, effluent limitations for cyanide may be met by the combined measurement of free cyanide, simple alkali metal cyanides, and weakly complexed organometallic cyanide complexes. In order for the analytical method to be acceptable, the recovery of free cyanide from metal complexes must be comparable to that achieved by the approved method in 40 C.F.R. Part 136, as revised May 14, 1999.

Table F-15. Effluent Limitations for the Protection of Human Health (Non-Carcinogens)

Pollutant	Unit	30-day Average
Acrolein	µg/L	33,000
Antimony	µg/L	180,000
Bis(2-Chloroethoxy)Methane	µg/L	670
Bis(2-Chloroisopropyl)Ether	µg/L	180,000
Chlorobenzene	µg/L	87,000
Chromium (III)	µg/L	29,000,000
Di-n-Butyl Phthalate	µg/L	530,000
Dichlorobenzenes	µg/L	780,000
Diethyl Phthalate	µg/L	5,000,000
Dimethyl Phthalate	µg/L	120,000,000
2-Methyl-4,6-Dinitrophenol	µg/L	33,000
2,4-Dinitrophenol	µg/L	610
Ethylbenzene	µg/L	620,000
Fluoranthene	µg/L	2,300
Hexachlorocyclopentadiene	µg/L	8,800
Nitrobenzene	µg/L	740
Thallium	µg/L	300
Tributyltin	µg/L	0.21
1,1,1-Trichloroethane	µg/L	82,000,000

Table F-16. Effluent Limitations for the Protection of Human Health (Carcinogens)

Pollutant	Unit	30-day Average
Acrylonitrile	µg/L	15
Aldrin	µg/L	0.0033
Benzene	µg/L	900
Benzidine	µg/L	0.010
Beryllium	µg/L	5.0
Bis(2-Chloroethyl)Ether	µg/L	6.8
Bis(2-Ethylhexyl)Phthalate	µg/L	530
Carbon Tetrachloride	µg/L	140
Chlordane ^[1]	µg/L	0.0035
Chlorodibromomethane	µg/L	1,300
DDT (total)	µg/L	0.026

Pollutant	Unit	30-day Average
1,4 Dichlorobenzene	µg/L	2,700
3,3'-Dichlorobenzidine	µg/L	1.2
1,2-Dichloroethane	µg/L	4,300
1,1-Dichloroethylene	µg/L	140
Dichlorobromomethane	µg/L	940
Dichloromethane (Methylene Chloride)	µg/L	68,000
1,3-Dichloropropene	µg/L	1,400
Dieldrin	µg/L	0.0061
2,4-Dinitrotoluene	µg/L	400
1,2-Diphenylhydrazine	µg/L	24
Halomethanes	µg/L	20,000
Heptachlor	µg/L	0.0076
Heptachlor Epoxide	µg/L	0.0030
Hexachlorobenzene	µg/L	0.032
Hexachlorobutadiene	µg/L	2,100
Hexachloroethane	µg/L	380
Isophorone	µg/L	110,000
N-Nitrosodimethylamine	µg/L	1,100
N-Nitrosodi-n-Propylamine	µg/L	58
N-Nitrosodiphenylamine	µg/L	380
PAHs (total)	µg/L	1.3
PCBs ^[1]	µg/L	0.0029
TCDD Equivalents	µg/L	5.9E-07
1,1,2,2-Tetrachloroethane	µg/L	350
Tetrachloroethylene	µg/L	300
Toxaphene	µg/L	0.032
Trichloroethylene	µg/L	4,100
1,1,2-Trichloroethane	µg/L	1,400
2,4,6-Trichlorophenol	µg/L	44
Vinyl Chloride	µg/L	5,500

^[1] See Attachment A for applicable definitions.

5. Whole Effluent Toxicity (WET)

Whole effluent toxicity (WET) limitations protect receiving water quality from the aggregate toxic effect of a mixture of pollutants in the effluent. WET tests measure the degree of response of exposed aquatic test organisms to an effluent. The WET approach allows for protection of the narrative “no toxics in toxic amounts” criterion while implementing numeric criteria for toxicity. There are two types of WET tests - acute and chronic. An acute toxicity test is conducted over a short time period and measures mortality. A chronic toxicity test is conducted over a longer period of time and may measure mortality, reproduction, and growth.

Central Coast Water Board staff have determined that treated wastewater from the Facility has a reasonable potential to cause or contribute to chronic toxicity in the discharge. Such a determination is consistent with the RPA procedure of the Ocean Plan

which requires consideration of all available information, including the "potential toxic impact of the discharge" to determine if WQBELs are necessary, notwithstanding the statistical procedure with which the RPA is conducted for most pollutants. Due to the multiple residential, commercial, and industrial contributors to the influent flow of the Avila Beach Community Services District Wastewater Treatment Plant, and because the cumulative effects of various pollutants present at low levels in the discharge are unknown, acute and chronic toxicity limitations are retained from the previous permit. Further, the effluent limitations have been calculated based on a minimum probable initial dilution of 151 to 1.

The Discharger must also maintain a Toxicity Reduction Evaluation (TRE) Workplan, which describes steps that the Discharger intends to follow in the event that acute and/or chronic toxicity limitations are exceeded. When monitoring measures WET in the effluent above the limitations established by the Order, the Discharger must resample, if the discharge is continuing, and retest. The Executive Officer will then determine whether to initiate enforcement action, whether to require the Discharger to implement a Toxicity Reduction Evaluation, or to implement other measures.

D. Final Effluent Limitation Considerations

Final, technology-based and water quality-based effluent limitations established by the Order are discussed in the preceding sections of the Fact Sheet.

1. Anti-Backsliding Requirements

The Order retains effluent limitations established by the previous permit for BOD₅, TSS, oil and grease, settleable solids, turbidity, pH, and total coliform.

The Order also retains most of the effluent limitations from the previous permit for the Ocean Plan Table 1 (formerly Table B) toxic pollutants. The Ocean Plan was amended in 2005 to include a procedure for determining "reasonable potential" by characterization of effluent monitoring data. A reasonable potential analysis, using the updated Ocean Plan procedure, resulted in a finding of Endpoint 2 for the following Table 1 pollutants: arsenic, nickel, selenium, toluene, and chloroform. Effluent limits are not required for pollutants resulting in an Endpoint 2. Regional Water Board is establishing WQBELs for ammonia, copper, total residual chlorine, bis(2-ethylhexyl)phthalate based on a conclusion of Endpoint 1. All other Ocean Plan Table 1 pollutants resulted in an Endpoint 3; therefore, the limits for these pollutants are retained in this Order. The Regional Water Board is also establishing WQBELs for whole effluent, acute and chronic toxicity, which are also pollutants or pollutant parameters identified by Table 1 of the Ocean Plan.

The Order contains effluent concentration limitations only. Consequently, the Order does not contain effluent limitations or prohibitions that are less stringent than the previous permit and is consistent with the anti-backsliding requirements.

2. Antidegradation Policies

The Order does not authorize increases in discharge rates or pollutant loadings, and its limitations and conditions otherwise assure maintenance of the existing quality of receiving waters. Therefore, provisions of the Order are consistent with applicable anti-degradation policy expressed by NPDES regulations at 40 C.F.R. 131.12 and by State Water Board Resolution 68-16.

3. Stringency of Requirements for Individual Pollutants

This Order contains both technology-based and water quality-based effluent limitations for individual pollutants. The technology-based effluent limitations consist of restrictions

on BOD₅; TSS; oil and grease; settleable solids; turbidity; and pH. Restrictions on these pollutants are discussed in section IV. B of the Fact Sheet. This Order's technology-based pollutant restrictions implement the minimum, applicable federal technology-based requirements. In addition, this Order contains effluent limitations more stringent than the minimum, federal technology-based requirements that are necessary to meet water quality standards. These limitations are not more stringent than required by the CWA.

Final, technology and water quality-based effluent limitations are summarized in sections IV. B and C of this Fact Sheet.

E. Interim Effluent Limitations

The Order does not establish interim effluent limitations and schedules for compliance with final limitations. Interim limitations are authorized only in certain circumstances, when immediate compliance with newly established final water quality based limitations is not feasible.

F. Land Discharge Specifications – Not Applicable

G. Recycling Specifications

The Order does not address use of reclaimed wastewater except to require compliance with applicable State and local requirements regarding the production and use of reclaimed wastewater, including requirements of California Water Code (CWC) sections 13500 - 13577 (Water Reclamation) and Department of Health Services regulations at title 22, sections 60301 - 60357 of the California Code of Regulations (Water Recycling Criteria).

V. RATIONALE FOR RECEIVING WATER LIMITATIONS

A. Surface Water

Receiving water quality is a result of many factors, some unrelated to the discharge. This Order considers these factors and is designed to minimize the influence of the discharge on the receiving water. Receiving water limitations within the proposed Order include the receiving water limitations of the previous Order.

B. Groundwater

Groundwater limitations established by the Order include general objectives for ground water established by the Basin Plan for the Central Coast Region.

VI. RATIONALE FOR PROVISIONS

A. Standard Provisions

Standard Provisions, which apply to all NPDES permits in accordance with 40 C.F.R. section 122.41, and additional conditions applicable to specified categories of permits in accordance with 40 C.F.R. section 122.42, are provided in Attachment D to the order.

Sections 122.41(a)(1) and (b) through (n) of 40 C.F.R. establish conditions that apply to all State-issued NPDES permits. These conditions must be incorporated into the permits either expressly or by reference. If incorporated by reference, a specific citation to the regulations must be included in the Order. Section 123.25(a)(12) allows the state to omit or modify conditions to impose more stringent requirements. In accordance with 40 C.F.R. section 123.25, this Order omits federal conditions that address enforcement authority specified in 40 C.F.R. sections 122.41(j)(5) and (k)(2) because the enforcement authority under the Water Code is more stringent. In lieu of these conditions, this Order incorporates by reference Water Code section 13387(e).

B. Special Provisions

1. Reopener Provisions

The Order may be modified in accordance with the requirements set forth at 40 C.F.R. sections 122 and 124, to include appropriate conditions or limits based on newly available information, or to implement any, new State water quality objectives that are approved by the U.S. EPA. As effluent is further characterized through additional monitoring, and if a need for additional effluent limitations becomes apparent after additional effluent characterization, the Order will be reopened to incorporate such limitations.

2. Special Studies and Additional Monitoring Requirements

a. Toxicity Reduction Requirements

The requirement to maintain a Toxicity Reduction Work Plan is retained from Order R3-2008-0016. When toxicity monitoring measures acute or chronic toxicity in the effluent above the limitation established by the Order, the Discharger is required to resample and retest, if the discharge is continuing. When all monitoring results are available, the Executive Officer can determine whether to initiate enforcement action, whether to require the Discharger to implement toxicity reduction evaluation (TRE) requirements, or whether other measures are warranted.

b. Brine Waste Disposal Study

This Order establishes limitations, prohibitions, and monitoring requirements applicable to the discharge of brine wastes. Through the requirements of this Order the Central Coast Water Board can ensure that discharges of brine remain consistent with applicable requirements of the Clean Water Act and NPDES implementing regulations, as well as Basin and Ocean Plans.

3. Best Management Practices and Pollution Prevention

a. Pollutant Minimization Program

The 2012 California Ocean Plan establishes guidelines for the Pollutant Minimization Program (PMP). At the time of the proposed adoption of this Order no known evidence was available that would require the Discharger to immediately develop and conduct a PMP. The Central Coast Water Board will notify the Discharger in writing if such a program becomes necessary.

4. Construction, Operation, and Maintenance Specifications – Not Applicable

5. Special Provisions for Municipal Facilities (POTW's Only)

a. Biosolids Management

Provisions regarding sludge handling and disposal ensure that such activity will comply with all applicable regulations.

40 C.F.R. 503 sets forth USEPA's final rule for the use and disposal of biosolids, or sewage sludge, and governs the final use or disposal of biosolids. The intent of this federal program is to ensure that sewage sludge is used or disposed of in a way that protects both human health and the environment.

USEPA's regulations require that producers of sewage sludge meet certain reporting, handling, and disposal requirements. As the USEPA has not delegated the authority to implement the sludge program to the State of California, the enforcement of sludge requirements that apply to the Discharger remains under USEPA's jurisdiction at this time. USEPA, not the Central Coast Water Board, will oversee compliance with 40 C.F.R. 503.

40 C.F.R. 503.4 (Relationship to other regulations) states that the disposal of sewage sludge in a municipal solid waste landfill unit, as defined in 40 C.F.R. 258.2, that complies with the requirements in 40 C.F.R. 258 constitutes compliance with section 405 (d) of the CWA. Any person who prepares sewage sludge that is disposed in a municipal solid waste landfill unit must ensure that the sewage sludge meets the applicable requirements of 40 C.F.R. 503.

b. **Pretreatment – Not Applicable**

6. Other Special Provisions

a. **Discharges of Storm Water**

The Order does not address discharges of storm water from the treatment and disposal site, except to require coverage by and compliance with applicable provisions of General Permit CAS000001 - *Waste Discharge Requirements for Discharges of Storm Water Associated with Industrial Activities*.

b. **Sanitary Sewer System Requirements**

The State Water Board issued General Waste Discharge Requirements for Sanitary Sewer Systems, Water Quality Order 2006-0003-DWQ (General Order) on May 2, 2006. The Monitoring and Reporting Requirements for the General Order were amended by Water Quality Order WQ 2008-0002-EXEC on February 20, 2008. The General Order requires public agencies that own or operate sanitary sewer systems with greater than one mile of pipes or sewer lines to enroll for coverage under the General Order. The General Order requires agencies to develop sanitary sewer management plans (SSMPs) and report all sanitary sewer overflows (SSOs), among other requirements and prohibitions.

Furthermore, the General Order contains requirements for operation and maintenance of collection systems and for reporting and mitigating sanitary sewer overflows. Inasmuch that the Discharger's collection system is part of the system that is subject to this Order, certain standard provisions are applicable as specified in Provisions, section VI.C.5. For instance, the 24-hour reporting requirements in this Order are not included in the General Order. The Discharger must comply with both the General Order and this Order. The Discharger and public agencies that are discharging wastewater into the facility were required to obtain enrollment for regulation under the General Order by December 1, 2006.

7. Compliance Schedules

The Order does not establish interim effluent limitations and schedules of compliance with final limitations.

VII. RATIONALE FOR MONITORING AND REPORTING REQUIREMENTS

CWA section 308 and 40 C.F.R. sections 122.41(h), (j)-(l), 122.44(i), and 122.48 require that all NPDES permits specify monitoring and reporting requirements. Water Code sections 13267 and 13383 also authorize the Central Coast Water Board to establish monitoring, inspection, entry, reporting, and recordkeeping requirements. The Monitoring and Reporting Program (MRP), Attachment E of this Order establishes monitoring, reporting, and recordkeeping requirements that implement federal and state requirements. The following provides the rationale for the monitoring and reporting requirements contained in the MRP for this facility.

A. Influent Monitoring

In addition to influent flow monitoring, influent monitoring for BOD₅ (CBOD₅ may be substituted with Executive Officer approval) and TSS is required to determine compliance with the Order's 75 percent removal requirement for those pollutants. Based on the Discharger's plans to accept shipments of brine wastes by truck and blending these wastes with the equivalent to secondary treated wastewater from the Facility, this Order establishes new requirements to monitor each load of brine waste delivered to the Facility at the new Monitoring Location INF-002.

B. Effluent Monitoring

Effluent monitoring requirements of the previous permit for Discharge Point 001 (the Ocean outfall) have been retained in this Order. Based on the Discharger's plans to accept shipments of brine wastes by truck and blending these wastes with the equivalent to secondary treated wastewater, this Order establishes requirements to sample effluent downstream from brine waste discharges, as well as to monitor for total dissolved solids at Discharge Point 001.

C. Whole Effluent Toxicity Testing Requirements

Whole effluent toxicity (WET) limitations protect receiving water quality from the aggregate toxic effect of a mixture of pollutants in the effluent. Acute toxicity testing measures mortality in 100 percent effluent over a short test period and chronic toxicity testing is conducted over a longer period of time and may measure mortality, reproduction, and/or growth. This Order retains acute and chronic WET limitations and monitoring requirements from the previous permit for Discharge Point 001. The Order requires WET monitoring be conducted concurrently with Table 1 pollutant monitoring one time in a period of high effluent flow and one time during a period of low effluent flow.

D. Receiving Water Monitoring

1. Bacteria Monitoring

The Order retains the bacteriological receiving water monitoring requirements from the previous permit with no changes.

2. Groundwater

Groundwater monitoring requirements are not established by the Order.

E. Other Monitoring Requirements

1. Biosolids/Sludge Monitoring

Biosolids monitoring requirements are retained from the previous Order.

2. Pretreatment Monitoring

The existing Order does not contain pretreatment requirements or a pretreatment program. There are no proposed changes to this section.

3. **Outfall Inspection**

The Order retains the requirement of the previous permit to conduct annual visual inspections of the outfall and diffuser system, and to conduct an outfall inspection to determine whether there are leaks, potential leaks, or malfunctions in the system's physical integrity once per permit term.

VIII. PUBLIC PARTICIPATION

The Central Coast Water Board considered the issuance of WDRs that will serve as an NPDES permit for Avila Beach Community Services District Wastewater Treatment Plant. As a step in the WDR adoption process, the Central Coast Water Board staff developed tentative WDRs and encouraged public participation in the WDR adoption process.

A. Notification of Interested Parties

The Central Coast Water Board notified the Discharger and interested agencies and persons of its intent to prescribe WDRs for the discharge and provided an opportunity to submit written comments and recommendations. Notification was provided through publication in a local newspaper on June 21, 2017, and posting at the Facility and CSD offices.

The public has access to the agenda and any changes in dates and locations through the Central Coast Water Board's web site at: <http://www.waterboards.ca.gov/centralcoast/>

B. Written Comments

Interested persons were invited to submit written comments concerning tentative WDRs as provided through the notification process. Comments were due either by email to centralcoast@waterboards.ca.gov or in person or by mail to the Executive Officer at the Central Coast Water Board at the address below.

Central Coast Water Board
895 Aerovista Place, Suite 101
San Luis Obispo, CA 93401

To be fully responded to by staff and considered by the Central Coast Water Board, the written comments were due at the Central Coast Water Board office by 5:00 p.m. on July 21, 2017.

The Central Coast Water Board received a comment letter from the Discharger dated July 13, 2017.

1. Clarified the Discharger is the sole owner of the Facility (neither Port San Luis nor Fluid Resource Management should be considered Dischargers). Staff has revised Table 1 and similar areas of the draft Order to be consistent.
2. Discharger has no objections to copper and zinc effluent limits; no modifications needed.
3. No objections to Brine Waste Disposal Study; no modifications needed.
4. Clarification of sludge disposal location on Attachment C. Staff has revised Attachment C.
5. Typo fix for Biosolids reporting (Page 14); Staff has corrected the typo.
6. Typo fix for technology-based percent removal (Page F-37); Staff has corrected the typo.

7. Clarifying pretreatment requirements still do not apply. (Page F-37). Staff agrees and has clarified the language to indicate the existing Order does not contain pretreatment requirements, nor does the draft Order.
8. Request clarification on influent flow monitoring vs effluent flow monitoring (Table E-1). Existing order does not contain influent flow metering. Staff agrees effluent flow metering will continue in lieu of influent flow monitoring.
9. Discharger provided additional information regarding recent efforts with San Miguelito Mutual Water Company to secure Proposition 13 Water Recycling grant funding up to \$75,000. Staff has no specific comment, and will continue to support Discharger efforts towards recycling projects.
10. Discharger described a proposal from Chevron to discharge up to 2,000 gallons per day of extracted and treated groundwater from Avila Tank Terminal into the District's sewage collection system. This project was not described by the NPDES renewal application, and therefore is not considered part of the proposed Order. If the Discharger wishes to pursue this project, Water Board staff will need to explore the appropriate permitting needs with the Discharger.

C. Public Hearing

The Central Coast Water Board held a public hearing on the tentative WDRs during its regular Board meeting on the following date and time and at the following location:

Date: September 21-22, 2017
Time: 8 am – 5pm
Location: Santa Barbara County Offices
Planning and Development Hearing Room, 1st floor 105
123 East Anapamu Street
Santa Barbara, CA 93101

Interested persons were invited to attend. At the public hearing, the Central Coast Water Board invited testimony, pertinent to the discharge, WDRs, and permit. For accuracy of the record, important testimony was requested in writing. The Order was adopted on consent, after a brief update by Mr. Hagemann, Avila Beach CSD General Manager, on recycled water plans for the community.

D. Reconsideration of Waste Discharge Requirements

Any aggrieved person may petition the State Water Board to review the decision of the Regional Water Board regarding the final WDRs. The petition must be received by the State Water Board at the following address within 30 calendar days of the Regional Water Board's action:

State Water Resources Control Board
Office of Chief Counsel
P.O. Box 100, 1001 I Street
Sacramento, CA 95812-0100

For instructions on how to file a petition for review, see:

http://www.waterboards.ca.gov/public_notices/petitions/water_quality/wqpetition_instr.shtml

E. Information and Copying

The Report of Waste Discharge, other supporting documents, and comments received are on file and may be inspected at the address above at any time between 8:00 a.m. and 5:00 p.m., Monday through Friday. Copying of documents may be arranged through the Central Coast Water Board by calling (805) 549-3147.

F. Register of Interested Persons

Any person interested in being placed on the mailing list for information regarding the WDR's and NPDES permit should contact the Central Coast Water Board, reference this facility, and provide a name, address, and phone number.

G. Additional Information

Requests for additional information or questions regarding this order should be directed to Katie DiSimone at (805) 542-4638 or katie.disimone@waterboards.ca.gov.